

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[874 NE2d 720, 842 NYS2d 756]

PATRICIA NONNON, Individually and as Executrix of KERRI NONNON, Deceased, et al., Respondents, v CITY OF NEW YORK, Appellant. (And Other Actions.)

Argued June 5, 2007; decided June 27, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 6, 2006. The Appellate Division, with two Justices dissenting, modified, on the law, an order of the Supreme Court, Bronx County (Alexander W. Hunter, Jr., J.; op 1 Misc 3d 897), which had denied defendant's motion to dismiss all of the complaints for lack of merit and certain of the complaints as time-barred. The modification consisted of dismissing, with leave to replead, plaintiff Angelilli's complaint. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this Court, properly made?"

Nonnon v City of New York, 32 AD3d 91, affirmed.

HEADNOTE

Motions and Orders — Motion to Dismiss — Toxic Tort Litigation

In toxic tort litigation in which plaintiffs alleged that their injuries were proximately caused by defendant City's negligence in allowing the illegal dumping of hazardous waste at a former city landfill near their homes, the Appellate Division properly denied the City's motion to dismiss plaintiffs' complaints for failure to state a cause of action based on plaintiffs' inability to assert a causal connection between defendant's conduct and the injuries (CPLR 3211 [a] [7]). Where a CPLR 3211 motion to dismiss has not been converted to a CPLR 3212 motion for summary judgment, which assumes a complete evidentiary record, affidavits are intended to remedy pleading defects and not to offer evidentiary support for properly pleaded claims. As the City's motion was never converted to one for summary judgment, plaintiffs had no

notice of their obligation to make a complete record and to come forward with evidence that could be considered (CPLR 3211 [c]). Due to this equivocal procedural posture, plaintiffs did not have the opportunity to submit all of their evidence relevant to a determination of causation.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Elizabeth S. Natrella, Leonard Koerner and Christopher G. King* of counsel), for appellant.

Mauro Goldberg & Lilling LLP, Great Neck (*Barbara De-Crow Goldberg, Kenneth Mauro and Richard J. Montes* of counsel), for respondents.

Herzfeld & Rubin, P.C., New York City (*Michael Hoenig and Miriam Skolnik* of counsel), and *Hugh F. Young, Jr.*, Reston, Virginia, for Product Liability Advisory Council, Inc., amicus curiae.

Atlantic Legal Foundation, New York City (*Martin S. Kaufman* of counsel), for Marcia Angell and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

This litigation concerns the 81-acre Pelham Bay Landfill, owned and operated by the City of New York, and officially closed in 1978 after allegations of illegal dumping of pollutants. In 1982, the City determined that the landfill's surface water and groundwater contained contaminants that exceeded state standards, and in 1983 the facility was listed as an inactive hazardous waste disposal site. Plaintiffs are children and adults (and their families or executors) who live or lived within one mile of the landfill and developed acute lymphoid leukemia or Hodgkin's disease. Between 1991 and 1993, they brought nine lawsuits (since consolidated) alleging that the City's negligence in creating and maintaining the landfill resulted in elevated levels of toxic substances that caused their injuries or deaths.

On September 29, 2000, the City moved both pursuant to CPLR 3211 and 3212 to dismiss several claims as barred by the statute of limitations, and pursuant to CPLR 3211 (a) (7) to dismiss the complaints as failing to state a cause of action. The City asserted that its 3211 (a) (7) motion was based on plaintiffs' "inability to assert a causal connection between defendant's conduct and the many injuries from which they purportedly suffer."

Both the City and plaintiffs submitted expert affidavits addressed to causation. The trial court denied the City's CPLR 3211 (a) (7) motion and the Appellate Division, with two justices dissenting, modified.* We now affirm solely on procedural grounds.

On a CPLR 3211 motion to dismiss, the court will “accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). While affidavits may be considered, if the motion has not been converted to a CPLR 3212 motion for summary judgment, they are generally intended to remedy pleading defects and not to offer evidentiary support for properly pleaded claims (*see Rovello v Orofino Realty Co.*, 40 NY2d 633, 635-636 [1976]). By contrast, a motion for summary judgment, which seeks a determination that there are no material issues of fact for trial, assumes a complete evidentiary record.

As the City's motion was never converted to one for summary judgment, plaintiffs were not put on notice of their obligation to make a complete record and to come forward with any evidence that could possibly be considered (*see* CPLR 3211 [c]; *Mihlovan v Grozavu*, 72 NY2d 506 [1988]; *see also* Siegel, NY Prac § 270 [4th ed 2007] [the “notice requirement . . . offers the parties an opportunity to submit everything they've got”]). Here, plaintiffs suggest that due to the equivocal procedural posture of this case, they have not had the opportunity to submit all of their evidence relevant to a determination of causation (*see Parker v Mobil Oil Corp.*, 7 NY3d 434, 448 [2006]). Accordingly, the City is not now entitled to dismissal of plaintiffs' complaints for failure to state a cause of action.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order affirmed, etc.

* The majority modified Supreme Court's order by granting the City's motion to dismiss Christopher Angelilli's claim on statute of limitations grounds, with leave to replead (*see* CPLR 214-c [4]).

[874 NE2d 722, 842 NYS2d 758]

In the Matter of SIMONE D., Appellant. KATHLEEN IVERSON, Respondent.

Argued May 31, 2007; decided June 27, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 19, 2006. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Queens County (Roger N. Rosengarten, J.), which had granted a petition by a psychiatric center seeking permission to administer electroconvulsive therapy to a patient without her consent.

Matter of Simone D., 32 AD3d 931, affirmed.

HEADNOTE

Incapacitated and Mentally Disabled Persons — Involuntary Administration of Drug — Electroconvulsive Therapy

In a proceeding brought by a psychiatric center seeking permission to administer electroconvulsive therapy to a patient without her consent, Supreme Court did not improperly limit respondent's cross-examination of the State's psychiatric expert witness during the hearing on the petition. Viewing the cross-examination as a whole, the record showed no abuse of discretion. The patient's attorney was allowed to and did make clear to the court all the claimed weaknesses in the psychiatrist's testimony. Supreme Court did not exclude any evidence material to the only disputed issue: whether the proposed treatment was narrowly tailored to give substantive effect to the patient's liberty interest, taking into consideration all relevant circumstances.

APPEARANCES OF COUNSEL

Mental Hygiene Legal Service, Second Judicial Department, Mineola (Kim L. Darrow, Sidney Hirschfeld and Dennis B. Feld of counsel), for appellant.

Andrew M. Cuomo, Attorney General, New York City (Patrick J. Walsh, Barbara D. Underwood and Michael S. Belohlavek of counsel), for respondent.

New York Lawyers for the Public Interest, New York City (John A. Gresham of counsel), for Disability Advocates, Inc. and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed without costs.

Petitioner, the acting director of Creedmoor Psychiatric Center, sought permission to administer electroconvulsive therapy to a patient at the center without the patient's consent. Supreme Court granted the application, and the Appellate Division affirmed, two Justices dissenting. The patient appeals to us as of right, pursuant to CPLR 5601 (a).

The sole ground for the patient's appeal is that Supreme Court improperly limited the patient's cross-examination of the State's psychiatric expert witness. We agree with the Appellate Division majority that, when the cross-examination is viewed as a whole, the record shows no abuse of discretion. While specific evidentiary rulings can be debated, the patient's attorney was allowed to and did make clear to the court all the claimed weaknesses in the psychiatrist's testimony. The record does not show that Supreme Court excluded any evidence material to the only disputed issue: whether the proposed treatment was narrowly tailored to give substantive effect to the patient's liberty interest, taking into consideration all relevant circumstances (*Rivers v Katz*, 67 NY2d 485, 497-498 [1986]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, without costs, in a memorandum.

[873 NE2d 267, 841 NYS2d 223]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DUANE J. CHARACHE, Appellant.

Argued June 5, 2007; decided June 27, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 29, 2006. The Appellate Division affirmed an order of the Genesee County Court (Robert C. Noonan, J.), which had determined that defendant was a level three risk pursuant to the Sex Offender Registration Act.

People v Charache, 32 AD3d 1345, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review

By raising it for the first time on appeal, defendant failed to preserve for review his argument that the People did not provide him with the statutory

10-day notice of their intent to seek a risk level classification different from the recommendation of the Board of Examiners of Sex Offenders (Correction Law § 168-n [3]), where the trial court classified defendant as a risk level three sex offender based on the assessed points and did not adopt the Board's recommendation of a downward departure to a level two.

APPEARANCES OF COUNSEL

Gary A. Horton, Public Defender, Batavia (Bridget L. Field of counsel), for appellant.

Lawrence Friedman, District Attorney, Batavia (William G. Zickl of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Following a jury trial, defendant was convicted of one count each of first degree unlawful dealing with a child, first degree sexual abuse and endangering the welfare of a child. In anticipation of his release from prison, the Board of Examiners of Sex Offenders (Board) filed a Risk Assessment Instrument (RAI) that assessed defendant 125 points—a presumptive level three sex offender classification. The Board, however, recommended a downward departure to a level two because defendant completed high school and had no prior criminal history.

County Court agreed with defendant's sole challenge to the RAI scoring—that 10 points should be deducted under category IV (release environment) because he was to be released with supervision. Thereafter, the People opposed the Board's downward departure recommendation. The court agreed with the People's conclusion that the Board's rationale for departure had "little or no import" on defendant's actual risk as reflected in the RAI. Thus, the court adhered to a level three classification based on the adjusted 115 points.

On appeal, defendant argued, for the first time, that the People failed to provide him with the statutory 10-day notice of their intent to seek a risk level classification different from the Board's recommendation (*see* Correction Law § 168-n [3]). We agree with the Appellate Division, however, that defendant failed to preserve this contention for review, contrary to the holdings of *People v Davila* (299 AD2d 573 [3d Dept 2002]) and *People v MacNeil* (283 AD2d 835 [3d Dept 2001]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, without costs, in a memorandum.

ALLIED-LYNN ASSOCIATES, INC., Respondent, v ALEX BRO., LLC,
Appellant, et al., Defendants.

Submitted April 30, 2007; decided June 27, 2007

Reported below, 38 AD3d 1198.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANDREW BRITT et al., Appellants, v PHARMACOLOGIC PET SERVICES, INC., Respondent, et al., Defendant.

Submitted May 7, 2007; decided June 27, 2007

Reported below, 36 AD3d 1039.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CERTAIN UNDERWRITERS AT LLOYD'S, LONDON, et al., Plaintiffs, v FOSTER WHEELER CORPORATION, Respondent, and AFFILIATED FM INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted June 25, 2007; decided June 27, 2007

Reported below, 36 AD3d 17.

Motion by Honeywell International Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

CERTAIN UNDERWRITERS AT LLOYD'S, LONDON, et al., Plaintiffs, v FOSTER WHEELER CORPORATION, Respondent, and AFFILIATED FM INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted June 25, 2007; decided June 27, 2007

Reported below, 36 AD3d 17.

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

CASTALIA ORTEGA et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted June 25, 2007; decided June 27, 2007

Reported below, 35 AD3d 422.

Motion by County of Orange et al. for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief may be served and an original and 24 copies filed on or before July 31, 2007.

CASTALIA ORTEGA et al., Appellants, v CITY OF NEW YORK, Respondent.

Submitted June 25, 2007; decided June 27, 2007

Reported below, 35 AD3d 422.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Four copies of the brief must be filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ARTURO FLORES, Appellant.

Submitted May 7, 2007; decided June 27, 2007

Reported below, 24 AD3d 568.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN MINGO, Appellant.

Submitted June 25, 2007; decided June 27, 2007

Reported below, 37 AD3d 854.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

[872 NE2d 858, 840 NYS2d 746]

In the Matter of COUNTY OF WESTCHESTER et al., Appellants, v
BOARD OF TRUSTEES OF STATE UNIVERSITY OF NEW YORK,
Respondent.

Argued June 5, 2007; decided June 28, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 17, 2006. The Appellate Division modified, on the law, a judgment of the Supreme Court, Albany County (John G. Connor, J.), entered in a combined proceeding pursuant to CPLR article 78 and declaratory judgment action, which had partially granted petitioner's application to annul certain amendments to regulations promulgated by respondent. The modification consisted of reversing so much of the order as partially granted the application and dismissing the petition in its entirety.

Matter of County of Westchester v Board of Trustees of State Univ. of N.Y., 32 AD3d 653, modified.

HEADNOTE

Colleges and Universities — Community College — Financing

Amendments to regulations designed to increase fiscal independence of community colleges from their local sponsors, by providing that a sponsor shall approve the "budget total," rather than the "total budget," of a community college (8 NYCRR 600.2 [a]; 602.3 [b]) and removing a requirement that transfers of appropriations within the college's operating budget be subject to sponsor approval (8 NYCRR 602.9), were not inconsistent with Education Law § 6304 (6), which defined a sponsor's obligations with respect to the college's finances and its share of the costs. Although the amendments reduced the sponsor's role in the budget approval process, they were not inconsistent with the statutory language or its underlying purposes and had a rational basis. The sponsor's budget oversight remained significant. Further, elimination of a line-item veto did not alter the requirement of Education Law § 6306 (2) that college boards of trustees submit the budget for approval. Nor did the authori-

zation for college trustees to make transfers of appropriations within the budget conflict with the requirement of Education Law § 6304 (6) that expenditures of funds by colleges be subject to the terms and conditions of appropriations by the sponsor.

APPEARANCES OF COUNSEL

Charlene M. Indelicato, County Attorney, White Plains (*Mary Lynn Nicolas-Brewster* of counsel), for Westchester County, appellant.

Cadwalader, Wickersham & Taft, LLP, New York City (*Kathy H. Chin* of counsel), for New York State Association of Counties, appellant.

Andrew M. Cuomo, Attorney General, Albany (*Nancy A. Spiegel*, *Barbara D. Underwood*, *Daniel Smirlock* and *Peter H. Schiff* of counsel), for respondent.

Ingerman Smith, LLP, Hauppauge (*John H. Gross* and *Susan E. Fine* of counsel), for Board of Trustees of Nassau Community College, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, to declare that the regulations at issue are not inconsistent with Education Law § 6304 (6), and, as so modified, affirmed.

Petitioners, the County of Westchester—the local sponsor of Westchester Community College—and the New York State Association of Counties, in a combined CPLR article 78 proceeding/declaratory judgment action, seek to annul certain amendments to regulations promulgated by respondent, the Board of Trustees of the State University of New York, pursuant to the state Education Law.

The amendments at issue, adopted in 2003, changed the regulations to provide that a local sponsor shall approve the “budget total,” rather than the “total budget,” of a community college (*see* 8 NYCRR 600.2 [a]; *see also* 8 NYCRR 602.3 [b]), and removed a requirement that transfers of appropriations within the college’s operating budget be subject to approval of the sponsor (*see* 8 NYCRR 602.9). According to respondent, these changes were designed to conform with the 1988 amendments to Education Law § 6304 (6) that allowed greater fiscal independence for community colleges. The effect of the amendments to the regulations was to eliminate a local sponsor’s

authority to veto line-item appropriations in a community college budget as proposed by the college's board of trustees, and to permit college boards of trustees to transfer appropriations among budget items without the local sponsor's approval.

Petitioners claim that the 2003 amendments to the regulations are inconsistent with the language of Education Law § 6304 (6), as amended in 1988.* This statute defines a local sponsor's obligations with respect to the college's finances and the share of the college's costs it must provide; it does not govern the college's budget approval process. Memoranda and letters of support for the 1988 amendments evince the Legislature's intent to grant community colleges greater flexibility and autonomy in the budget process by increasing their independence from the local sponsors (*see* Bill Jacket, L 1988, ch 614).

Despite the 1988 legislation and the 2003 amendments to the regulations, the local sponsor's oversight of the college budget process remains significant. The sponsor retains the right to increase or decrease the amount of its contribution, and enjoys substantial representation on the college's ten-member board of trustees, half of whom are appointed by the local sponsor, one of whom may remain a part of the county's legislative body while on the board (*see* Education Law § 6306 [1]). In addition, the local sponsor has the authority to require periodic audits and reports from the college as it deems appropriate (*see* Education Law § 6304 [6]). Most importantly, the elimination of a line-item veto does not alter the requirement of Education Law § 6306 (2) that college boards of trustees "submit [the college's] budget for approval by the local legislative body or board." Nor does the authorization for college trustees to make transfers of appropriations within the budget necessarily conflict with the requirement of Education Law § 6304 (6) that expenditures of funds by colleges be "subject to the terms and conditions of such appropriations [by the sponsor for maintenance of the college] appearing in such budget."

Thus, on their face, the 2003 amendments to the regulations, although reducing the local sponsor's role in the budget ap-

* Education Law § 6304 (6) provides as follows: "The local legislative body or board, or other appropriate governing agency, other than a community college regional board of trustees, shall provide the local sponsor's share of the community college operating and capital costs in conformance with such sponsor's annual budgetary appropriation, and shall direct that payment of all appropriations for maintenance of the college be made to the board of trustees of the college for expenditure by the board, subject to the terms and conditions of such appropriations appearing in such budget"

proval process, “are not inconsistent with the statutory language or its underlying purposes” (*Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249, 254 [2004]), and have “a rational basis [that] is not unreasonable, arbitrary, capricious or contrary to the statute under which it was promulgated” (*Kuppersmith v Dowling*, 93 NY2d 90, 96 [1999]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

[872 NE2d 1194, 840 NYS2d 888]

HOWARD LEDER, as Preliminary Executor of ABRAHAM WARSASKI, Deceased, Proponent, v MARSHALL SPIEGEL, Appellant, et al., Objectant. JOANNE ROWLAND, ESQ., Respondent.

Argued May 29, 2007; decided June 28, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 6, 2006. The Appellate Division, with two Justices dissenting, affirmed an order of the Surrogate’s Court, New York County (Renee R. Roth, S.), which had granted petitioner attorney’s application for legal fees and disbursements and granted petitioner’s motion to dismiss the client’s legal malpractice counterclaims.

Leder v Spiegel, 31 AD3d 266, affirmed.

HEADNOTE

Attorney and Client — Malpractice — Representation in Probate Proceeding

The courts below properly granted petitioner attorney’s motion to dismiss legal malpractice counterclaims asserted by objectants in response to the attorney’s application for legal fees with respect to an underlying probate proceeding. In order to sustain a legal malpractice claim, a client must establish that the attorney failed to exercise ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession which results in actual damages, and that the client would have succeeded on the merits of the underlying action “but for” the attorney’s negligence. The objectants argued that but for petitioner’s alleged negligence in failing to anticipate that Surrogate’s Court would not admit certain evidence they would have settled. Even if accepted as true, this allegation did not establish negligence and, thus, objectants failed to allege a prima facie case of legal malpractice.

APPEARANCES OF COUNSEL

Jeffrey A. Barr, New York City, for appellant.

Leo Fox, New York City, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

After unsuccessfully representing two objectants at a will contest trial in Surrogate's Court, respondent attorney petitioned the same court for legal fees. In their answer, objectants counterclaimed for legal malpractice, arguing that, but for respondent's negligent representation, they would have accepted a \$108,000 settlement. In particular, objectants cited respondent's failure to anticipate that Surrogate's Court would not admit certain evidence. Respondent moved pursuant to CPLR 3211 (a) (7) for an order dismissing objectants' counterclaim.

Surrogate's Court dismissed objectants' counterclaim and awarded respondent her legal fees. In a 3-2 decision, the Appellate Division affirmed. Objectant Marshall Spiegel appeals as of right, and we now affirm.

"In order to sustain a claim for legal malpractice, a plaintiff must establish both that the defendant attorney failed to exercise the ordinary reasonable skill and knowledge commonly possessed by a member of the legal profession which results in actual damages to a plaintiff, and that the plaintiff would have succeeded on the merits of the underlying action 'but for' the attorney's negligence" (*Am-Base Corp. v Davis Polk & Wardwell*, 8 NY3d 428, 434 [2007] [internal citations omitted]).

Under the circumstances of this case, objectant's allegation regarding respondent's failure to anticipate the court's evidentiary rulings—even if accepted as true—does not establish negligence. Thus, objectants did not allege a prima facie case of legal malpractice and the courts below properly dismissed the counterclaim. Objectant's remaining contentions also lack merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

RACHEL EHRENFELD, Appellant, v KHALID SALIM BIN MAHFOUZ,
Respondent.

Submitted June 18, 2007; decided June 28, 2007

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES. Taking no part: Judge SMITH.

In the Matter of MARIO LUGO, Appellant, v NEW YORK CITY
HOUSING AUTHORITY, Respondent.

Submitted May 21, 2007; decided June 28, 2007

Reported below, 2006 NY Slip Op 68880(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

MONROE YALE MANN, Respondent, v BERNARD ABEL et al., Appellants, et al., Defendants.

Submitted June 4, 2007; decided June 28, 2007

Reported below, 37 AD3d 778.

Motion by Advance Publications, Inc., et al. for leave to file a brief amici curiae on the Court's examination of its subject matter jurisdiction of the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of the Estate of KATHYRN B. McGUIRE, Also Known as KATHERINE B. McGUIRE McCANN, Deceased. CHESTER McGUIRE, Respondent; PHILIP McGUIRE et al., Appellants.

Submitted May 21, 2007; decided June 28, 2007

Reported below, 34 AD3d 589; 2007 NY Slip Op 65897(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PROMENADE et al., Respondents, v SCHINDLER ELEVATOR CORPORATION et al., Defendants. THE GLICK ORGANIZATION et al., Third-Party Plaintiffs, v A-WACHSBERGER ROOFING & SHEET METAL WORK INC. et al., Third-Party Defendants, and DE-CON MECHANICAL CORP., Third-Party Defendant-Appellant.

Submitted May 21, 2007; decided June 28, 2007

Reported below, 39 AD3d 221.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2007 through June 30, 2007)

People v Adams	4th Dept: 37 AD3d 1055 (Erie)	denied 6/7/07 (Smith, J.)
People v Adkinson	1st Dept: 39 AD3d 341 (NY)	denied 6/29/07 (Kaye, Ch.J.)
People v Alexander	3d Dept: 37 AD3d 908 (Albany)	denied 6/8/07 (Smith, J.)
People v Allende	1st Dept: 38 AD3d 470 (NY)	denied 6/26/07 (Smith, J.)
People v Ange	4th Dept: 37 AD3d 1143 (Monroe)	denied 6/13/07 (Ciparick, J.)
People v Anziani	1st Dept: 40 AD3d 538 (NY)	denied 6/29/07 (Grafteo, J.)
People v Applegate	App Div, 2d Dept: 2007 NY Slip Op 64042(U) (Nassau)	dismissed 6/13/07 (Read, J.)
People v Arroyo (Bladimil)	2d Dept: 38 AD3d 792 (Kings)	denied 6/6/07 (Read, J.)
People v Arroyo (Luis)	1st Dept: 37 AD3d 301 (NY)	denied 6/19/07 (Smith, J.)
People v Askia	4th Dept: 38 AD3d 1212 (Erie)	denied 6/6/07 (Read, J.)

People v Backman	App Div, 1st Dept: 2007 NY Slip Op 62975(U) (Bronx)	dismissed 6/8/07 (Smith, J.)
People v Ballard	3d Dept: 38 AD3d 1001 (Broome)	denied 6/1/07 (Kaye, Ch.J.)
People v Ballenilla	App Div, 1st Dept: 2007 NY Slip Op 67963(U) (Bronx)	denied 6/19/07 (Jones, J.)
People v Banks	3d Dept: 38 AD3d 938 (Montgomery)	denied 6/6/07 (Pigott, J.)
People v Baptiste	App Div, 3d Dept, 10/14/05 (Schenectady)	denied 6/5/07 (Pigott, J.)
People v Battle	App Div, 2d Dept: 2007 NY Slip Op 64212(U) (Queens)	dismissed 6/5/07 (Read, J.)
People v Baum	App Div, 2d Dept: 2007 NY Slip Op 65291(U) (Orange)	dismissed 6/21/07 (Smith, J.)
People v Baumann	1st Dept: 38 AD3d 452 (Bronx)	denied 6/20/07 (Kaye, Ch.J.)
People v Benjamin	App Div, 1st Dept: 2007 NY Slip Op 63762(U) (NY)	denied 6/22/07 (Ciparick, J.)
People v Berlin	1st Dept: 39 AD3d 351 (NY)	denied 6/29/07 (Grafteo, J.)
People v Bermudez (Carlos)	4th Dept: 38 AD3d 1325 (Erie)	denied 6/18/07 (Smith, J.)
People v Bermudez (Jose)	3d Dept: 31 AD3d 968 (Albany)	denied reconsideration 6/27/07 (Smith, J.)
People v Bermudez (Jose)	3d Dept: 31 AD3d 1053 (Albany)	denied reconsideration 6/27/07 (Smith, J.)
People v Bethea	2d Dept: 34 AD3d 489 (Kings)	denied 6/19/07 (Smith, J.)
People v Blue	App Term, 2d Dept: 15 Misc 3d 128(A) (Nassau)	denied 6/19/07 (Jones, J.)
People v Breaux	1st Dept: 38 AD3d 441 (NY)	denied 6/29/07 (Kaye, Ch.J.)
People v Bristo	1st Dept: 38 AD3d 359 (Bronx)	denied 6/6/07 (Pigott, J.)
People v Brock	2d Dept: 37 AD3d 485 (Westchester)	denied 6/11/07 (Smith, J.)
People v Brooks	2d Dept: 36 AD3d 929 (Orange)	denied 6/22/07 (Ciparick, J.)
People v Brown (Laquan)	1st Dept: 37 AD3d 278 (NY)	denied 6/14/07 (Ciparick, J.)
People v Brown (Reggie)	1st Dept: 39 AD3d 373 (Bronx)	denied 6/21/07 (Grafteo, J.)
People v Brown (Sean)	2d Dept: 38 AD3d 676 (Kings)	denied 6/7/07 (Pigott, J.)

MEMORANDA

841

People v Bullock	4th Dept: 39 AD3d 1246 (Monroe)	denied 6/19/07 (Jones, J.)
People v Burke	App Term, 2d Dept: 15 Misc 3d 128(A) (Nassau)	denied 6/28/07 (Read, J.)
People v Butcher	3d Dept: 38 AD3d 942 (Chemung)	denied 6/6/07 (Pigott, J.)
People v Calvert	2d Dept: 33 AD3d 813 (Queens)	denied reconsideration 6/13/07 (Smith, J.)
People v Campbell	2d Dept: 38 AD3d 677 (Kings)	denied 6/29/07 (Kaye, Ch.J.)
People v Carlson	County Ct, 3/21/07 (Ulster)	denied 6/25/07 (Grafteo, J.)
People v Chandler	1st Dept: 37 AD3d 189 (NY)	denied 6/8/07 (Kaye, Ch.J.)
People v Chapman	App Div, 1st Dept: 2007 NY Slip Op 68686(U) (NY)	dismissed 6/7/07 (Jones, J.)
People v Chatman	1st Dept: 38 AD3d 207 (NY)	denied 6/14/07 (Ciparick, J.)
People v Chrysler	2d Dept: 37 AD3d 486 (Orange)	denied 6/15/07 (Smith, J.)
People v Chung	2d Dept: 39 AD3d 558 (Kings)	denied 6/21/07 (Smith, J.)
People v Church	4th Dept: 37 AD3d 1125 (Cayuga)	denied 6/1/07 (Smith, J.)
People v Clark	2d Dept: 37 AD3d 487 (Suffolk)	denied 6/6/07 (Pigott, J.)
People v Clayton	3d Dept: 38 AD3d 1131 (Ulster)	denied 6/19/07 (Jones, J.)
People v Coffin	4th Dept: 38 AD3d 1316 (Oneida)	denied 6/27/07 (Smith, J.)
People v Collier (Andre)	3d Dept: 35 AD3d 1037 (Rensselaer)	granted 6/13/07 (Pigott, J.)
People v Collier (Maurice)	2d Dept: 35 AD3d 628 (Queens)	denied reconsideration 6/25/07 (Grafteo, J.)
People v Colon	1st Dept: 38 AD3d 242 (NY)	denied 6/18/07 (Smith, J.)
People v Comfort	4th Dept: 35 AD3d 1294 (Ontario)	denied 6/14/07 (Smith, J.)
People v Conde	1st Dept: 37 AD3d 349 (Bronx)	denied 6/15/07 (Pigott, J.)
People v Conklin	3d Dept: 39 AD3d 1022 (Ulster)	denied 6/20/07 (Read, J.)
People v Craft	3d Dept: 36 AD3d 1145 (Albany)	denied reconsideration 6/25/07 (Grafteo, J.)

People v Crandall	3d Dept: 38 AD3d 996 (Montgomery)	denied 6/18/07 (Smith, J.)
People v Crawford	2d Dept: 38 AD3d 680 (Kings)	denied 6/13/07 (Smith, J.)
People v Crogan	4th Dept: 39 AD3d 1225 (Niagara)	denied 6/21/07 (Grafteo, J.)
People v Crum	4th Dept: 39 AD3d 1241 (Erie)	denied 6/26/07 (Smith, J.)
People v Cruz	1st Dept: 39 AD3d 341 (NY)	denied 6/26/07 (Read, J.)
People v Daniels	1st Dept: 36 AD3d 502 (NY)	denied 6/28/07 (Pigott, J.)
People v Davenport	4th Dept: 35 AD3d 1277 (Erie)	denied 6/28/07 (Smith, J.)
People v Davila	1st Dept: 37 AD3d 305 (Bronx)	denied 6/18/07 (Read, J.)
People v Davis (Curtis)	App Div, 1st Dept: 2007 NY Slip Op 68123(U) (Bronx)	dismissed 6/26/07 (Read, J.)
People v Davis (Daniel)	2d Dept: 39 AD3d 873 (Suffolk)	denied 6/22/07 (Smith, J.)
People v Davis (Maurice)	1st Dept: 38 AD3d 212 (NY)	denied 6/14/07 (Ciparick, J.)
People v Davis (Robert)	1st Dept: 37 AD3d 238 (NY)	denied 6/6/07 (Pigott, J.)
People v Davis (Rodney)	4th Dept: 38 AD3d 1170 (Niagara)	denied 6/19/07 (Jones, J.)
People v DeBiaso (Chester)	4th Dept: 39 AD3d 1256 (Niagara)	denied 6/26/07 (Read, J.) (Appeal No. 1)
People v DeBiaso (Chester)	4th Dept: 39 AD3d 1256 (Niagara)	denied 6/26/07 (Read, J.) (Appeal No. 2)
People v Decree	App Term, 2d Dept: 14 Misc 3d 8 (Nassau)	denied 6/14/07 (Smith, J.)
People v Deingeniis	County Ct, 1/30/07 (Monroe)	denied 6/22/07 (Ciparick, J.)
People v Dennard	4th Dept: 39 AD3d 1277 (Onondaga)	denied 6/21/07 (Grafteo, J.)
People v DeRuyter	App Div, 4th Dept, 1/18/07 (Ontario)	denied 6/4/07 (Smith, J.)
People v Desmarat	2d Dept: 38 AD3d 913 (Kings)	denied 6/26/07 (Jones, J.)
People v Devison	1st Dept: 38 AD3d 203 (NY)	denied 6/7/07 (Pigott, J.)
People v Diamond	1st Dept: 38 AD3d 470 (Bronx)	denied 6/27/07 (Smith, J.)
People v Diaz	4th Dept: 39 AD3d 1244 (Monroe)	denied 6/21/07 (Grafteo, J.)
People v Divelbliss	4th Dept: 38 AD3d 1161 (Wayne)	denied 6/12/07 (Smith, J.)

MEMORANDA

843

People v Doherty	3d Dept: 37 AD3d 859 (Schenectady)	denied 6/8/07 (Smith, J.)
People v Donaldson	4th Dept: 37 AD3d 1057 (Erie)	denied 6/6/07 (Smith, J.)
People v Douglas	3d Dept: 38 AD3d 1063 (Ulster)	denied 6/12/07 (Smith, J.)
People v Dover	2d Dept: 36 AD3d 714 (Nassau)	denied 6/14/07 (Ciparick, J.)
People v Drake	3d Dept: 36 AD3d 967 (Essex)	denied reconsideration 6/5/07 (Read, J.)
People v Dudley	1st Dept: 38 AD3d 362 (NY)	denied 6/18/07 (Read, J.)
People v Edsall	4th Dept: 37 AD3d 1100 (Steuben)	denied 6/1/07 (Smith, J.)
People v Edwards	1st Dept: 37 AD3d 289 (NY)	denied 6/6/07 (Smith, J.)
People v Epps	2d Dept: 38 AD3d 916 (Kings)	denied 6/21/07 (Grafteo, J.)
People v Estrada	2d Dept: 38 AD3d 797 (Queens)	denied 6/20/07 (Read, J.)
People v Evans	2d Dept: 37 AD3d 847 (Queens)	denied 6/18/07 (Read, J.)
People v Familia	2d Dept: 37 AD3d 848 (Kings)	denied 6/18/07 (Read, J.)
People v Faulk	App Term, 1st Dept: 15 Misc 3d 130(A) (NY)	denied 6/26/07 (Jones, J.)
People v Fernandez	App Div, 2d Dept: 2007 NY Slip Op 69066(U) (Suffolk)	dismissed 6/12/07 (Pigott, J.)
People v Fields	2d Dept: 37 AD3d 733 (Kings)	denied 6/7/07 (Smith, J.)
People v Figueroa	1st Dept: 36 AD3d 458 (NY)	denied 6/6/07 (Kaye, Ch.J.)
People v Flores	1st Dept: 38 AD3d 217 (Bronx)	denied 6/14/07 (Smith, J.)
People v Flow	1st Dept: 37 AD3d 303 (NY)	denied 6/6/07 (Pigott, J.)
People v Flowers	App Div, 2d Dept, 5/25/06 (Orange)	denied reconsideration 6/5/07 (Read, J.)
People v Fludd	3d Dept: 33 AD3d 1124 (Schenectady)	denied 6/13/07 (Read, J.)
People v Foo Chen	1st Dept: 38 AD3d 217 (NY)	denied 6/12/07 (Smith, J.)
People v Fotiou	2d Dept: 39 AD3d 877 (Queens)	denied 6/19/07 (Jones, J.)
People v Francis	App Term, 2d Dept: 15 Misc 3d 133(A) (Queens)	denied 6/21/07 (Grafteo, J.)

People v Fulford	2d Dept: 36 AD3d 937 (Kings)	denied 6/8/07 (Smith, J.)
People v Futrell	4th Dept: 38 AD3d 1330 (Onondaga)	denied 6/20/07 (Smith, J.)
People v Galloway	1st Dept: 40 AD3d 240 (NY)	denied 6/29/07 (Kaye, Ch.J.)
People v Garcia (Cesar)	1st Dept: 36 AD3d 538 (Bronx)	denied 6/14/07 (Ciparick, J.)
People v Garcia (David)	2d Dept: 39 AD3d 878 (Kings)	denied 6/25/07 (Grafteo, J.)
People v Garcia (Francisco)	2d Dept: 38 AD3d 797 (Queens)	denied 6/20/07 (Read, J.)
People v Garcia (Marcos)	3d Dept: 33 AD3d 1050 (Rensselaer)	denied 6/28/07 (Kaye, Ch.J.)
People v Garcia (Richard)	2d Dept: 39 AD3d 666 (Suffolk)	denied 6/20/07 (Smith, J.)
People v Garrett	1st Dept: 39 AD3d 431 (NY)	denied 6/21/07 (Grafteo, J.)
People v Garrison	4th Dept: 39 AD3d 1138 (Monroe)	denied 6/26/07 (Smith, J.)
People v Georgiou	2d Dept: 38 AD3d 155 (Queens)	denied 6/6/07 (Kaye, Ch.J.)
People v Gettys	4th Dept: 39 AD3d 1209 (Erie)	denied 6/21/07 (Grafteo, J.)
People v Gilkeson	4th Dept: 38 AD3d 1244 (Onondaga)	denied 6/6/07 (Read, J.)
People v Ginsberg	2d Dept: 36 AD3d 627 (Orange)	denied 6/8/07 (Smith, J.)
People v Golden	3d Dept: 37 AD3d 972 (Chemung)	denied 6/15/07 (Smith, J.)
People v Goris	1st Dept: 37 AD3d 204 (NY)	denied 6/15/07 (Pigott, J.)
People v Grant	2d Dept: 39 AD3d 770 (Kings)	denied 6/19/07 (Jones, J.)
People v Grigger	2d Dept: 33 AD3d 1020 (Richmond)	denied 6/5/07 (Read, J.)
People v Guerra	1st Dept: 35 AD3d 323 (Bronx)	denied 6/1/07 (Smith, J.)
People v Hall (Azim)	1st Dept: 39 AD3d 100 (NY)	granted 6/22/07 (Smith, J.)
People v Hall (Ralph)	App Div, 1st Dept: 2007 NY Slip Op 68682(U) (NY)	dismissed 6/21/07 (Grafteo, J.)
People v Hardy	App Div, 1st Dept: 2007 NY Slip Op 67388(U) (NY)	dismissed 6/27/07 (Kaye, Ch.J.)
People v Harper	App Div, 3d Dept, 3/19/07 (Albany)	dismissed 6/28/07 (Read, J.)
People v Hart	App Div, 3d Dept, 3/27/07 (Albany)	denied 6/21/07 (Grafteo, J.)

MEMORANDA

845

People v Hawkes	4th Dept: 39 AD3d 1209 (Erie)	denied 6/21/07 (Grafteo, J.)
People v Haynes	2d Dept: 39 AD3d 562 (Suffolk)	denied 6/6/07 (Kaye, Ch.J.)
People v Higgs	2d Dept: 37 AD3d 736 (Orange)	denied 6/14/07 (Smith, J.)
People v Hightower	4th Dept: 39 AD3d 1247 (Monroe)	denied 6/21/07 (Grafteo, J.)
People v Hoeft	App Div, 4th Dept, 4/5/07 (Erie)	dismissed 6/11/07 (Ciparick, J.)
People v Hogan	County Ct, 5/30/07 (Albany)	dismissed 6/12/07 (Ciparick, J.)
People v Holmes	2d Dept: 36 AD3d 714 (Queens)	denied 6/29/07 (Kaye, Ch.J.)
People v Hoover	1st Dept: 39 AD3d 351 (Bronx)	denied 6/29/07 (Kaye, Ch.J.)
People v Hughes	App Div, 2d Dept: 2007 NY Slip Op 69068(U) (Queens)	dismissed 6/21/07 (Grafteo, J.)
People v Hunt	3d Dept: 39 AD3d 961 (Clinton)	denied 6/27/07 (Jones, J.)
People v Hunter	3d Dept: 41 AD3d 885 (Rensselaer)	granted 6/27/07 (Smith, J.)
People v Hyatt	1st Dept: 38 AD3d 233 (NY)	denied 6/14/07 (Ciparick, J.)
People v Hymes	1st Dept: 39 AD3d 231 (Bronx)	denied 6/1/07 (Kaye, Ch.J.)
People v Jackson (Malcolm)	3d Dept: 39 AD3d 1089 (Schenectady)	denied 6/27/07 (Smith, J.)
People v Jackson (Ronald)	App Div, 1st Dept: 2007 NY Slip Op 63768(U) (NY)	dismissed 6/5/07 (Smith, J.)
People v Jackson (Tyrone)	1st Dept: 39 AD3d 394 (NY)	denied 6/19/07 (Jones, J.)
People v James	App Div, 1st Dept: 2007 NY Slip Op 68686(U) (NY)	dismissed 6/7/07 (Jones, J.)
People v Jara	1st Dept: 38 AD3d 479 (NY)	denied 6/26/07 (Smith, J.)
People v Jean-Baptiste	2d Dept: 37 AD3d 852 (Kings)	denied 6/7/07 (Pigott, J.)
People v Jenner	3d Dept: 39 AD3d 1083 (Madison)	denied 6/21/07 (Grafteo, J.)
People v Jennings (Keith)	3d Dept: 39 AD3d 970 (Albany)	denied 6/21/07 (Grafteo, J.)
People v Jennings (Phillip)	1st Dept: 37 AD3d 189 (NY)	denied 6/1/07 (Smith, J.)
People v Jodhan	1st Dept: 37 AD3d 376 (Bronx)	denied 6/5/07 (Read, J.)

People v Johnson	2d Dept: 38 AD3d 569 (Queens)	denied 6/22/07 (Ciparick, J.)
People v Jones (Christine)	3d Dept: 38 AD3d 1101 (Broome)	denied 6/20/07 (Smith, J.)
People v Jones (James)	1st Dept: 38 AD3d 352 (NY)	denied 6/13/07 (Smith, J.)
People v Jones (Nathaniel)	1st Dept: 39 AD3d 312 (NY)	denied 6/21/07 (Grafteo, J.)
People v Jones (Tommie)	4th Dept: 39 AD3d 1168 (Erie)	denied 6/8/07 (Grafteo, J.)
People v Kairis	4th Dept: 37 AD3d 1070 (Ontario)	denied 6/6/07 (Smith, J.)
People v Karnegay	1st Dept: 37 AD3d 342 (NY)	denied 6/6/07 (Smith, J.)
People v Kearney	3d Dept: 39 AD3d 964 (Albany)	denied 6/22/07 (Smith, J.)
People v Kimes	1st Dept: 37 AD3d 1 (NY)	denied reconsideration 6/21/07 (Grafteo, J.)
People v Knight	2d Dept: 37 AD3d 738 (Kings)	denied 6/14/07 (Smith, J.)
People v Kulakov	App Div, 3d Dept, 3/29/07 (Franklin)	dismissed 6/22/07 (Smith, J.)
People v Lajeunesse	3d Dept: 37 AD3d 907 (Albany)	denied 6/11/07 (Smith, J.)
People v Langhorne	2d Dept: 39 AD3d 564 (Suffolk)	denied 6/20/07 (Smith, J.)
People v Laning	4th Dept: 38 AD3d 1290 (Cayuga)	denied 6/22/07 (Ciparick, J.)
People v Laster	1st Dept: 38 AD3d 242 (Bronx)	denied 6/5/07 (Read, J.)
People v Lee (David)	App Term, 1st Dept: 15 Misc 3d 133(A) (Bronx)	denied 6/1/07 (Kaye, Ch.J.)
People v Lee (Kareem)	2d Dept: 34 AD3d 696 (Kings)	denied reconsideration 6/20/07 (Read, J.)
People v Lemon	4th Dept: 38 AD3d 1298 (Erie)	denied 6/27/07 (Kaye, Ch.J.)
People v Lennon	2d Dept: 37 AD3d 853 (Kings)	denied 6/5/07 (Read, J.)
People v Lerario	3d Dept: 38 AD3d 998 (Sullivan)	denied 6/22/07 (Ciparick, J.)
People v Lewis (Gil)	App Div, 1st Dept: 2007 NY Slip Op 63736(U) (NY)	dismissed 6/6/07 (Smith, J.)
People v Lewis (Harry)	1st Dept: 37 AD3d 176 (NY)	denied 6/18/07 (Pigott, J.)
People v Lobello	2d Dept: 39 AD3d 566 (Queens)	denied 6/22/07 (Smith, J.)

MEMORANDA

847

People v Lockett	4th Dept: 34 AD3d 1208 (Erie)	denied reconsideration 6/15/07 (Kaye, Ch.J.)
People v Lopez (Darlena)	4th Dept: 39 AD3d 1231 (Monroe)	denied 6/26/07 (Smith, J.)
People v Lopez (Sergio)	2d Dept: 37 AD3d 496 (Nassau)	denied 6/14/07 (Ciparick, J.)
People v Louis	1st Dept: 37 AD3d 176 (NY)	denied 6/18/07 (Pigott, J.)
People v Love	2d Dept: 37 AD3d 618 (Kings)	denied 6/11/07 (Smith, J.)
People v Lowin	3d Dept: 36 AD3d 1153 (Tioga)	denied 6/4/07 (Smith, J.)
People v Lucas	1st Dept: 38 AD3d 294 (NY)	denied 6/5/07 (Read, J.)
People v Lumpkin	2d Dept: 39 AD3d 671 (Queens)	denied 6/28/07 (Read, J.)
People v Lyte	1st Dept: 40 AD3d 319 (Bronx)	denied 6/21/07 (Grafteo, J.)
People v Malloy	3d Dept: 34 AD3d 1046 (Albany)	denied 6/29/07 (Kaye, Ch.J.)
People v Manor	4th Dept: 38 AD3d 1257 (Monroe)	denied 6/5/07 (Read, J.)
People v Maseda	1st Dept: 39 AD3d 226 (NY)	denied 6/1/07 (Kaye, Ch.J.)
People v Mason	4th Dept: 38 AD3d 1260 (Onondaga)	denied 6/6/07 (Kaye, Ch.J.)
People v Mathis	App Div, 1st Dept: 2007 NY Slip Op 64713(U) (NY)	dismissed 6/6/07 (Smith, J.)
People v Maysonet	4th Dept: 38 AD3d 1330 (Onondaga)	denied 6/20/07 (Smith, J.)
People v McCauley	2d Dept: 37 AD3d 739 (Suffolk)	denied 6/14/07 (Ciparick, J.)
People v McCullough	App Div, 4th Dept, 2/23/07 (Onondaga)	dismissed 6/21/07 (Grafteo, J.)
People v McGill	1st Dept: 37 AD3d 369 (NY)	denied 6/29/07 (Kaye, Ch.J.)
People v McGrath	2d Dept: 36 AD3d 718 (Orange)	denied 6/29/07 (Kaye, Ch.J.)
People v McNair	3d Dept: 36 AD3d 1073 (Albany)	denied 6/5/07 (Smith, J.)
People v Medina	1st Dept: 37 AD3d 240 (NY)	denied 6/22/07 (Ciparick, J.)
People v Mejia (Ricardo)	App Div, 2d Dept: 2007 NY Slip Op 68490(U) (Kings)	dismissed 6/5/07 (Pigott, J.)
People v Mejia (Richard)	App Div, 2d Dept, 2007 NY Slip Op 68490(U) (Kings)	dismissed 6/5/07 (Pigott, J.)

People v Mella-Rodriguez	2d Dept: 39 AD3d 671 (Suffolk)	denied 6/21/07 (Smith, J.)
People v Mendez	2d Dept: 37 AD3d 620 (Kings)	denied 6/22/07 (Ciparick, J.)
People v Miller	1st Dept: 38 AD3d 233 (NY)	denied 6/5/07 (Read, J.)
People v Millington	1st Dept: 37 AD3d 350 (Bronx)	denied 6/14/07 (Smith, J.)
People v Mines	2d Dept: 37 AD3d 740 (Queens)	denied 6/5/07 (Read, J.)
People v Mingo	2d Dept: 37 AD3d 854 (Kings)	granted 6/4/07 (Jones, J.)
People v Minus	1st Dept: 38 AD3d 353 (NY)	denied 6/29/07 (Kaye, Ch.J.)
People v Moore (Anthony)	4th Dept: 38 AD3d 1313 (Monroe)	denied 6/13/07 (Smith, J.)
People v Moore (Melvin)	4th Dept: 32 AD3d 1354 (Monroe)	denied reconsideration 6/1/07 (Smith, J.)
People v Morales	1st Dept: 37 AD3d 287 (NY)	denied 6/14/07 (Ciparick, J.)
People v Morgan (Richard)	App Div, 2d Dept: 2006 NY Slip Op 80284(U) (Rockland)	denied reconsideration 6/12/07 (Smith, J.)
People v Morgan (Ricky)	3d Dept: 39 AD3d 889 (Sullivan)	denied 6/29/07 (Kaye, Ch.J.)
People v Morris (Katica)	App Term, 2d Dept: 14 Misc 3d 144(A) (Queens)	denied 6/6/07 (Pigott, J.)
People v Morris (Kent)	2d Dept: 34 AD3d 846 (Queens)	denied reconsideration 6/13/07 (Read, J.)
People v Murdaugh	2d Dept: 38 AD3d 918 (Nassau)	denied 6/21/07 (Grafteo, J.)
People v Murray	1st Dept: 37 AD3d 247 (Bronx)	denied 6/18/07 (Read, J.)
People v Nash	2d Dept: 38 AD3d 684 (Orange)	denied 6/6/07 (Read, J.)
People v Neely	App Div, 1st Dept: 2007 NY Slip Op 65484(U) (NY)	denied 6/21/07 (Smith, J.)
People v Nieves	1st Dept: 37 AD3d 277 (NY)	denied 6/12/07 (Smith, J.)
People v Nolasco	2d Dept: 37 AD3d 622 (Suffolk)	dismissed 6/4/07 (Smith, J.)
People v O'Neal	4th Dept: 38 AD3d 1305 (Monroe)	denied 6/29/07 (Kaye, Ch.J.)
People v Orr (James)	4th Dept: 38 AD3d 1290 (Monroe)	denied 6/20/07 (Kaye, Ch.J.)

MEMORANDA

849

People v Orr (James)	4th Dept: 38 AD3d 1291 (Monroe)	denied 6/20/07 (Kaye, Ch.J.)
People v Osborne	3d Dept: 38 AD3d 1132 (Otsego)	denied 6/5/07 (Read, J.)
People v Owens	4th Dept: 39 AD3d 1260 (Monroe)	denied 6/27/07 (Kaye, Ch.J.)
People v Pacheco	2d Dept: 38 AD3d 686 (Nassau)	denied 6/22/07 (Smith, J.)
People v Pardner	4th Dept: 37 AD3d 1069 (Monroe)	denied 6/7/07 (Smith, J.)
People v Parisi	2d Dept: 38 AD3d 799 (Suffolk)	denied 6/5/07 (Read, J.)
People v Pena (Roy)	1st Dept: 39 AD3d 395 (NY)	denied 6/21/07 (Grafteo, J.)
People v Pena (Stanley)	1st Dept: 37 AD3d 287 (NY)	denied 6/11/07 (Smith, J.)
People v Pepe	2d Dept: 36 AD3d 721 (Orange)	denied 6/4/07 (Smith, J.)
People v Perez	1st Dept: 37 AD3d 169 (NY)	denied 6/6/07 (Pigott, J.)
People v Pertillar	2d Dept: 37 AD3d 740 (Orange)	denied 6/6/07 (Read, J.)
People v Peterson	App Div, 1st Dept, 2/2/06 (Bronx)	denied reconsideration 6/4/07 (Smith, J.)
People v Pignataro	App Div, 4th Dept, 3/16/07 (Erie)	denied 6/14/07 (Smith, J.)
People v Pizarro	2d Dept: 36 AD3d 943 (Kings)	denied 6/26/07 (Smith, J.)
People v Polite	App Term, 1st Dept: 16 Misc 3d 18 (Bronx)	denied 6/25/07 (Grafteo, J.)
People v Pounds	4th Dept: 37 AD3d 1129 (Oneida)	denied 6/8/07 (Smith, J.)
People v Powell	1st Dept: 34 AD3d 362 (Bronx)	withdrawn 6/12/07 (Ciparick, J.)
People v Pratt	1st Dept: 39 AD3d 315 (NY)	denied 6/27/07 (Kaye, Ch.J.)
People v Preston S.	1st Dept: 39 AD3d 263 (NY)	denied 6/27/07 (Smith, J.)
People v Pruitt	2d Dept: 37 AD3d 623 (Nassau)	denied 6/15/07 (Smith, J.)
People v Quezada	1st Dept: 39 AD3d 400 (NY)	denied 6/21/07 (Grafteo, J.)
People v Ramirez	App Term, 1st Dept: 14 Misc 3d 140(U) (Bronx)	denied 6/22/07 (Ciparick, J.)
People v Reed	2d Dept: 40 AD3d 660 (Westchester)	denied 6/25/07 (Grafteo, J.)
People v Reid	2d Dept: 37 AD3d 498 (Kings)	denied 6/13/07 (Ciparick, J.)

People v Rembert	1st Dept: 37 AD3d 367 (NY)	denied 6/13/07 (Smith, J.)
People v Reyna	1st Dept: 37 AD3d 312 (NY)	denied 6/15/07 (Pigott, J.)
People v Rhem	App Div, 3d Dept, 2/21/07 (Albany)	denied 6/5/07 (Read, J.)
People v Rhodes	2d Dept: 37 AD3d 741 (Queens)	denied 6/22/07 (Ciparick, J.)
People v Roacher	2d Dept: 39 AD3d 569 (Queens)	denied 6/26/07 (Read, J.)
People v Rodriguez (Carlos)	2d Dept: 33 AD3d 730 (Westchester)	denied 6/13/07 (Smith, J.)
People v Rodriguez (Larry)	App Div, 1st Dept: 2007 NY Slip Op 68122(U) (Bronx)	dismissed 6/26/07 (Smith, J.)
People v Roe	App Div, 4th Dept, 5/14/07 (Oswego)	dismissed 6/22/07 (Ciparick, J.)
People v Rogner	App Div, 3d Dept, 5/25/07 (Sullivan)	dismissed 6/29/07 (Grafteo, J.)
People v Roldan	1st Dept: 37 AD3d 300 (NY)	denied 6/22/07 (Ciparick, J.)
People v Ross	4th Dept: 39 AD3d 1243 (Onondaga)	denied 6/20/07 (Kaye, Ch.J.)
People v Saavedra	1st Dept: 39 AD3d 316 (Bronx)	denied 6/8/07 (Grafteo, J.)
People v Salaam	3d Dept: 36 AD3d 969 (Schenectady)	granted 6/28/07 (Smith, J.)
People v Salcedo	1st Dept: 40 AD3d 356 (NY)	dismissed 6/18/07 (Pigott, J.)
People v Sanchez (Anthony)	1st Dept: 39 AD3d 399 (NY)	denied 6/28/07 (Smith, J.)
People v Sanchez (Carlos)	1st Dept: 38 AD3d 386 (NY)	denied 6/15/07 (Pigott, J.)
People v Sanders (Charles)	App Div, 1st Dept: 2007 NY Slip Op 61290(U) (NY)	denied 6/5/07 (Smith, J.)
People v Sanders (Gerald)	App Div, 4th Dept, 2/28/07 (Monroe)	dismissed 6/12/07 (Smith, J.)
People v Santos	2d Dept: 38 AD3d 574 (Suffolk)	denied 6/18/07 (Read, J.)
People v Saunders	1st Dept: 38 AD3d 394 (Bronx)	denied 6/20/07 (Smith, J.)
People v Sawyer (Trazz)	App Div, 3d Dept, 3/30/07 (Tompkins)	dismissed 6/19/07 (Smith, J.)
People v Sawyer (Trazz)	App Div, 3d Dept, 3/30/07 (Tompkins)	denied 6/19/07 (Smith, J.)
People v Serrano (David)	4th Dept: 37 AD3d 1039 (Niagara)	denied 6/14/07 (Ciparick, J.)

MEMORANDA

851

People v Serrano (David)	4th Dept: 37 AD3d 1040 (Niagara)	denied 6/14/07 (Ciparick, J.)
People v Shankle	2d Dept: 37 AD3d 742 (Kings)	denied 6/18/07 (Smith, J.)
People v Sharp	1st Dept: 39 AD3d 261 (NY)	denied 6/21/07 (Smith, J.)
People v Simmons (Andre)	1st Dept: 39 AD3d 288 (NY)	denied 6/28/07 (Read, J.)
People v Simmons (Servino)	1st Dept: 39 AD3d 235 (NY)	denied 6/18/07 (Read, J.)
People v Simon	2d Dept: 35 AD3d 894 (Suffolk)	denied 6/26/07 (Pigott, J.)
People v Simpson	3d Dept: 35 AD3d 901 (Sullivan)	denied reconsideration 6/21/07 (Grafteo, J.)
People v Singleton	1st Dept: 39 AD3d 375 (Bronx)	denied 6/8/07 (Grafteo, J.)
People v Smith (Aurel)	2d Dept: 35 AD3d 769 (Westchester)	denied 6/8/07 (Kaye, Ch.J.)
People v Smith (Keith)	4th Dept: 37 AD3d 1141 (Erie)	denied 6/18/07 (Smith, J.)
People v Smith (Patrice)	App Div, 2d Dept: 2007 NY Slip Op 69943(U) (Kings)	dismissed 6/29/07 (Grafteo, J.)
People v Smith (Roy)	2d Dept: 35 AD3d 635 (Kings)	denied reconsideration 6/5/07 (Read, J.)
People v Smith (Terry)	App Div, 2d Dept: 2007 NY Slip Op 70650(U) (Suffolk)	dismissed 6/11/07 (Kaye, Ch.J.)
People v Smith (Terry)	App Div, 2d Dept: 2007 NY Slip Op 68589(U) (Suffolk)	dismissed 6/12/07 (Ciparick, J.)
People v Smith (Wishart)	App Term, 2d Dept: 15 Misc 3d 128(A) (Kings)	denied 6/5/07 (Read, J.)
People v Sniper	4th Dept: 39 AD3d 1138 (Monroe)	denied 6/26/07 (Smith, J.)
People v Solivan	4th Dept: 39 AD3d 1196 (Monroe)	denied 6/29/07 (Kaye, Ch.J.)
People v Stearns	3d Dept: 39 AD3d 973 (Fulton)	denied 6/19/07 (Jones, J.)
People v Stephenson	1st Dept: 36 AD3d 560 (NY)	denied 6/8/07 (Smith, J.)
People v Strong	4th Dept: 37 AD3d 1207 (Onondaga)	denied 6/26/07 (Smith, J.)
People v Szczygiel	4th Dept: 39 AD3d 1258 (Niagara)	denied 6/26/07 (Smith, J.)
People v Tatum	2d Dept: 39 AD3d 571 (Suffolk)	denied 6/26/07 (Jones, J.)

People v Taylor (Keith)	App Div, 1st Dept: 2007 NY Slip Op 69574(U) (NY)	dismissed 6/21/07 (Grafteo, J.)
People v Taylor (Kenny)	1st Dept: 39 AD3d 373 (Bronx)	denied 6/21/07 (Grafteo, J.)
People v Terry	4th Dept: 38 AD3d 1255 (Onondaga)	denied 6/8/07 (Kaye, Ch.J.)
People v Tester	4th Dept: 39 AD3d 1206 (Niagara)	denied 6/19/07 (Jones, J.)
People v Thomas	3d Dept: 38 AD3d 1134 (Albany)	denied 6/19/07 (Smith, J.)
People v Thompson	4th Dept: 38 AD3d 1369 (Wayne)	denied 6/8/07 (Kaye, Ch.J.)
People v Torres	4th Dept: 38 AD3d 1348 (Erie)	denied 6/26/07 (Read, J.)
People v Twitty	2d Dept: 36 AD3d 723 (Westchester)	denied 6/14/07 (Ciparick, J.)
People v Tyler	App Div, 1st Dept: 2007 NY Slip Op 69574(U) (NY)	dismissed 6/21/07 (Grafteo, J.)
People v Underwood	3d Dept: 37 AD3d 907 (Saratoga)	denied 6/15/07 (Pigott, J.)
People v Urbaez	App Term, 1st Dept: 14 Misc 3d 135(A) (Bronx)	granted 6/28/07 (Smith, J.)
People v Val	3d Dept: 38 AD3d 928 (Rensselaer)	denied 6/6/07 (Kaye, Ch.J.)
People v Vallevalleix	1st Dept: 39 AD3d 372 (NY)	denied 6/25/07 (Grafteo, J.)
People v Vega (Henry)	2d Dept: 40 AD3d 1020 (Queens)	dismissed 6/11/07 (Kaye, Ch.J.)
People v Vega (Richard)	1st Dept: 37 AD3d 351 (NY)	denied 6/5/07 (Read, J.)
People v Vizcarrondo	1st Dept: 38 AD3d 210 (NY)	denied 6/15/07 (Pigott, J.)
People v Voymas	4th Dept: 39 AD3d 1182 (Ontario)	denied 6/19/07 (Jones, J.)
People v Wade	2d Dept: 38 AD3d 801 (Queens)	denied 6/25/07 (Grafteo, J.)
People v Walker	2d Dept: 35 AD3d 512 (Queens)	denied reconsideration 6/5/07 (Read, J.)
People v Wall	4th Dept: 38 AD3d 1341 (Niagara)	denied 6/5/07 (Read, J.)
People v Ward	App Div, 2d Dept: 2007 NY Slip Op 67073(U) (Queens)	denied reconsideration 6/27/07 (Kaye, Ch.J.)
People v White	2d Dept: 40 AD3d 662 (Kings)	granted 6/28/07 (Grafteo, J.)

MEMORANDA

853

People v Wilder	1st Dept: 38 AD3d 312 (NY)	denied 6/15/07 (Pigott, J.)
People v Williams (Antonio)	4th Dept: 39 AD3d 1200 (Monroe)	denied 6/26/07 (Smith, J.)
People v Williams (Darren)	App Div, 2d Dept, 5/25/06 (Orange)	denied reconsideration 6/5/07 (Read, J.)
People v Williams (Reginald)	2d Dept: 39 AD3d 675 (Suffolk)	denied 6/7/07 (Jones, J.)
People v Williams (Willie)	App Div, 3d Dept, 2/28/07 (Albany)	denied 6/29/07 (Kaye, Ch.J.)
People v Wilson (Eddie)	4th Dept: 38 AD3d 1326 (Onondaga)	denied 6/6/07 (Read, J.)
People v Wilson (Tony)	2d Dept: 37 AD3d 855 (Queens)	denied 6/18/07 (Smith, J.)
People v Winchester	4th Dept: 38 AD3d 1336 (Niagara)	denied 6/22/07 (Ciparick, J.)
People v Woodson	4th Dept: 34 AD3d 1208 (Erie)	denied reconsideration 6/15/07 (Kaye, Ch.J.)
People v Wright (Darryle)	3d Dept: 38 AD3d 1004 (Albany)	denied 6/7/07 (Pigott, J.)
People v Wright (Henry)	4th Dept: 38 AD3d 1232 (Erie)	denied 6/1/07 (Kaye, Ch.J.)
People v Yarborough (Aaron)	4th Dept: 39 AD3d 1276 (Erie)	denied 6/26/07 (Read, J.) (Appeal No. 1)
People v Yarborough (Aaron)	4th Dept: 39 AD3d 1276 (Erie)	denied 6/26/07 (Read, J.) (Appeal No. 2)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(June 1, 2007 through June 30, 2007)

People v Cabrera	3d Dept: 40 AD3d 1139 (Sullivan)	granted 6/19/07 (Mugglin, J.)
------------------	----------------------------------	----------------------------------

* Includes only applications that were granted.

[872 NE2d 1196, 840 NYS2d 890]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANK
LAPETINA, Appellant.

Argued June 7, 2007; decided July 2, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 28, 2006. The Appellate Division modified, on the law, a judgment of the Supreme Court, Queens County (Arthur J. Cooperman, J.), which had convicted defendant, upon a jury verdict, of burglary in the first degree, assault in the third degree (two counts) and endangering the welfare of a child. The modification consisted of reducing the conviction of burglary in the first degree to burglary in the second degree and vacating the sentence imposed thereon, vacating the convictions of assault in the third degree and the sentences imposed thereon, and remitting to Supreme Court for resentencing on the burglary in the second degree count and for a new trial on the counts of assault in the third degree. The Appellate Division affirmed the judgment as modified.

People v LaPetina, 34 AD3d 836, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — “Choice of Evils” Instruction

1. In a criminal prosecution for burglary, assault and other offenses, defendant failed to preserve for review in the Court of Appeals his contention that he was entitled to a Penal Law § 35.05 “choice of evils” instruction for the burglary offense because he failed to alert the trial court that, in addition to the self-defense instruction discussed during the charge conference (Penal Law § 35.15), he was also seeking a “choice of evils” instruction. Defendant’s alternative claim that, since the Appellate Division reversed his assault convictions, that Court should have reversed the burglary conviction because it was “contaminated” by a charging error associated with the assault counts, was without merit.

Crimes — Evidence — Photographic Evidence

2. In a criminal prosecution for assault and other offenses, defendant’s argument that the trial court erred in precluding admission of photographs of an injury suffered by a person who was not present during the altercation involving defendant was without merit. The court did not abuse its discretion in holding that the proffered evidence was collateral and that its prejudicial effect would outweigh any potential probative value.

APPEARANCES OF COUNSEL

White & White, New York City (*Brendan White* and *Diarmuid White* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (Linda Cantoni and John M. Castellano of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

After a jury trial, defendant was convicted of burglary in the first degree, two counts of assault in the third degree and endangering the welfare of a child. The Appellate Division reversed the assault convictions, concluding that a retrial was warranted due to the trial court's denial of defendant's request for a self-defense charge (Penal Law § 35.15). With respect to the burglary conviction, the Appellate Division reduced the offense to burglary in the second degree due to a deficiency in the indictment. But the Court rejected defendant's claim that he was entitled to a new trial on the burglary charge because the trial court failed to give a "choice of evils" instruction (Penal Law § 35.05).

[1] In this Court, defendant asserts that he was entitled to a Penal Law § 35.05 charge for the burglary offense. This contention is not preserved for review in this Court because defendant failed to alert the trial court that, in addition to the Penal Law § 35.15 self-defense instruction discussed during the charge conference, he was also seeking a "choice of evils" instruction (*see* Penal Law § 35.05; *People v Craig*, 78 NY2d 616 [1991]). Defendant's alternative claim that, having reversed his assault convictions, the Appellate Division should have reversed the burglary conviction because it was "contaminated" by the charging error associated with the assault counts is without merit.

[2] We further reject defendant's argument that the trial court erred in precluding admission of photographs of an injury suffered by a person who was not present during the altercation involving defendant. The court did not abuse its discretion in holding that the proffered evidence was collateral and that its prejudicial effect would outweigh any potential probative value (*see People v Pavao*, 59 NY2d 282 [1983]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[872 NE2d 868, 840 NYS2d 755]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA LINER, Appellant.

Argued June 6, 2007; decided July 2, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 19, 2006. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rene K. Uviller, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree (two counts), burglary in the third degree and petit larceny.

People v Liner, 33 AD3d 479, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Right of Confrontation

In a prosecution for burglary and other offenses arising from defendant's theft of merchandise at a chain store, wherein the People introduced into evidence two trespass notices revoking defendant's privilege to enter the chain stores, because defendant failed to assert at the time of trial that the admission of the notices violated his right of confrontation, the issue was not preserved for review in the Court of Appeals.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Natalie Rea* and *Steven Banks* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Gary S. Snitow* and *David M. Cohn* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted, after a jury trial, of the crimes of burglary in the third degree, petit larceny, and two counts of criminal possession of a weapon in the third degree for stealing merchandise at a Duane Reade store. At trial, the People introduced into evidence two trespass notices revoking defendant's privilege to enter Duane Reade stores. Because defendant failed to assert at the time of the trial that the admission of the notices violated his right of confrontation, the issue is not

preserved for our review (*see generally People v Gray*, 86 NY2d 10 [1995]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

ELIZABETH ALDEN, Appellant, v ST. JOSEPH'S HOSPITAL HEALTH CENTER, Respondent.

Submitted June 11, 2007; decided July 2, 2007

Reported below, 37 AD3d 1047.

Motion for reconsideration of this Court's May 8, 2007 dismissal order denied [*see* 8 NY3d 975].

In the Matter of Liquidation of AMERICAN DRUGGISTS' INSURANCE COMPANY. SUPERINTENDENT OF INSURANCE OF THE STATE OF NEW YORK, Respondent, v DENIS D. KENNY, Appellant.

Submitted March 12, 2007; decided July 2, 2007

Reported below, 15 AD3d 268.

Motion for leave to appeal from the February 5, 2007 "Stipulation of Discontinuance with Prejudice," dismissed upon the ground that that paper does not finally determine the action within the meaning of the Constitution; the December 6, 2006 judgment of Supreme Court is the final paper in this action and a motion for leave to appeal from that judgment would be untimely (*see* CPLR 5513 [b]).

In the Matter of CARL A.G., Appellant, v MYRIAM L.G., Respondent.

Submitted May 29, 2007; decided July 2, 2007

Reported below, 39 AD3d 1232.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CITIZENS AGAINST SPRAWL-MART, by LEO F. AL-CURI, et al., Appellants, v CITY OF NIAGARA FALLS et al., Respondents.

Submitted May 14, 2007; decided July 2, 2007

Reported below, 35 AD3d 1190.

Motion, insofar as it seeks leave to appeal as against Benderson Development Company, Inc. and Randall Benderson 1993-1 Trust, dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [6]); motion, insofar as it seeks leave to appeal as against the City of Niagara Falls, the City Council of Niagara Falls, the Planning Board of the City of Niagara Falls and the Zoning Board of Appeals of the City of Niagara Falls, denied.

In the Matter of DISNEY ENTERPRISES, INC., et al., Appellants, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted May 21, 2007; decided July 2, 2007

Reported below, 40 AD3d 49.

Motion by Council on State Taxation for leave to file a letter amicus curiae on the Court of Appeals' examination of its subject matter jurisdiction of the appeal herein granted and the letter is accepted as filed.

In the Matter of EDMONA H. et al. CORPORATION COUNSEL OF THE CITY OF NEW YORK et al., Respondents; HARRY EDMOND R., Appellant.

Submitted May 7, 2007; decided July 2, 2007

Reported below, 2007 NY Slip Op 65250(U).

Motion for leave to appeal dismissed upon the ground that appellant is not a party to this proceeding.

JOHN FESTA et al., Appellants, v NEW YORK CITY DEPARTMENT OF CONSUMER AFFAIRS et al., Respondents.

Submitted June 25, 2007; decided July 2, 2007

Reported below, 37 AD3d 343.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Estate of JOAN MARIE FOTIADES, Deceased.
GREGORY FOTIADES et al., Respondents; DAPHNE FOTIADES,
Appellant.

Submitted May 21, 2007; decided July 2, 2007

Reported below, 38 AD3d 892.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ELROY HENDRIX, Appellant, v GLENN S. GOORD,
as Commissioner of Correctional Services, Respondent.

Submitted May 29, 2007; decided July 2, 2007

Reported below, 36 AD3d 1200.

Motion to vacate this Court's May 1, 2007 order dismissing the appeal for want of prosecution granted and appeal reinstated [see 8 NY3d 980]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

HOUSEHOLD FINANCE REALTY CORPORATION OF NEW YORK, Respondent, v PETER GONZALEZ et al., Appellants, et al., Defendants.

Submitted June 25, 2007; decided July 2, 2007

Reported below, 39 AD3d 1138.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

MARIA LARocca, Respondent, v SALVATORE P. DERICCO, Appellant.

Submitted June 11, 2007; decided July 2, 2007

Reported below, 39 AD3d 486.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MALCOLM G., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted June 25, 2007; decided July 2, 2007

Reported below, 38 AD3d 662.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SHANE PEEK, Appellant, v ROBERT DENNISON, as Chairman of New York State Division of Parole, Respondent.

Submitted May 29, 2007; decided July 2, 2007

Reported below, 39 AD3d 1239.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ARTHUR BRYANT, Appellant.

Submitted May 29, 2007; decided July 2, 2007

Reported below, 30 AD3d 1131.

Motion to amend remittitur denied [*see* 8 NY3d 530].

RIVERSIDE CAPITAL ADVISORS, INC., Appellant, and WINCHESTER GLOBAL TRUST COMPANY LIMITED, Respondent, v FIRST SECURED CAPITAL CORP. et al., Appellants, et al., Defendants. THOMAS B. DONOVAN et al., Nonparty Appellants.

Submitted May 7, 2007; decided July 2, 2007

Reported below, 28 AD3d 452.

Motion for leave to appeal dismissed upon the ground that the “Second Amended Judgment,” dated and entered February 8, 2007, sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GURDHIAN SINGH, Appellant, v JON FRIEDSON et al., Respondents.

Submitted June 11, 2007; decided July 2, 2007

Reported below, 36 AD3d 605.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SUSAN SPENCER, Respondent, v JAMES SPENCER, Appellant.

Submitted May 7, 2007; decided July 2, 2007

Reported below, 35 AD3d 980.

Motion by the American Academy of Matrimonial Lawyers, New York Chapter, et al. for leave to file a brief *amici curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of MARIA E. TORRES, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted June 11, 2007; decided July 2, 2007

Reported below, 32 AD3d 1093.

Motion for reargument of motion for leave to appeal denied [see 8 NY3d 811].

In the Matter of TOUCANS, LLC, Appellant, v NEW YORK STATE LIQUOR AUTHORITY, Respondent.

Submitted April 23, 2007; decided July 2, 2007

Reported below, 37 AD3d 1052.

Motion by Empire State Restaurant & Tavern Association for

leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of **RAYMOND M. WEINSTEIN et al., Appellants, v
CITY OF NEW YORK DEPARTMENT OF HOUSING PRESERVATION
AND DEVELOPMENT et al., Respondents.**

Submitted June 25, 2007; decided July 2, 2007

Reported below, 39 AD3d 764.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(July 1, 2007 through July 31, 2007)

Filannino v Triborough Bridge & Tunnel Auth.	1st Dept: 34 AD3d 280	7/18/07
McAllister v State of New York	App Div, 3d Dept, Mar. 29, 2007	7/18/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2007 through July 31, 2007)

People v Abdallah	App Div, 4th Dept, 6/11/07 (Monroe)	dismissed 7/2/07 (Kaye, Ch.J.)
People v Abdullah	App Div, 3d Dept, 1/31/07 (Broome)	denied 7/12/07 (Pigott, J.)
People v Ahmed	2d Dept: 40 AD3d 869 (Queens)	denied 7/24/07 (Smith, J.)
People v Ambubakr	1st Dept: 40 AD3d 273 (NY)	denied 7/6/07 (Kaye, Ch.J.)
People v Amuso	1st Dept: 39 AD3d 425 (NY)	denied 7/6/07 (Ciparick, J.)
People v Anjum	App Term, 1st Dept: 15 Misc 3d 135(A) (NY)	denied 7/26/07 (Jones, J.)

MEMORANDA

863

People v Armstrong	App Div, 2d Dept: 2007 NY Slip Op 69107(U) (Queens)	dismissed 7/24/07 (Smith, J.)
People v Ashley	App Term, 2d Dept: 15 Misc 3d 80 (Suffolk)	denied 7/31/07 (Pigott, J.)
People v Barnes (Aurello)	2d Dept: 39 AD3d 658 (Queens)	denied 7/24/07 (Smith, J.)
People v Barnes (Escalante)	2d Dept: 39 AD3d 658 (Queens)	denied 7/24/07 (Smith, J.)
People v Barrett	3d Dept: 39 AD3d 1088 (Sullivan)	denied 7/17/07 (Read, J.)
People v Bazemore	1st Dept: 40 AD3d 228 (NY)	denied 7/10/07 (Ciparick, J.)
People v Benjamin	App Div, 1st Dept: 2007 NY Slip Op 69567(U) (NY)	dismissed 7/12/07 (Ciparick, J.)
People v Bennefield	4th Dept: 34 AD3d 1371 (Erie)	denied reconsideration 7/24/07 (Smith, J.)
People v Benoit	1st Dept: 39 AD3d 336 (NY)	denied 7/24/07 (Smith, J.)
People v Benson	2d Dept: 38 AD3d 563 (Kings)	denied 7/5/07 (Jones, J.)
People v Bloom	App Term, 1st Dept: 13 Misc 3d 136(A) (NY)	denied 7/20/07 (Kaye, Ch.J.)
People v Boyce	2d Dept: 36 AD3d 711 (Kings)	denied 7/31/07 (Pigott, J.)
People v Boyer	3d Dept: 36 AD3d 1084 (Albany)	denied 7/5/07 (Ciparick, J.)
People v Bradley	2d Dept: 38 AD3d 793 (Queens)	denied 7/12/07 (Pigott, J.)
People v Brandi E.	4th Dept: 38 AD3d 1218 (Onondaga)	denied 7/3/07 (Ciparick, J.)
People v Brandi G.	4th Dept: 38 AD3d 1218 (Onondaga)	denied 7/3/07 (Ciparick, J.)
People v Brinson	2d Dept: 39 AD3d 872 (Kings)	denied 7/24/07 (Smith, J.)
People v Brown	2d Dept: 38 AD3d 795 (Queens)	denied 7/3/07 (Ciparick, J.)
People v Burney	4th Dept: 41 AD3d 1221 (Orleans)	denied 7/26/07 (Grafteo, J.)
People v Callender	2d Dept: 37 AD3d 486 (Westchester)	denied 7/12/07 (Pigott, J.)
People v Canales	App Div, 2d Dept: 2007 NY Slip Op 72101(U) (Richmond)	dismissed 7/12/07 (Jones, J.)
People v Cancer	App Div, 3d Dept, 3/19/07 (Albany)	denied 7/26/07 (Jones, J.)
People v Carter (Jonathan)	4th Dept: 39 AD3d 1226 (Erie)	denied 7/26/07 (Jones, J.)

People v Carter (Kevin)	3d Dept: 40 AD3d 1211 (Broome)	denied 7/6/07 (Ciparick, J.)
People v Cephus	2d Dept: 39 AD3d 661 (Kings)	denied 7/3/07 (Smith, J.)
People v Cheshire	2d Dept: 39 AD3d 770 (Queens)	denied 7/6/07 (Ciparick, J.)
People v Chew	4th Dept: 39 AD3d 1195 (Niagara)	denied 7/16/07 (Ciparick, J.)
People v Childs	1st Dept: 40 AD3d 270 (NY)	denied 7/26/07 (Grafteo, J.)
People v Chung	2d Dept: 39 AD3d 558 (Westchester)	denied 7/5/07 (Ciparick, J.)
People v Coleman (Shawn)	2d Dept: 37 AD3d 489 (Nassau)	denied 7/31/07 (Pigott, J.)
People v Coleman (Shawn)	2d Dept: 37 AD3d 491 (Nassau)	denied 7/31/07 (Pigott, J.)
People v Covell	County Ct, 4/23/07 (Clinton)	denied 7/17/07 (Read, J.)
People v Cox	1st Dept: 37 AD3d 211 (NY)	denied 7/12/07 (Pigott, J.)
People v Crawford	1st Dept: 39 AD3d 426 (Bronx)	denied 7/6/07 (Ciparick, J.)
People v Cruise	App Div, 4th Dept, 6/11/07 (Monroe)	dismissed 7/2/07 (Kaye, Ch.J.)
People v Damanski	3d Dept: 39 AD3d 1023 (Madison)	denied 7/26/07 (Jones, J.)
People v Daniel	2d Dept: 37 AD3d 731 (Nassau)	denied 7/3/07 (Ciparick, J.)
People v Davalloo	2d Dept: 39 AD3d 559 (Westchester)	denied 7/26/07 (Jones, J.)
People v Davis (Raul)	1st Dept: 39 AD3d 345 (Bronx)	denied 7/26/07 (Jones, J.)
People v Davis (Rosemary)	4th Dept: 39 AD3d 1241 (Oneida)	denied 7/25/07 (Smith, J.)
People v Dawkins	2d Dept: 37 AD3d 732 (Kings)	denied 7/12/07 (Pigott, J.)
People v DeMicco	4th Dept: 39 AD3d 1262 (Monroe)	denied 7/26/07 (Jones, J.)
People v Dennis	2d Dept: 39 AD3d 875 (Kings)	denied 7/10/07 (Ciparick, J.)
People v Diaz	4th Dept: 38 AD3d 1314 (Monroe)	denied 7/18/07 (Read, J.)
People v Edwards	3d Dept: 38 AD3d 1133 (Ulster)	denied 7/26/07 (Jones, J.)
People v Enrique	2d Dept: 36 AD3d 944 (Kings)	denied 7/6/07 (Ciparick, J.)
People v Estrella	1st Dept: 37 AD3d 277 (NY)	denied 7/12/07 (Pigott, J.)
People v Evans	4th Dept: 38 AD3d 1369 (Ontario)	denied 7/26/07 (Jones, J.)

MEMORANDA

865

People v Fairman (Anthony)	4th Dept: 38 AD3d 1346 (Monroe)	denied 7/3/07 (Ciparick, J.)
People v Fairman (Anthony)	4th Dept: 38 AD3d 1347 (Monroe)	denied 7/3/07 (Ciparick, J.)
People v Flame	3d Dept: 38 AD3d 999 (Albany)	denied 7/26/07 (Jones, J.)
People v Fletcher	2d Dept: 39 AD3d 664 (Dutchess)	denied 7/26/07 (Grafteo, J.)
People v Flowers	2d Dept: 34 AD3d 506 (Orange)	denied reconsideration 7/6/07 (Kaye, Ch.J.)
People v Fofana	App Term, 1st Dept: 15 Misc 3d 136(A) (Bronx)	denied 7/3/07 (Smith, J.)
People v Forino	2d Dept: 39 AD3d 664 (Nassau)	denied 7/6/07 (Ciparick, J.)
People v Foust	2d Dept: 39 AD3d 666 (Kings)	denied 7/26/07 (Jones, J.)
People v Freeman	1st Dept: 40 AD3d 242 (NY)	denied 7/26/07 (Jones, J.)
People v Frieson	1st Dept: 36 AD3d 542 (Bronx)	denied 7/6/07 (Kaye, Ch.J.)
People v Frith	App Div, 1st Dept: 2007 NY Slip Op 69175(U) (NY)	dismissed 7/24/07 (Smith, J.)
People v Gatling	1st Dept: 38 AD3d 239 (NY)	denied 7/12/07 (Pigott, J.)
People v Gause	3d Dept: 38 AD3d 999 (Albany)	denied 7/26/07 (Jones, J.)
People v Gomez	1st Dept: 41 AD3d 238 (NY)	dismissed 7/26/07 (Pigott, J.)
People v Gonzalez	1st Dept: 38 AD3d 439 (NY)	denied 7/3/07 (Ciparick, J.)
People v Graham	1st Dept: 41 AD3d 119 (NY)	denied 7/26/07 (Grafteo, J.)
People v Greene	1st Dept: 39 AD3d 268 (NY)	denied 7/20/07 (Kaye, Ch.J.)
People v Grey	2d Dept: 34 AD3d 832 (Queens)	denied 7/12/07 (Pigott, J.)
People v Guillen	2d Dept: 37 AD3d 852 (Queens)	denied 7/12/07 (Pigott, J.)
People v Handy	1st Dept: 38 AD3d 449 (NY)	denied 7/12/07 (Pigott, J.)
People v Hardy	4th Dept: 38 AD3d 1169 (Jefferson)	denied 7/17/07 (Kaye, Ch.J.)
People v Hartwick	1st Dept: 40 AD3d 319 (NY)	denied 7/6/07 (Kaye, Ch.J.)
People v Headley	3d Dept: 38 AD3d 1007 (Broome)	denied 7/20/07 (Kaye, Ch.J.)
People v Hooper	County Ct, 4/26/07 (Onondaga)	denied 7/20/07 (Kaye, Ch.J.)

People v Howard	2d Dept: 37 AD3d 494 (Nassau)	denied 7/12/07 (Pigott, J.)
People v Igbinosun	4th Dept: 39 AD3d 1257 (Erie)	denied 7/3/07 (Smith, J.)
People v Jackson	1st Dept: 40 AD3d 280 (NY)	denied 7/6/07 (Ciparick, J.)
People v Jenneman	2d Dept: 37 AD3d 736 (Suffolk)	denied 7/3/07 (Ciparick, J.)
People v Jesus	2d Dept: 38 AD3d 798 (Queens)	denied 7/3/07 (Ciparick, J.)
People v Jing Xiong	2d Dept: 38 AD3d 926 (Westchester)	denied 7/3/07 (Ciparick, J.)
People v Johnson (Rodney)	App Div, 1st Dept: 2007 NY Slip Op 66004(U) (NY)	denied 7/10/07 (Ciparick, J.)
People v Johnson (Ted)	App Div, 1st Dept: 2007 NY Slip Op 66004(U) (NY)	denied 7/10/07 (Ciparick, J.)
People v Johnson (Teddy)	App Div, 1st Dept: 2007 NY Slip Op 66004(U) (NY)	denied 7/10/07 (Ciparick, J.)
People v Johnson (Teourialeir)	4th Dept: 38 AD3d 1327 (Erie)	denied 7/3/07 (Ciparick, J.)
People v Jones (Anthony)	App Div, 1st Dept: 2007 NY Slip Op 62544(U) (Bronx)	granted 7/6/07 (Pigott, J.)
People v Jones (King)	4th Dept: 38 AD3d 1272 (Erie)	denied 7/18/07 (Read, J.)
People v Joseph	1st Dept: 38 AD3d 403 (NY)	denied 7/3/07 (Smith, J.)
People v Kelly	2d Dept: 38 AD3d 926 (Westchester)	denied 7/3/07 (Ciparick, J.)
People v Killimayer	2d Dept: 40 AD3d 1118 (Dutchess)	denied 7/25/07 (Smith, J.)
People v Klinger	County Ct, 4/4/07 (Delaware)	denied 7/6/07 (Ciparick, J.)
People v Koonce	4th Dept: 38 AD3d 1286 (Erie)	denied 7/3/07 (Ciparick, J.)
People v Kopliku	2d Dept: 37 AD3d 496 (Orange)	denied 7/12/07 (Pigott, J.)
People v Kulakov	App Div, 3d Dept, 3/29/07 (Franklin)	denied reconsideration 7/25/07 (Smith, J.)
People v Langenbach	3d Dept: 38 AD3d 1105 (Rensselaer)	denied 7/12/07 (Pigott, J.)
People v Leal	2d Dept: 38 AD3d 917 (Westchester)	denied 7/17/07 (Read, J.)
People v Lewis	4th Dept: 39 AD3d 1279 (Onondaga)	denied 7/5/07 (Ciparick, J.)
People v Limontas	1st Dept: 36 AD3d 559 (NY)	denied 7/12/07 (Pigott, J.)
People v London	2d Dept: 38 AD3d 570 (Nassau)	denied 7/3/07 (Ciparick, J.)

MEMORANDA

867

People v Lopez	1st Dept: 39 AD3d 435 (NY)	denied 7/6/07 (Ciparick, J.)
People v Louis	App Term, 2d Dept: 15 Misc 3d 128(A) (Kings)	denied 7/26/07 (Grafteo, J.)
People v MacKenzie (Steven)	App Div, 2d Dept: 2007 NY Slip Op 63399(U) (Nassau)	dismissed 7/17/07 (Read, J.)
People v MacKenzie (Steven)	App Div, 2d Dept: 2007 NY Slip Op 67699(U) (Nassau)	denied 7/17/07 (Read, J.)
People v Mahmood	1st Dept: 38 AD3d 305 (NY)	denied 7/12/07 (Pigott, J.)
People v Marrena	1st Dept: 40 AD3d 321 (NY)	denied 7/26/07 (Jones, J.)
People v Marrero	1st Dept: 40 AD3d 321 (NY)	denied 7/26/07 (Jones, J.)
People v Martinez	4th Dept: 39 AD3d 1159 (Monroe)	denied 7/26/07 (Jones, J.)
People v McCant	1st Dept: 40 AD3d 348 (NY)	denied 7/26/07 (Grafteo, J.)
People v McCollum (Corey)	1st Dept: 40 AD3d 350 (NY)	denied 7/26/07 (Grafteo, J.)
People v McCollum (Corey)	1st Dept: 40 AD3d 350 (Bronx)	denied 7/26/07 (Grafteo, J.)
People v McCoy	2d Dept: 30 AD3d 441 (Kings)	denied 7/24/07 (Smith, J.)
People v McFadden	4th Dept: 39 AD3d 1211 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v McLoyd	2d Dept: 34 AD3d 498 (Suffolk)	denied reconsideration 7/3/07 (Ciparick, J.)
People v Medina	1st Dept: 40 AD3d 356 (NY)	denied 7/17/07 (Read, J.)
People v Medor	1st Dept: 39 AD3d 362 (NY)	denied 7/6/07 (Ciparick, J.)
People v Mitchell	1st Dept: 39 AD3d 375 (NY)	denied 7/6/07 (Ciparick, J.)
People v Monroe (Tyrone)	4th Dept: 39 AD3d 1276 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v Monroe (Tyrone)	4th Dept: 39 AD3d 1279 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v Moore	4th Dept: 39 AD3d 1199 (Monroe)	denied 7/17/07 (Read, J.)
People v Moya	1st Dept: 40 AD3d 234 (Bronx)	denied 7/26/07 (Jones, J.)
People v Munford	2d Dept: 37 AD3d 855 (Kings)	denied reconsideration 7/26/07 (Grafteo, J.)
People v Novak	2d Dept: 40 AD3d 659 (Queens)	denied 7/3/07 (Smith, J.)

People v Nunez	2d Dept: 39 AD3d 879 (Kings)	denied 7/6/07 (Kaye, Ch.J.)
People v Nuniz	2d Dept: 39 AD3d 879 (Kings)	denied 7/6/07 (Kaye, Ch.J.)
People v Oliver	2d Dept: 39 AD3d 880 (Queens)	dismissed 7/25/07 (Smith, J.)
People v Ortiz	4th Dept: 39 AD3d 1268 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v Osborne	2d Dept: 38 AD3d 686 (Kings)	denied 7/5/07 (Ciparick, J.)
People v Patel	4th Dept: 41 AD3d 1287 (Genesee)	denied 7/3/07 (Ciparick, J.)
People v Patterson	1st Dept: 38 AD3d 431 (Bronx)	denied 7/6/07 (Ciparick, J.)
People v Paulino	1st Dept: 36 AD3d 505 (NY)	denied 7/18/07 (Read, J.)
People v Payne	2d Dept: 40 AD3d 660 (Orange)	denied 7/26/07 (Grafteo, J.)
People v Pena	App Term, 1st Dept: 15 Misc 3d 141(A) (Bronx)	denied 7/24/07 (Smith, J.)
People v Perez	3d Dept: 35 AD3d 1030 (Albany)	denied 7/12/07 (Pigott, J.)
People v Perkins	App Div, 3d Dept, 6/1/07 (Rensselaer)	dismissed 7/30/07 (Grafteo, J.)
People v Pettengill	App Div, 3d Dept, 3/30/07 (Madison)	denied 7/3/07 (Ciparick, J.)
People v Phelps	App Div, 1st Dept: 2007 NY Slip Op 69136(U) (NY)	denied 7/26/07 (Grafteo, J.)
People v Phillips	1st Dept: 39 AD3d 399 (Bronx)	denied 7/17/07 (Read, J.)
People v Powell	1st Dept: 39 AD3d 266 (Bronx)	denied 7/26/07 (Jones, J.)
People v Quintana	1st Dept: 36 AD3d 505 (NY)	denied 7/18/07 (Read, J.)
People v Reilly	County Ct, 4/24/07 (Erie)	denied 7/6/07 (Ciparick, J.)
People v Rhodes	App Div, 3d Dept, 2/21/07 (Warren)	denied 7/6/07 (Ciparick, J.)
People v Rice	2d Dept: 39 AD3d 567 (Queens)	denied 7/5/07 (Ciparick, J.)
People v Richards	1st Dept: 38 AD3d 362 (Bronx)	denied 7/3/07 (Smith, J.)
People v Riddick	3d Dept: 34 AD3d 923 (Broome)	denied 7/3/07 (Ciparick, J.)
People v Riedel	2d Dept: 38 AD3d 689 (Suffolk)	denied 7/12/07 (Pigott, J.)
People v Rivers	3d Dept: 37 AD3d 908 (Broome)	denied 7/3/07 (Ciparick, J.)

MEMORANDA

869

People v Robinson	4th Dept: 39 AD3d 1266 (Oneida)	denied 7/20/07 (Kaye, Ch.J.)
People v Rodriguez	2d Dept: 36 AD3d 944 (Kings)	denied 7/6/07 (Ciparick, J.)
People v Rogers	County Ct, 5/24/07 (Erie)	denied 7/10/07 (Ciparick, J.)
People v Rolle	2d Dept: 37 AD3d 624 (Nassau)	denied 7/12/07 (Pigott, J.)
People v Romain	2d Dept: 38 AD3d 573 (Queens)	denied 7/3/07 (Ciparick, J.)
People v Rowe	2d Dept: 38 AD3d 690 (Kings)	denied 7/17/07 (Read, J.)
People v Samad	1st Dept: 39 AD3d 422 (NY)	denied 7/5/07 (Ciparick, J.)
People v Samuels	2d Dept: 39 AD3d 569 (Queens)	denied 7/5/07 (Ciparick, J.)
People v Sanders	3d Dept: 38 AD3d 941 (Albany)	denied 7/12/07 (Pigott, J.)
People v Santana	1st Dept: 40 AD3d 230 (Bronx)	denied 7/6/07 (Ciparick, J.)
People v Saulters	App Div, 4th Dept, 5/10/07 (Erie)	dismissed 7/2/07 (Grafteo, J.)
People v Shears	2d Dept: 40 AD3d 661 (Nassau)	denied 7/26/07 (Jones, J.)
People v Silent	2d Dept: 37 AD3d 625 (Nassau)	denied 7/31/07 (Pigott, J.)
People v Snyder	App Div, 3d Dept, 3/8/07 (Greene)	dismissed 7/17/07 (Read, J.)
People v Stanley	2d Dept: 38 AD3d 923 (Kings)	denied 7/3/07 (Ciparick, J.)
People v Stevenson	4th Dept: 39 AD3d 1185 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v Stover	2d Dept: 36 AD3d 837 (Westchester)	denied 7/12/07 (Pigott, J.)
People v Tafari	2d Dept: 39 AD3d 666 (Kings)	denied 7/26/07 (Jones, J.)
People v Tavares	App Div, 1st Dept: 2007 NY Slip Op 65977(U) (NY)	granted 7/6/07 (Ciparick, J.)
People v Taveras	App Div, 1st Dept: 2007 NY Slip Op 65977(U) (NY)	granted 7/6/07 (Ciparick, J.)
People v Taylor	App Div, 1st Dept: 2007 NY Slip Op 69574(U) (NY)	denied reconsideration 7/19/07 (Grafteo, J.)
People v Thomas (Cloverious)	4th Dept: 39 AD3d 1197 (Monroe)	denied 7/17/07 (Read, J.)
People v Thomas (Edward)	1st Dept: 40 AD3d 232 (NY)	denied 7/24/07 (Smith, J.)

People v Thompson	1st Dept: 32 AD3d 743 (NY)	denied 7/25/07 (Smith, J.)
People v Townsend	2d Dept: 40 AD3d 786 (Kings)	denied 7/6/07 (Kaye, Ch.J.)
People v Trotman	2d Dept: 39 AD3d 881 (Westchester)	denied 7/6/07 (Ciparick, J.)
People v Turner	2d Dept: 37 AD3d 626 (Queens)	denied 7/26/07 (Jones, J.)
People v Tyler	App Div, 1st Dept: 2007 NY Slip Op 69574(U) (NY)	denied reconsideration 7/19/07 (Grafteo, J.)
People v Valentin	1st Dept: 40 AD3d 201 (Bronx)	denied 7/17/07 (Read, J.)
People v Van Dyke	1st Dept: 39 AD3d 280 (NY)	denied 7/24/07 (Smith, J.)
People v Vasquez	1st Dept: 41 AD3d 111 (NY)	dismissed 7/12/07 (Pigott, J.)
People v Vaughn	1st Dept: 36 AD3d 434 (NY)	denied 7/18/07 (Read, J.)
People v Vazquez	App Div, 2d Dept: 2007 NY Slip Op 69474(U) (Nassau)	dismissed 7/12/07 (Pigott, J.)
People v Waisome	2d Dept: 40 AD3d 892 (Queens)	denied 7/10/07 (Ciparick, J.)
People v Walker	App Div, 1st Dept: 2007 NY Slip Op 71547(U) (NY)	dismissed 7/26/07 (Jones, J.)
People v Washington (Daniel)	4th Dept: 39 AD3d 1228 (Monroe)	denied 7/6/07 (Ciparick, J.)
People v Washington (Terrance)	4th Dept: 38 AD3d 1339 (Monroe)	denied 7/3/07 (Ciparick, J.)
People v Washington (Terrance)	4th Dept: 38 AD3d 1341 (Monroe)	denied 7/3/07 (Ciparick, J.)
People v Washko	1st Dept: 40 AD3d 277 (Bronx)	denied 7/3/07 (Smith, J.)
People v Watkins	1st Dept: 40 AD3d 290 (NY)	denied 7/6/07 (Ciparick, J.)
People v Wesley	App Div, 3d Dept, 3/30/07 (Broome)	denied 7/6/07 (Kaye, Ch.J.)
People v White	1st Dept: 38 AD3d 320 (NY)	denied 7/3/07 (Ciparick, J.)
People v Wilkinson	1st Dept: 39 AD3d 336 (NY)	denied 7/3/07 (Smith, J.)
People v Willard	App Div, 1st Dept: 2007 NY Slip Op 71547(U) (NY)	dismissed 7/26/07 (Jones, J.)
People v Williams (Darren)	2d Dept: 34 AD3d 506 (Orange)	denied reconsideration 7/6/07 (Kaye, Ch.J.)

MEMORANDA

871

People v Williams (Gabriel)	4th Dept: 38 AD3d 1301 (Erie)	denied 7/3/07 (Ciparick, J.)
People v Williams (Nathaniel)	4th Dept: 39 AD3d 1269 (Monroe)	denied 7/26/07 (Jones, J.)
People v Williams (Pierre)	1st Dept: 38 AD3d 327 (NY)	denied 7/26/07 (Jones, J.)
People v Williams (Ronnie)	2d Dept: 39 AD3d 776 (Suffolk)	denied 7/5/07 (Ciparick, J.)
People v Wynn	2d Dept: 40 AD3d 893 (Dutchess)	denied 7/26/07 (Grafteo, J.)

In the Matter of JOHN J. KEENAN et al., Respondents, v CHEMUNG
COUNTY BOARD OF ELECTIONS, Respondent, and NANETTE
M. MOSS, Appellant.

Submitted August 29, 2007; decided August 29, 2007

Reported below, 43 AD3d 623.

Motion for leave to file an affidavit amicus curiae on the mo-
tion for leave to appeal herein granted and the affidavit is ac-
cepted as filed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(August 1, 2007 through August 31, 2007)

People v Hunter	3d Dept: 41 AD3d 885	8/31/07
People v Morris	Madison County Ct, May 2, 2007	8/7/07
People ex rel. Whaley v Graham	4th Dept: 39 AD3d 1232	8/7/07

APPEALS WITHDRAWN AND DISCONTINUED

(August 1, 2007 through August 31, 2007)

Optic Plus Enters., Ltd. v Bausch & Lomb Inc.	4th Dept: 37 AD3d 1185	8/9/07
Meegan v Progressive Ins. Co.	4th Dept: 43 AD3d 182	8/17/07
Meegan v Progressive Ins. Co.	4th Dept: 43 AD3d 194	8/17/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2007 through August 31, 2007)

People v Abreu	1st Dept: 39 AD3d 413 (Bronx)	denied 8/16/07 (Smith, J.)
People v Abreu-Guzman	1st Dept: 39 AD3d 413 (Bronx)	denied 8/16/07 (Smith, J.)
People v Abrue	1st Dept: 39 AD3d 413 (Bronx)	denied 8/16/07 (Smith, J.)
People v Abruzzese	App Div, 1st Dept: 2007 NY Slip Op 69153(U) (Bronx)	denied 8/16/07 (Smith, J.)
People v Adams	3d Dept: 39 AD3d 1081 (Clinton)	denied 8/2/07 (Read, J.)
People v Adelman	2d Dept: 36 AD3d 926 (Richmond)	denied 8/8/07 (Pigott, J.)
People v Ahib	App Div, 1st Dept: 2007 NY Slip Op 64990(U) (Bronx)	denied 8/22/07 (Pigott, J.)
People v Albanese	App Term, 2d Dept: 16 Misc 3d 126(A) (Westchester)	denied 8/20/07 (Kaye, Ch.J.)
People v Almeyda	App Div, 1st Dept: 2007 NY Slip Op 66609(U) (NY)	denied 8/21/07 (Jones, J.)
People v Archbold	1st Dept: 40 AD3d 403 (NY)	denied 8/16/07 (Smith, J.)
People v Armstrong	App Div, 1st Dept: 2007 NY Slip Op 63430(U) (NY)	denied 8/9/07 (Ciparick, J.)
People v Athanasatos	3d Dept: 40 AD3d 1263 (Rensselaer)	denied 8/9/07 (Ciparick, J.)
People v Atkins	4th Dept: 39 AD3d 1230 (Monroe)	denied 8/13/07 (Kaye, Ch.J.)
People v Badette	2d Dept: 40 AD3d 871 (Queens)	denied 8/2/07 (Read, J.)
People v Baez	2d Dept: 41 AD3d 612 (Queens)	denied 8/23/07 (Pigott, J.) (Case No. 81)
People v Baker	4th Dept: 41 AD3d 1323 (Monroe)	denied 8/27/07 (Smith, J.)
People v Bald	4th Dept: 41 AD3d 1199 (Niagara)	denied 8/16/07 (Smith, J.)
People v Baston	2d Dept: 40 AD3d 775 (Kings)	denied 8/21/07 (Read, J.)
People v Batista	2d Dept: 41 AD3d 728 (Kings)	denied 8/31/07 (Pigott, J.)
People v Baxter	2d Dept: 39 AD3d 871 (Westchester)	denied 8/30/07 (Smith, J.)
People v Benitez	3d Dept: 39 AD3d 1029 (Clinton)	denied 8/22/07 (Pigott, J.)
People v Benjamin	App Div, 1st Dept: 2007 NY Slip Op 74276(U) (NY)	dismissed 8/23/07 (Ciparick, J.)
People v Bennett	2d Dept: 37 AD3d 483 (Kings)	denied 8/20/07 (Kaye, Ch.J.)

MEMORANDA

873

People v Billups	2d Dept: 41 AD3d 492 (Kings)	denied 8/21/07 (Read, J.)
People v Blake	1st Dept: 39 AD3d 402 (Bronx)	denied 8/2/07 (Read, J.)
People v Bobo	1st Dept: 41 AD3d 129 (NY)	denied 8/17/07 (Grafteo, J.)
People v Bonilla	2d Dept: 38 AD3d 793 (Kings)	denied 8/13/07 (Pigott, J.)
People v Borden	4th Dept: 39 AD3d 1242 (Erie)	denied 8/21/07 (Read, J.)
People v Brink	4th Dept: 39 AD3d 1285 (Livingston)	denied 8/16/07 (Smith, J.)
People v Brooks (Harry)	1st Dept: 39 AD3d 428 (Bronx)	denied 8/22/07 (Pigott, J.)
People v Brooks (Michael)	App Div, 1st Dept: 2007 NY Slip Op 74730(U) (NY)	dismissed 8/28/07 (Kaye, Ch.J.)
People v Brown (Eric)	2d Dept: 40 AD3d 1018 (Kings)	denied 8/23/07 (Pigott, J.)
People v Brown (Leroy)	App Div, 1st Dept: 2007 NY Slip Op 70827(U) (NY)	denied 8/23/07 (Pigott, J.)
People v Brown (Roger)	1st Dept: 39 AD3d 266 (NY)	denied 8/9/07 (Pigott, J.)
People v Brown (Rohan)	1st Dept: 41 AD3d 261 (Bronx)	denied 8/23/07 (Pigott, J.)
People v Brown (Ronald)	3d Dept: 39 AD3d 886 (Schenectady)	denied 8/22/07 (Pigott, J.)
People v Brown (Sean)	4th Dept: 41 AD3d 1234 (Erie)	denied 8/10/07 (Ciparick, J.)
People v Byrd	1st Dept: 39 AD3d 348 (NY)	denied 8/22/07 (Pigott, J.)
People v Byron	2d Dept: 36 AD3d 932 (Queens)	denied 8/16/07 (Pigott, J.)
People v Cabassa	2d Dept: 41 AD3d 493 (Queens)	denied 8/23/07 (Pigott, J.)
People v Cabrera	1st Dept: 38 AD3d 361 (NY)	denied 8/22/07 (Pigott, J.)
People v Capellan	1st Dept: 38 AD3d 393 (NY)	denied 8/22/07 (Pigott, J.)
People v Carney	4th Dept: 41 AD3d 1239 (Livingston)	denied 8/16/07 (Smith, J.)
People v Carpio	1st Dept: 39 AD3d 433 (NY)	denied 8/22/07 (Pigott, J.)
People v Cartegena	App Term, 1st Dept: 14 Misc 3d 140(A) (NY)	denied 8/13/07 (Pigott, J.)
People v Carter	3d Dept: 40 AD3d 1310 (Albany)	denied 8/16/07 (Smith, J.)
People v Catlin	4th Dept: 41 AD3d 1199 (Monroe)	denied 8/16/07 (Smith, J.)
People v Cecere	2d Dept: 39 AD3d 557 (Richmond)	denied 8/16/07 (Pigott, J.)

People v Chinn	App Div, 4th Dept, 6/26/07 (Onondaga)	dismissed 8/17/07 (Grafteo, J.)
People v Cleamons	1st Dept: 40 AD3d 268 (NY)	denied 8/13/07 (Kaye, Ch.J.)
People v Clinding	2d Dept: 40 AD3d 1117 (Nassau)	denied 8/13/07 (Ciparick, J.)
People v Colon	1st Dept: 39 AD3d 233 (Bronx)	denied 8/15/07 (Jones, J.)
People v Cosme	App Div, 1st Dept: 2007 NY Slip Op 69971(U) (NY)	denied 8/22/07 (Pigott, J.)
People v Crandall	3d Dept: 39 AD3d 1077 (Hamilton)	denied 8/22/07 (Pigott, J.)
People v Crates	County Ct, 5/16/07 (Wayne)	denied 8/13/07 (Grafteo, J.)
People v Credle	1st Dept: 40 AD3d 201 (NY)	denied 8/22/07 (Pigott, J.)
People v Crooks	1st Dept: 40 AD3d 542 (NY)	denied 8/22/07 (Pigott, J.)
People v Cruz (Pedro)	2d Dept: 41 AD3d 493 (Queens)	denied 8/31/07 (Pigott, J.)
People v Cruz (Ricardo)	1st Dept: 40 AD3d 441 (NY)	denied 8/21/07 (Read, J.)
People v Daniels	4th Dept: 42 AD3d 953 (Monroe)	denied 8/30/07 (Grafteo, J.)
People v Darrisaw	County Ct, 6/14/07 (Monroe)	denied 8/17/07 (Smith, J.)
People v Davis	1st Dept: 40 AD3d 324 (NY)	denied 8/2/07 (Read, J.)
People v DeAngelo	2d Dept: 40 AD3d 656 (Kings)	denied 8/22/07 (Pigott, J.)
People v Deciero	County Ct, 6/8/06 (Clinton)	denied 8/9/07 (Ciparick, J.)
People v DeJesus	4th Dept: 39 AD3d 1196 (Erie)	denied 8/20/07 (Kaye, Ch.J.)
People v DeLeon	2d Dept: 40 AD3d 1008 (Rockland)	denied 8/13/07 (Grafteo, J.)
People v Delgado	1st Dept: 41 AD3d 220 (Bronx)	denied 8/17/07 (Smith, J.)
People v Denton	2d Dept: 41 AD3d 729 (Kings)	denied 8/13/07 (Grafteo, J.)
People v DiLorenzo	3d Dept: 39 AD3d 1032 (Warren)	denied 8/13/07 (Kaye, Ch.J.)
People v Dobson	2d Dept: 41 AD3d 496 (Queens)	denied 8/17/07 (Grafteo, J.)
People v Dodge	4th Dept: 38 AD3d 1324 (Steuben)	denied 8/9/07 (Ciparick, J.)
People v Duke	2d Dept: 40 AD3d 872 (Queens)	dismissed 8/2/07 (Read, J.)

MEMORANDA

875

People v Duvall	App Div, 4th Dept, 6/19/07 (Monroe)	dismissed 8/16/07 (Kaye, Ch.J.)
People v Dyla	2d Dept: 39 AD3d 662 (Nassau)	dismissed 8/13/07 (Pigott, J.)
People v Edwards	App Div, 1st Dept: 2007 NY Slip Op 78942(U) (NY)	dismissed 8/17/07 (Smith, J.)
People v Ephraim	2d Dept: 40 AD3d 1010 (Westchester)	denied 8/17/07 (Grafteo, J.)
People v Escobar	2d Dept: 40 AD3d 776 (Suffolk)	denied 8/22/07 (Pigott, J.)
People v Fabre	App Term, 2d Dept: 16 Misc 3d 134(A) (Westchester)	denied 8/17/07 (Pigott, J.)
People v Faison	2d Dept: 41 AD3d 730 (Kings)	denied 8/17/07 (Grafteo, J.)
People v Fauntleroy	2d Dept: 39 AD3d 877 (Kings)	denied 8/2/07 (Read, J.)
People v Fedonick	App Div, 3d Dept, 7/12/07 (St. Lawrence)	dismissed 8/21/07 (Kaye, Ch.J.)
People v Fishon	App Div, 2d Dept: 2007 NY Slip Op 71133(U) (Kings)	dismissed 8/1/07 (Ciparick, J.)
People v Flores	2d Dept: 40 AD3d 876 (Suffolk)	denied 8/17/07 (Smith, J.)
People v Fofana	App Term, 1st Dept: 15 Misc 3d 136(A) (Bronx)	denied reconsideration 8/30/07 (Smith, J.)
People v Freeman	4th Dept: 38 AD3d 1253 (Monroe)	denied 8/13/07 (Kaye, Ch.J.)
People v Gaither	2d Dept: 40 AD3d 878 (Kings)	denied 8/22/07 (Pigott, J.)
People v Garrett	2d Dept: 39 AD3d 667 (Kings)	denied 8/22/07 (Pigott, J.)
People v Gates	4th Dept: 37 AD3d 1089 (Erie)	denied reconsideration 8/9/07 (Ciparick, J.)
People v Georgetti	4th Dept: 41 AD3d 1204 (Ontario)	denied 8/17/07 (Smith, J.)
People v Germosen-Duran	App Div, 1st Dept: 2007 NY Slip Op 72715(U) (NY)	dismissed 8/15/07 (Jones, J.)
People v Gialanella	App Div, 2d Dept: 2007 NY Slip Op 69270(U) (Westchester)	dismissed 8/21/07 (Pigott, J.)
People v Gianni	4th Dept: 41 AD3d 1315 (Orleans)	denied 8/13/07 (Grafteo, J.)
People v Gilmore	4th Dept: 41 AD3d 1162 (Monroe)	denied 8/20/07 (Kaye, Ch.J.)

People v Gomez	App Div, 1st Dept: 2007 NY Slip Op 69971(U) (NY)	denied 8/22/07 (Pigott, J.)
People v Gonzalez	1st Dept: 39 AD3d 434 (NY)	denied 8/22/07 (Pigott, J.)
People v Gordon	4th Dept: 42 AD3d 964 (Erie)	denied 8/30/07 (Grafteo, J.)
People v Gosso	1st Dept: 41 AD3d 206 (NY)	denied 8/24/07 (Pigott, J.)
People v Gouvatsos	2d Dept: 40 AD3d 879 (Queens)	denied 8/22/07 (Pigott, J.)
People v Graham	4th Dept: 42 AD3d 933 (Erie)	denied 8/21/07 (Ciparick, J.)
People v Guerrero	2d Dept: 39 AD3d 878 (Queens)	denied 8/10/07 (Read, J.)
People v Hall (Dangelo)	3d Dept: 41 AD3d 1090 (Chemung)	denied 8/30/07 (Grafteo, J.)
People v Hall (Lee)	3d Dept: 41 AD3d 880 (Albany)	denied 8/23/07 (Pigott, J.)
People v Hall (Ralph)	App Div, 1st Dept: 2007 NY Slip Op 71826(U) (NY)	dismissed 8/13/07 (Kaye, Ch.J.)
People v Hamlin	1st Dept: 39 AD3d 361 (NY)	denied 8/22/07 (Pigott, J.)
People v Hampton	App Div, 4th Dept, 6/22/07 (Onondaga)	dismissed 8/9/07 (Ciparick, J.)
People v Hardison	App Div, 1st Dept: 2007 NY Slip Op 69558(U) (NY)	denied 8/17/07 (Smith, J.)
People v Harrison	2d Dept: 41 AD3d 497 (Queens)	denied 8/30/07 (Grafteo, J.)
People v Hawkins	2d Dept: 41 AD3d 732 (Kings)	denied 8/21/07 (Ciparick, J.)
People v Hendricks	2d Dept: 40 AD3d 777 (Kings)	denied 8/30/07 (Smith, J.)
People v Herman	1st Dept: 40 AD3d 477 (NY)	denied 8/23/07 (Pigott, J.)
People v Herndon	1st Dept: 41 AD3d 130 (Bronx)	denied 8/30/07 (Grafteo, J.)
People v Hines	3d Dept: 39 AD3d 968 (Columbia)	denied 8/20/07 (Kaye, Ch.J.)
People v Howard	App Div, 3d Dept, 3/29/07 (Albany)	denied 8/30/07 (Grafteo, J.)
People v Howell	2d Dept: 40 AD3d 882 (Queens)	denied 8/20/07 (Kaye, Ch.J.)
People v Isaac	2d Dept: 40 AD3d 1118 (Queens)	denied 8/21/07 (Read, J.)
People v Jackson (Fitzroy)	App Div, 2d Dept: 2007 NY Slip Op 72956(U) (Richmond)	dismissed 8/13/07 (Kaye, Ch.J.)
People v Jackson (Rio)	2d Dept: 41 AD3d 498 (Queens)	denied 8/23/07 (Pigott, J.)

MEMORANDA

877

People v James	1st Dept: 40 AD3d 281 (Bronx)	denied 8/22/07 (Pigott, J.)
People v Jean-Baptiste	1st Dept: 38 AD3d 418 (NY)	denied 8/17/07 (Pigott, J.)
People v Johnson (Cornelius)	4th Dept: 41 AD3d 1284 (Erie)	denied 8/30/07 (Smith, J.)
People v Johnson (Gregory)	1st Dept: 39 AD3d 338 (NY)	denied 8/22/07 (Pigott, J.)
People v Johnson (Harold)	3d Dept: 40 AD3d 1270 (Albany)	denied 8/9/07 (Ciparick, J.)
People v Johnson (Keith)	2d Dept: 39 AD3d 670 (Kings)	denied 8/13/07 (Kaye, Ch.J.)
People v Johnson (Rodney)	4th Dept: 41 AD3d 1298 (Erie)	denied 8/17/07 (Smith, J.)
People v Jones (Andrew)	2d Dept: 41 AD3d 507 (Kings)	denied 8/13/07 (Grafteo, J.)
People v Jones (Clarine)	2d Dept: 41 AD3d 736 (Kings)	denied 8/30/07 (Grafteo, J.)
People v Joseph	2d Dept: 40 AD3d 657 (Queens)	denied 8/22/07 (Pigott, J.)
People v "K"	4th Dept: 39 AD3d 1230 (Monroe)	denied 8/13/07 (Kaye, Ch.J.)
People v Keiser	4th Dept: 38 AD3d 1254 (Oneida)	denied 8/13/07 (Kaye, Ch.J.)
People v Kelly	App Div, 1st Dept: 2007 NY Slip Op 69559(U) (NY)	denied 8/13/07 (Ciparick, J.)
People v King	3d Dept: 38 AD3d 1066 (Albany)	denied 8/9/07 (Pigott, J.)
People v Kowalewski	2d Dept: 39 AD3d 770 (Kings)	denied 8/22/07 (Kaye, Ch.J.)
People v Ladson	1st Dept: 41 AD3d 248 (NY)	denied 8/31/07 (Grafteo, J.)
People v Langert	1st Dept: 40 AD3d 469 (NY)	denied 8/17/07 (Grafteo, J.)
People v LaValley	4th Dept: 41 AD3d 1153 (Oswego)	denied 8/21/07 (Read, J.)
People v Lawson	2d Dept: 40 AD3d 657 (Westchester)	denied 8/2/07 (Read, J.)
People v Leach	2d Dept: 38 AD3d 917 (Westchester)	denied 8/22/07 (Pigott, J.)
People v Lee	App Div, 4th Dept, 6/18/07 (Oneida)	dismissed 8/9/07 (Jones, J.)
People v Lendeborg	1st Dept: 40 AD3d 325 (NY)	denied 8/10/07 (Read, J.)
People v Lewitts	App Div, 1st Dept: 2007 NY Slip Op 74731(U) (NY)	dismissed 8/28/07 (Kaye, Ch.J.)
People v Lingle	1st Dept: 34 AD3d 287 (NY)	granted upon renewal 8/7/07 (Grafteo, J.)

People v Louis	2d Dept: 40 AD3d 779 (Kings)	denied 8/10/07 (Ciparick, J.)
People v Lowin	3d Dept: 36 AD3d 1153 (Tioga)	denied reconsideration 8/27/07 (Smith, J.)
People v Lownes	3d Dept: 40 AD3d 1269 (Albany)	denied 8/22/07 (Pigott, J.)
People v Lyons	2d Dept: 40 AD3d 1121 (Kings)	denied 8/21/07 (Read, J.)
People v Madera	1st Dept: 41 AD3d 147 (NY)	denied 8/27/07 (Smith, J.)
People v Manohar	2d Dept: 40 AD3d 1123 (Queens)	denied 8/22/07 (Pigott, J.)
People v Manuel	4th Dept: 39 AD3d 1185 (Monroe)	denied 8/13/07 (Kaye, Ch.J.)
People v Marcello	4th Dept: 41 AD3d 1314 (Niagara)	denied 8/20/07 (Kaye, Ch.J.)
People v Marcial (Jose)	4th Dept: 41 AD3d 1308 (Monroe)	denied 8/30/07 (Grafteo, J.)
People v Marcial (Jose)	4th Dept: 41 AD3d 1309 (Monroe)	denied 8/30/07 (Grafteo, J.)
People v Marshall	3d Dept: 39 AD3d 967 (Essex)	denied 8/9/07 (Pigott, J.)
People v Martin	4th Dept: 39 AD3d 1213 (Monroe)	denied 8/21/07 (Read, J.)
People v Martinez (Johnny)	4th Dept: 39 AD3d 1246 (Monroe)	denied 8/2/07 (Read, J.)
People v Martinez (Michael)	1st Dept: 40 AD3d 359 (NY)	denied 8/21/07 (Read, J.)
People v Mathews	2d Dept: 40 AD3d 780 (Kings)	denied 8/21/07 (Read, J.)
People v Mathison	2d Dept: 41 AD3d 736 (Kings)	denied 8/30/07 (Grafteo, J.)
People v Matthews	2d Dept: 40 AD3d 780 (Kings)	denied 8/21/07 (Read, J.)
People v McAllister	4th Dept: 41 AD3d 1186 (Onondaga)	denied 8/10/07 (Ciparick, J.)
People v McBride	2d Dept: 40 AD3d 780 (Kings)	denied 8/22/07 (Pigott, J.)
People v McCormick	2d Dept: 37 AD3d 854 (Suffolk)	denied 8/22/07 (Pigott, J.)
People v McDay	2d Dept: 40 AD3d 781 (Kings)	denied 8/2/07 (Read, J.)
People v McDonald	2d Dept: 40 AD3d 1125 (Queens)	denied 8/21/07 (Read, J.)
People v McGrail	4th Dept: 42 AD3d 962 (Cayuga)	denied 8/30/07 (Smith, J.)
People v McGraw	1st Dept: 40 AD3d 302 (NY)	denied 8/22/07 (Pigott, J.)

MEMORANDA

879

People v McLeod	2d Dept: 38 AD3d 798 (Rockland)	denied 8/22/07 (Pigott, J.)
People v Mercer	4th Dept: 38 AD3d 1367 (Oneida)	denied 8/10/07 (Read, J.)
People v Milligan	3d Dept: 40 AD3d 1217 (Rensselaer)	denied 8/21/07 (Read, J.)
People v Milton	2d Dept: 40 AD3d 1125 (Kings)	denied 8/10/07 (Ciparick, J.)
People v Mitchell	1st Dept: 39 AD3d 357 (NY)	granted 8/21/07 (Read, J.)
People v Moore (Robert)	2d Dept: 41 AD3d 737 (Richmond)	denied 8/17/07 (Smith, J.)
People v Moore (Terry)	4th Dept: 41 AD3d 1149 (Erie)	denied 8/13/07 (Grafteo, J.)
People v Moore (Terry)	4th Dept: 41 AD3d 1202 (Erie)	denied 8/31/07 (Grafteo, J.)
People v Muhammad	4th Dept: 41 AD3d 1282 (Erie)	denied 8/13/07 (Grafteo, J.)
People v Mullings	App Div, 3d Dept, 5/8/07 (Albany)	denied 8/22/07 (Pigott, J.)
People v Munford	App Div, 2d Dept: 2007 NY Slip Op 71446(U) (Kings)	dismissed 8/9/07 (Ciparick, J.)
People v Nelson	1st Dept: 38 AD3d 472 (NY)	denied 8/22/07 (Pigott, J.)
People v Nettles	1st Dept: 40 AD3d 437 (NY)	denied 8/20/07 (Kaye, Ch.J.)
People v Noodles	3d Dept: 40 AD3d 1310 (Albany)	denied 8/16/07 (Smith, J.)
People v Norman	2d Dept: 41 AD3d 619 (Kings)	denied 8/30/07 (Grafteo, J.)
People v Norworthy	2d Dept: 41 AD3d 511 (Nassau)	denied 8/13/07 (Grafteo, J.)
People v O'Connor	2d Dept: 40 AD3d 1013 (Putnam)	denied 8/23/07 (Pigott, J.)
People v Ojar	2d Dept: 38 AD3d 684 (Queens)	denied 8/8/07 (Pigott, J.)
People v Olivares	2d Dept: 34 AD3d 602 (Orange)	denied 8/30/07 (Grafteo, J.)
People v Ortiz (Elmer)	1st Dept: 41 AD3d 114 (NY)	denied 8/24/07 (Pigott, J.)
People v Ortiz (Raymond)	1st Dept: 40 AD3d 374 (NY)	denied 8/13/07 (Kaye, Ch.J.)
People v Ortiz (Scott)	1st Dept: 41 AD3d 276 (Bronx)	denied 8/24/07 (Pigott, J.)
People v Padilla	1st Dept: 37 AD3d 357 (Bronx)	denied 8/13/07 (Pigott, J.)
People v Pagan	1st Dept: 41 AD3d 289 (NY)	denied 8/30/07 (Grafteo, J.)
People v Patterson	2d Dept: 40 AD3d 659 (Richmond)	denied 8/13/07 (Kaye, Ch.J.)

People v Paul	App Div, 1st Dept: 2007 NY Slip Op 64990(U) (Bronx)	denied 8/22/07 (Pigott, J.)
People v Pena	1st Dept: 41 AD3d 250 (Bronx)	denied 8/31/07 (Grafteo, J.)
People v Perry	2d Dept: 40 AD3d 1133 (Queens)	denied 8/21/07 (Ciparick, J.)
People v Peters	County Ct, 5/29/07 (Albany)	denied 8/22/07 (Pigott, J.)
People v Petrescu	1st Dept: 41 AD3d 176 (NY)	denied 8/20/07 (Kaye, Ch.J.)
People v Pierre	1st Dept: 41 AD3d 289 (NY)	denied 8/30/07 (Smith, J.)
People v Pryce	3d Dept: 41 AD3d 983 (St. Lawrence)	denied 8/21/07 (Read, J.)
People v Ramos (Adam)	App Div, 3d Dept, 5/8/07 (Fulton)	denied 8/21/07 (Read, J.)
People v Ramos (Angelo)	App Div, 3d Dept, 5/8/07 (Fulton)	denied 8/21/07 (Read, J.)
People v Ramos (Julio)	1st Dept: 41 AD3d 326 (Bronx)	denied 8/30/07 (Grafteo, J.)
People v Randan	2d Dept: 41 AD3d 740 (Kings)	denied 8/13/07 (Ciparick, J.)
People v Rashad M.	App Term, 2d Dept: 16 Misc 3d 128(A) (Suffolk)	denied 8/13/07 (Ciparick, J.)
People v Reality	3d Dept: 38 AD3d 1066 (Albany)	denied 8/9/07 (Pigott, J.)
People v Redwood	1st Dept: 41 AD3d 275 (NY)	denied 8/17/07 (Smith, J.)
People v Reyes (Carlos)	1st Dept: 40 AD3d 374 (NY)	denied 8/13/07 (Kaye, Ch.J.)
People v Reyes (Robert)	2d Dept: 41 AD3d 620 (Suffolk)	denied 8/13/07 (Grafteo, J.)
People v Richardson	4th Dept: 41 AD3d 1305 (Erie)	denied 8/9/07 (Ciparick, J.)
People v Richins	App Div, 3d Dept, 7/12/07 (Albany)	dismissed 8/17/07 (Grafteo, J.)
People v Rincon	1st Dept: 40 AD3d 538 (NY)	denied 8/22/07 (Pigott, J.)
People v Rivera (David)	App Div, 1st Dept: 2007 NY Slip Op 69135(U) (NY)	denied 8/22/07 (Pigott, J.)
People v Rivera (Juan)	4th Dept: 39 AD3d 1196 (Erie)	denied 8/20/07 (Kaye, Ch.J.)
People v Rivera (Octavio)	3d Dept: 42 AD3d 587 (Saratoga)	denied 8/31/07 (Pigott, J.)
People v Robinson (Kelvin)	4th Dept: 41 AD3d 1314 (Niagara)	denied 8/10/07 (Ciparick, J.)
People v Robinson (Michael)	4th Dept: 41 AD3d 1183 (Erie)	denied 8/10/07 (Ciparick, J.)

MEMORANDA

881

People v Rodriguez	1st Dept: 33 AD3d 543 (NY)	granted upon renewal 8/14/07 (Kaye, Ch.J.)
People v Roman (Orlando)	App Div, 4th Dept, 5/22/07 (Monroe)	dismissed 8/10/07 (Read, J.)
People v Roman (Orlando)	App Div, 4th Dept, 5/22/07 (Monroe)	dismissed 8/10/07 (Read, J.)
People v Ross	2d Dept: 41 AD3d 870 (Kings)	denied 8/30/07 (Grafteo, J.)
People v Royster	2d Dept: 40 AD3d 885 (Queens)	denied 8/30/07 (Smith, J.)
People v Ruffin	3d Dept: 42 AD3d 582 (Greene)	denied 8/30/07 (Grafteo, J.)
People v Salters	3d Dept: 30 AD3d 903 (Franklin)	granted 8/21/07 (Read, J.)
People v Sanabria (David)	1st Dept: 40 AD3d 503 (NY)	denied 8/23/07 (Pigott, J.)
People v Sanabria (Jose)	4th Dept: 41 AD3d 1297 (Monroe)	denied 8/13/07 (Ciparick, J.)
People v Sanchez (Daniel)	1st Dept: 41 AD3d 280 (Bronx)	denied 8/13/07 (Ciparick, J.)
People v Sanchez (Steven)	1st Dept: 40 AD3d 468 (Bronx)	denied 8/27/07 (Smith, J.)
People v Sanjurjo	2d Dept: 39 AD3d 773 (Richmond)	denied 8/22/07 (Pigott, J.)
People v Santiago	1st Dept: 38 AD3d 303 (NY)	denied 8/9/07 (Pigott, J.)
People v Santos-Mispas	2d Dept: 38 AD3d 923 (Orange)	denied 8/22/07 (Pigott, J.)
People v Searles	App Div, 2d Dept: 2007 NY Slip Op 72108(U) (Kings)	dismissed 8/24/07 (Jones, J.)
People v Sheremet	3d Dept: 41 AD3d 1038 (Warren)	denied 8/23/07 (Pigott, J.)
People v Singh	2d Dept: 35 AD3d 633 (Kings)	denied 8/8/07 (Pigott, J.)
People v Singleton (David)	1st Dept: 41 AD3d 117 (NY)	denied 8/9/07 (Ciparick, J.)
People v Singleton (Michael)	1st Dept: 40 AD3d 502 (NY)	denied 8/17/07 (Smith, J.)
People v Skvarek	4th Dept: 41 AD3d 1237 (Genesee)	denied 8/10/07 (Ciparick, J.)
People v Smith (James)	3d Dept: 41 AD3d 964 (Greene)	denied 8/23/07 (Pigott, J.)
People v Smith (Kevin)	4th Dept: 39 AD3d 1228 (Chautauqua)	denied 8/13/07 (Kaye, Ch.J.)
People v Smith (Rahssan)	3d Dept: 37 AD3d 975 (Albany)	denied 8/9/07 (Pigott, J.)
People v Smoot	App Term, 1st Dept: 15 Misc 3d 136(A) (NY)	denied 8/22/07 (Pigott, J.)

People v Solivan	2d Dept: 35 AD3d 511 (Orange)	dismissed* 8/31/07 (Jones, J.)
People v Spaight (Lawrence)	App Div, 4th Dept, 6/18/07 (Monroe)	dismissed 8/31/07 (Jones, J.)
People v Spaight (Lawrence)	App Div, 4th Dept, 7/24/07 (Monroe)	dismissed 8/31/07 (Jones, J.)
People v Sparber	1st Dept: 34 AD3d 265 (NY)	granted upon renewal 8/9/07 (Ciparick, J.)
People v Spence	2d Dept: 39 AD3d 673 (Suffolk)	denied 8/16/07 (Pigott, J.)
People v Stafford	2d Dept: 39 AD3d 774 (Orange)	denied 8/22/07 (Pigott, J.)
People v Stapkowitz	1st Dept: 40 AD3d 435 (NY)	denied 8/22/07 (Pigott, J.)
People v Sweet	4th Dept: 41 AD3d 1323 (Ontario)	denied 8/21/07 (Ciparick, J.)
People v Tantaio	4th Dept: 41 AD3d 1274 (Oswego)	denied 8/13/07 (Grafteo, J.)
People v Tavaréz	App Div, 1st Dept: 2007 NY Slip Op 72440(U) (NY)	dismissed 8/8/07 (Pigott, J.)
People v Terrence	App Div, 1st Dept: 2007 NY Slip Op 74731(U) (NY)	dismissed 8/28/07 (Kaye, Ch.J.)
People v Thomas	1st Dept: 35 AD3d 192 (NY)	granted upon renewal 8/7/07 (Grafteo, J.)
People v Toussaint	2d Dept: 40 AD3d 1017 (Suffolk)	denied 8/21/07 (Read, J.)
People v Tucker (George)	1st Dept: 41 AD3d 210 (NY)	denied 8/31/07 (Grafteo, J.)
People v Tucker (Lance)	3d Dept: 40 AD3d 1213 (Albany)	denied 8/17/07 (Smith, J.)
People v Tuitt	App Div, 2d Dept: 2007 NY Slip Op 73187(U) (Westchester)	dismissed 8/30/07 (Smith, J.)
People v Turner (Darien)	2d Dept: 40 AD3d 1018 (Kings)	denied 8/23/07 (Pigott, J.)
People v Turner (Darin)	2d Dept: 40 AD3d 1018 (Kings)	denied 8/23/07 (Pigott, J.)
People v Umali	1st Dept: 37 AD3d 164 (NY)	granted upon reconsideration 8/10/07 (Ciparick, J.)
People v Valdez (Freddy)	4th Dept: 41 AD3d 1255 (Monroe)	denied 8/17/07 (Smith, J.)

* Dismissed without prejudice to renewal by defendant pro se or by new counsel.

MEMORANDA

883

People v Valdez (Luis)	1st Dept: 41 AD3d 316 (NY)	denied 8/17/07 (Grafteo, J.)
People v Van Every	App Div, 4th Dept, 7/16/07 (Erie)	dismissed 8/20/07 (Jones, J.)
People v VanGorder	App Div, 4th Dept, 6/29/07 (Monroe)	dismissed 8/9/07 (Jones, J.)
People v Vasquez	2d Dept: 40 AD3d 1019 (Queens)	denied 8/20/07 (Kaye, Ch.J.)
People v Wade	1st Dept: 41 AD3d 288 (NY)	denied 8/30/07 (Grafteo, J.)
People v Wallace	4th Dept: 41 AD3d 1223 (Monroe)	denied 8/13/07 (Grafteo, J.)
People v Ward	3d Dept: 42 AD3d 579 (Warren)	denied 8/31/07 (Grafteo, J.)
People v Washington	2d Dept: 40 AD3d 1136 (Richmond)	denied 8/22/07 (Pigott, J.)
People v Washpun (Marcus)	4th Dept: 41 AD3d 1233 (Monroe)	denied 8/23/07 (Kaye, Ch.J.)
People v Washpun (Marcus)	4th Dept: 41 AD3d 1234 (Monroe)	denied 8/23/07 (Kaye, Ch.J.)
People v Webster	2d Dept: 40 AD3d 1137 (Suffolk)	denied 8/10/07 (Ciparick, J.)
People v Wellington	2d Dept: 41 AD3d 517 (Queens)	denied 8/23/07 (Pigott, J.)
People v White	1st Dept: 40 AD3d 535 (NY)	denied 8/23/07 (Pigott, J.)
People v Whitely	2d Dept: 41 AD3d 622 (Kings)	denied 8/17/07 (Smith, J.)
People v Wilburn	1st Dept: 40 AD3d 508 (NY)	denied 8/31/07 (Grafteo, J.)
People v Wilder	1st Dept: 38 AD3d 312 (NY)	denied reconsideration 8/27/07 (Pigott, J.)
People v Willette	3d Dept: 42 AD3d 674 (Essex)	denied 8/29/07 (Grafteo, J.)
People v Williams (Billy)	1st Dept: 40 AD3d 402 (NY)	denied 8/22/07 (Pigott, J.)
People v Williams (Jomo)	2d Dept: 38 AD3d 576 (Westchester)	denied 8/24/07 (Pigott, J.)
People v Williams (Jomo)	2d Dept: 38 AD3d 577 (Westchester)	denied 8/24/07 (Pigott, J.)
People v Wilson (Edgar)	1st Dept: 39 AD3d 264 (NY)	denied 8/13/07 (Kaye, Ch.J.)
People v Wilson (Garrett)	2d Dept: 38 AD3d 690 (Queens)	denied 8/22/07 (Pigott, J.)
People v Wilson (Shamel)	1st Dept: 41 AD3d 331 (NY)	denied 8/31/07 (Pigott, J.)

People v Wolters	2d Dept: 41 AD3d 518 (Queens)	dismissed 8/1/07 (Ciparick, J.)
People v Wright (Henry)	4th Dept: 38 AD3d 1232 (Erie)	denied reconsideration 8/20/07 (Kaye, Ch.J.)
People v Wright (Jonas)	4th Dept: 41 AD3d 1297 (Monroe)	denied 8/20/07 (Kaye, Ch.J.)
People v Wright (Melvin)	App Div, 1st Dept: 2007 NY Slip Op 78877(U) (NY)	dismissed 8/17/07 (Smith, J.)
People v Wright (Ronald)	2d Dept: 40 AD3d 1021 (Kings)	denied 8/21/07 (Read, J.)
People v Wynder	1st Dept: 41 AD3d 209 (NY)	denied 8/31/07 (Grafteo, J.)
People v Zarro	App Div, 2d Dept: 2007 NY Slip Op 71448(U) (Dutchess)	dismissed 8/8/07 (Pigott, J.)
People v Zorzenon	4th Dept: 41 AD3d 1288 (Seneca)	denied 8/21/07 (Read, J.)

[874 NE2d 727, 842 NYS2d 763]

In the Matter of JEROME C. ELLIS.

Decided September 4, 2007

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether Honorable Jerome C. Ellis should be suspended from his office of Justice of the Leon Town Court, Cattaraugus County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether a town justice should be suspended from office, it is determined that the justice be suspended, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Jerome C. Ellis is suspended, with pay, effective immediately, from the office of Justice of the Leon Town Court, Cattaraugus

County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

BYBLOS BANK EUROPE, S.A., Respondent, v SEKERBANK TURK ANONYM SYRKETI, Appellant.

Submitted July 9, 2007; decided September 4, 2007

Reported below, 40 AD3d 497.

Motion for leave to cross appeal dismissed upon the ground that Sekerbank Turk Anonym Syrketi is not a party aggrieved (see CPLR 5511; *Parochial Bus Sys. v Board of Educ. of City of N.Y.*, 60 NY2d 539, 545-546 [1983]).

FRANK CUNHA, Appellant, v BLANCHE S. SHAPIRO, Individually and as Executrix of JESSE SHAPIRO, Deceased, et al., Respondents.

Submitted June 4, 2007; decided September 4, 2007

Reported below, 42 AD3d 95.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LESLIE FEHER, Appellant, v JOHN JAY COLLEGE OF CRIMINAL JUSTICE et al., Respondents.

Submitted June 18, 2007; decided September 4, 2007

Reported below, 37 AD3d 307.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed the appeal to that Court from the March 2006 and July 2006 orders of Supreme Court, dismissed upon the ground that such part of the order does not finally determine an action or proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of J. DAVID GOLUB, Appellant, v COMMISSIONER OF TAXATION AND FINANCE FOR STATE OF NEW YORK et al., Respondents.

Submitted June 18, 2007; decided September 4, 2007

Motion for reargument of motion for leave to appeal denied with \$100 dollars costs and necessary reproduction disbursements [*see* 8 NY3d 811].

In the Matter of SHAWN GREEN, Appellant, v GLENN S. GOORD, as Commissioner of New York State Department of Correctional Services, Respondent.

Submitted June 4, 2007; decided September 4, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

EULAH JONES et al., Appellants, v EDWARD D. CORLEY, JR., et al., Respondents.

Submitted April 30, 2007; decided September 4, 2007

Reported below, 35 AD3d 381.

Motion for leave to appeal brought on behalf of Lucinda Swingearn and Delores Gordon dismissed upon the ground that as to them timely substitution has not been made (*see* CPLR 1021); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ERASMO A. MARSH, Respondent, v PAUL D. HASBROUCK, Appellant, et al., Defendants. (And a Third-Party Action.)

Submitted June 18, 2007; decided September 4, 2007

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOHN MOODY, Respondent, v SVETLANA SOROKINA, Appellant.

Submitted June 11, 2007; decided September 4, 2007

Reported below, 40 AD3d 14.

Motion for reconsideration of this Court's May 8, 2007 dismissal order denied [*see* 8 NY3d 978]. Motion for poor person relief dismissed as academic.

MORRIS HEIGHTS HEALTH CENTER, INC., Respondent, v ANDREW DELLAPIETRA et al., Appellants, et al., Defendants.

Submitted June 4, 2007; decided September 4, 2007

Reported below, 38 AD3d 261.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.22 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES TAYLOR, Appellant.

Submitted June 11, 2007; decided September 4, 2007

Reported below, 42 AD3d 13.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

OLEG RIVKIN, Appellant, v CENTURY 21 TERAN REALTY LLC et al., Respondents, et al., Defendants.

Decided September 4, 2007

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

CITY OF SYRACUSE et al., Appellants, v ONONDAGA COUNTY et al., Respondents. ATLANTIC STATES LEGAL FOUNDATION, INC., et al., Plaintiffs; 2.3 ACRES OF LAND IN THE CITY OF SYRACUSE, N.Y., Defendant and Third-Party Defendant.

Decided September 4, 2007

Pursuant to the August 13, 2007 order of the United States Court of Appeals for the Second Circuit withdrawing its certification of questions accepted by the Court of Appeals on October 24, 2006, certified questions marked withdrawn [*see* 7 NY3d 863].

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

AMARANTH LLC et al., Appellants, v NATIONAL AUSTRALIA BANK LIMITED et al., Respondents.

Submitted June 18, 2007; decided September 6, 2007

Reported below, 40 AD3d 279.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellants' motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of THE AMERICAN COMMITTEE FOR THE WEIZMANN INSTITUTE OF SCIENCE, Appellant, v JENNIFER DUNN, Individually and as Executor of DORIS WEINGARTEN, Deceased, et al., Respondents.

Submitted July 30, 2007; decided September 6, 2007

Reported below, 36 AD3d 419.

Motion by Andrew M. Cuomo, Attorney General of the State of New York, for an order permitting movant to file a brief and to participate in oral argument of the appeal, granted in each respect.

In the Matter of Liquidation of AMERICAN DRUGGISTS' INSURANCE COMPANY. SUPERINTENDENT OF INSURANCE OF THE STATE OF NEW YORK, Respondent, v DENIS D. KENNY, Appellant.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 15 AD3d 268.

Motion for reargument of motion for leave to appeal denied [*see* 9 NY3d 857].

MANUEL ARONS, Respondent, v ROBERT JUTKOWITZ et al., Appellants, et al., Defendant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 37 AD3d 94.

Motion by New York City Health and Hospitals Corporation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

BI-ECONOMY MARKET, INC., Appellant, v HARLEYSVILLE INSURANCE COMPANY OF NEW YORK et al., Respondents.

Submitted July 2, 2007; decided September 6, 2007

Reported below, 37 AD3d 1184.

Motion by New York Public Adjusters Association for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

BI-ECONOMY MARKET, INC., Appellant, v HARLEYSVILLE INSURANCE COMPANY OF NEW YORK et al., Respondents.

Submitted July 9, 2007; decided September 6, 2007

Reported below, 37 AD3d 1184.

Motion by United Policyholders for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of SINCLAIR HABERMAN et al., Appellants, v ZONING BOARD OF APPEALS OF CITY OF LONG BEACH et al., Respondents.

Submitted August 6, 2007; decided September 6, 2007

Reported below, 35 AD3d 465.

Motion, insofar as it seeks to strike respondents' appendix, denied; motion, insofar as it seeks to expand the record, granted and the record deemed expanded.

KEITH HAYWOOD, Appellant, v CURTIS DROWN, Respondent. (Action No. 1.)

KEITH HAYWOOD, Appellant, v PAT SMITH et al., Respondents. (Action No. 2.)

Submitted September 4, 2007; decided September 6, 2007

Reported below, 35 AD3d 1290, 1291.

Motion by Prisoners' Legal Services et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

HOSPITAL FOR JOINT DISEASES et al., Respondents, v TRAVELERS PROPERTY CASUALTY INSURANCE COMPANY et al., Appellants.

Submitted August 27, 2007; decided September 6, 2007

Reported below, 34 AD3d 532.

Motion by New York Central Mutual Fire Insurance Company et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of SHELTON JOHNSON, Respondent, v NEW YORK CITY DEPARTMENT OF ENVIRONMENTAL PROTECTION et al., Appellants.

Submitted July 9, 2007; decided September 6, 2007

Reported below, 34 AD3d 241, 7 AD3d 383.

Motion to expand the record granted and the record deemed expanded.

RONALD LOWE, III, an Infant, by His Father and Natural Guardian, RONALD LOWE, et al., Plaintiffs, v DOLLAR TREE STORES, INC., Also Known as DOLLAR TREE NEW YORK, INC., Defendant and Third-Party Plaintiff-Respondent. MAINKEY TOYS, Third-Party Defendant-Appellant.

Submitted June 18, 2007; decided September 6, 2007

Reported below, 40 AD3d 264.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MONROE YALE MANN, Respondent, v BERNARD ABEL et al., Appellants, et al., Defendants.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 37 AD3d 778.

Motion by Advance Publications, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

MARY MCKINNEY et al., Appellants, v COMMISSIONER OF THE NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 41 AD3d 252.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

DONALD J. O'MARA III et al., Respondents, v TOWN OF WAPPINGER, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Motion by Association of Towns of State of New York for leave to file a brief amicus curiae on consideration of the certified

question herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

JOAN E. PEEBLES, Respondent, v ROBERT M. PEEBLES, JR., et al.,
Respondents, et al., Defendants, and DAVID PEEBLES, Appel-
lant.

Submitted June 25, 2007; decided September 6, 2007

Reported below, 40 AD3d 1388.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REUBEN
AVENT, Appellant.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 29 AD3d 601.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRETT
CABRERA, Appellant.

Submitted July 16, 2007; decided September 6, 2007

Reported below, 40 AD3d 1139.

Motion for assignment of counsel granted and Gerald Orseck, Esq., 1924 State Route 52, Liberty, New York 12754 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
E. DIXON, Appellant.

Submitted July 9, 2007; decided September 6, 2007

Reported below, 37 AD3d 1124.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALFONSO DUKES, Appellant.

Submitted July 2, 2007; decided September 6, 2007

Reported below, 30 AD3d 682.

Motion for assignment of counsel granted and Mitch Kessler, Esq., 63 Pike Creek Drive, Cohoes, New York 12047 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AZIM HALL, Appellant.

Submitted July 16, 2007; decided September 6, 2007

Reported below, 39 AD3d 100.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PEDRO HEUREAUX, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 33 AD3d 1020.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY JONES, Appellant.

Submitted July 30, 2007; decided September 6, 2007

Reported below, 2007 NY Slip Op 62544(U).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN LINGLE, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 34 AD3d 287.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NEHEMIAH NASH, Appellant.

Submitted July 9, 2007; decided September 6, 2007

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed upon the ground that no application for leave to appeal pursuant to CPL 460.20 will lie from an order of a single Justice of the Appellate Division.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES W. NEWTON JR., Appellant.

Submitted July 2, 2007; decided September 6, 2007

Reported below, 30 AD3d 896.

Motion for assignment of counsel granted and Mitch Kessler, Esq., 63 Pike Creek Drive, Cohoes, New York 12047 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CESAR ORTEGA, Appellant.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 40 AD3d 394.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH C. PECK, Appellant.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 31 AD3d 1216.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MANUEL RODRIGUEZ, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 33 AD3d 543.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASOOL SALAAM, Appellant.

Submitted July 30, 2007; decided September 6, 2007

Reported below, 36 AD3d 969.

Motion for assignment of counsel granted and Susan T. Aron, Esq., PO Box 113, Voorheesville, New York 12186 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL SPARBER, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 34 AD3d 265.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROY
TARBELL, Appellant.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 38 AD3d 1368.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
MARTIN TAVERAS, Also Known as JOSE MARTIN TAVARES,
Also Known as JOSE TAVERAS, Appellant.

Submitted July 30, 2007; decided September 6, 2007

Reported below, 2007 NY Slip Op 65977(U).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
THOMAS, Appellant.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 35 AD3d 192.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAR-
COS URBAEZ, Appellant.

Submitted July 23, 2007; decided September 6, 2007

Reported below, 14 Misc 3d 135(A).

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GARY WHITE, Appellant.

Submitted July 23, 2007; decided September 6, 2007

Reported below, 40 AD3d 662.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

NICHOLAS RAFFELLINI, Respondent, v STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, Appellant.

Submitted August 27, 2007; decided September 6, 2007

Reported below, 36 AD3d 92.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of RIVERKEEPER, INC., Respondent, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 1.)

In the Matter of RICHARD FEUERMAN et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 2.)

In the Matter of CROTON WATERSHED CLEAN WATER COALITION, INC., et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 3.)

Submitted September 4, 2007; decided September 6, 2007

Reported below, 32 AD3d 431.

Motion by Association of Towns of State of New York et al. for leave to file a brief amici curiae on the appeal herein granted.

Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of RIVERKEEPER, INC., Respondent, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 1.)

In the Matter of RICHARD FEUERMAN et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 2.)

In the Matter of CROTON WATERSHED CLEAN WATER COALITION, INC., et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 3.)

Submitted September 4, 2007; decided September 6, 2007

Reported below, 32 AD3d 431.

Motion by Building and Realty Institute of Westchester & The Mid-Hudson Region for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of RIVERKEEPER, INC., Respondent, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 1.)

In the Matter of RICHARD FEUERMAN et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 2.)

In the Matter of CROTON WATERSHED CLEAN WATER COALITION, INC., et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants. (Proceeding No. 3.)

Submitted September 4, 2007; decided September 6, 2007

Reported below, 32 AD3d 431.

Motion by Real Estate Board of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of NICHOLAS SCHREIBER, Respondent-Appellant, v
K-SEA TRANSPORTATION CORP. et al., Appellants-
Respondents.

Submitted September 4, 2007; decided September 6, 2007

Reported below, 30 AD3d 101.

Motion by American Association for Justice for leave to file a
brief amicus curiae on the appeal herein granted. Two copies of
the brief must be served and 24 copies filed within seven days.

In the Matter of GREGORY V. SERIO, as Superintendent of the
New York State Insurance Department Liquidation Bureau,
et al., Appellants, v ALAN G. HEVESI, as Comptroller of the
State of New York, Respondent.

Submitted August 6, 2007; decided September 6, 2007

Reported below, 40 AD3d 72.

Motions for leave to substitute Thomas P. DiNapoli as a party
respondent in the place and stead of Alan G. Hevesi; Eric R. Di-
nallo as a party appellant in the place and stead of Gregory V.
Serio; and Mark G. Peters as a party appellant in the place and
stead of James P. O'Connor on the appeal herein granted.

In the Matter of SUSAN SPENCER, Respondent, v JAMES SPEN-
CER, Appellant.

Submitted July 23, 2007; decided September 6, 2007

Reported below, 35 AD3d 980.

Motion by New York Chapter of the American Academy of
Matrimonial Lawyers et al. for leave to appear amici curiae on
the appeal herein granted only to the extent that the proposed
brief is accepted as filed.

TEMPLE BNAI SHALOM OF GREAT NECK, Appellant, v VILLAGE OF
GREAT NECK ESTATES et al., Respondents, et al., Defendants.

Submitted June 18, 2007; decided September 6, 2007

Reported below, 32 AD3d 391.

Motion for reargument of motion for leave to appeal denied

with \$100 costs and necessary reproduction disbursements [*see* 8 NY3d 813].

In the Matter of the Estate of MARGARET M. TOMECK, Deceased.
EDWARD M. TOMECK, as Executor of MARGARET M. TOMECK,
Deceased, Respondent-Appellant; ROBERT CHRISTOPHER, as
Commissioner of Social Services of Saratoga County,
Appellant-Respondent, et al., Respondent.

Submitted August 13, 2007; decided September 6, 2007

Reported below, 29 AD3d 156.

Motion for reargument denied [*see* 8 NY3d 724].

In the Matter of WALLACE B.O., Respondent, v CHRISTINE S.-O.,
Appellant.

Submitted August 20, 2007; decided September 6, 2007

Reported below, 39 AD3d 1201.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

GERARD WEBSTER et al., Respondents, v GIACINTO M. RAGONA et
al., Defendants, and WALTER A. PEETERS, Appellant.

Submitted June 9, 2007; decided September 6, 2007

Reported below, 40 AD3d 1360.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

[875 NE2d 881, 844 NYS2d 163]

HILARY GUISHARD et al., Respondents, v GENERAL SECURITY IN-
SURANCE COMPANY, Appellant.

Decided September 11, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 29, 2006. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (David B. Vaughan, J.), which, upon an order of that court (David B. Vaughan, J.), denying defendant's motion for summary judgment and granting plaintiffs' cross motion for summary judgment, had declared that defendant was obligated to defend and indemnify the plaintiffs in an underlying personal injury action.

Guishard v General Sec. Ins. Co., 32 AD3d 528, affirmed.

HEADNOTE**Insurance — Duty to Defend and Indemnify**

Defendant insurer was obligated under the terms of a commercial general liability policy to defend and indemnify plaintiff insureds in an underlying personal injury action arising out of an incident wherein plaintiff allegedly injured his eye while riveting metal to a van for the purpose of converting it into an ice cream truck. The policy excluded coverage for bodily injury "arising out of the ownership, maintenance, use or entrustment to others of any . . . 'auto' . . . owned or operated by or rented or loaned to any insured." "Maintenance," as that term is used in an insurance policy, means performance of work on an intrinsic part of the mechanism of the car and its overall function. Riveting metal to a van in furtherance of its conversion to an ice cream truck aids in transforming the auto's function, an activity distinct from "maintenance."

APPEARANCES OF COUNSEL

Melito & Adolfsen P.C., New York City (*S. Dwight Stephens* of counsel), for appellant.

Tartamella, Tartamella & Fresolone, Hauppauge (*Natale J. Tartamella* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

Plaintiffs seek a judgment declaring that defendant General Security Insurance Company is obligated under the terms of a commercial general liability policy to defend and indemnify them in a pending personal injury action. In the underlying lawsuit, the plaintiff alleges that he severely injured his eye while riveting metal to a van for the purpose of converting it into a "Mr. Softee" ice cream truck. Plaintiffs owned the van.

The policy excludes coverage for bodily injury “arising out of the ownership, maintenance, use or entrustment to others of any . . . ‘auto’ . . . owned or operated by or rented or loaned to any insured.” General Security moved for summary judgment declaring that it was not obligated to defend or indemnify plaintiffs because the conversion work performed by the injured party constituted “maintenance.” Plaintiffs cross-moved for summary judgment, arguing contrariwise.

Without written opinion, Supreme Court denied General Security’s motion and granted plaintiffs’ cross motion for summary judgment, and judgment was entered declaring that General Security was obligated to defend and indemnify plaintiffs. Upon appeal, the Appellate Division affirmed, reasoning that because General Security had not submitted the policy schedule defining the term “auto,” it had not demonstrated that the van fell within the relied-upon policy exclusion.

We affirm, but for a different reason. The work performed by the injured plaintiff did not constitute “maintenance” of an auto. “Maintenance,” as that term is used in an insurance policy, means performance of work on “an intrinsic part of the mechanism of the car and its overall function” (*Farmers Fire Ins. Co. v Kingsbury*, 105 AD2d 519, 520 [3d Dept 1984] [removing tire from rim constitutes maintenance] [citation omitted], *lv denied* 64 NY2d 607 [1985]; see *Pennsylvania Millers Mut. Ins. Co. v Manco*, 63 NY2d 940, 942 [1984] [changing a tire constitutes maintenance]). Riveting metal to a van in furtherance of its conversion to an ice cream truck aids in transforming the auto’s function, an activity distinct from “maintenance.”

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[875 NE2d 24, 843 NYS2d 532]

NATASHA ALVARADO, Appellant, v CARY H. MILES, D.D.S., Respondent.

Decided September 11, 2007

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First

Judicial Department, entered August 10, 2006. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Alice Schlesinger, J.), which had denied defendant's motion for summary judgment, (2) granted the motion and (3) dismissed the complaint.

Plaintiff commenced a dental malpractice action for injuries allegedly sustained as a result of teeth extractions. Plaintiff alleged that defendant dentist committed malpractice when he failed to personally see plaintiff the day following the extractions when she called his office with complaints of pain and swelling, and when defendant failed to provide for alternate aftercare treatment while he was away for the weekend following the extractions.

Alvarado v Miles, 32 AD3d 255, affirmed.

HEADNOTE

Physicians and Surgeons — Dentists — Malpractice

In a dental malpractice action arising from injuries plaintiff allegedly suffered as a result of teeth extractions, the Appellate Division properly dismissed the complaint. Plaintiff's expert affidavit was conclusory and insufficient to raise an issue of fact as to whether defendant's failure to see plaintiff personally the day after the extractions was a departure from the requisite standard of care. There was conflicting evidence as to whether defendant departed from the requisite standard of care by failing to arrange coverage for plaintiff during his absence following the extractions, but this failure, if it occurred, was not a substantial factor in causing plaintiff's injuries.

APPEARANCES OF COUNSEL

Debra S. Reiser, New York City, for appellant.

Newman Fitch Altheim Myers, PC, New York City (*Michael H. Zhu* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The expert affidavit submitted by plaintiff is conclusory and insufficient to raise an issue of fact as to whether defendant's failure to see plaintiff personally on July 11 was a departure from the requisite standard of care. There is conflicting evidence as to whether defendant departed from the requisite standard of care by failing to arrange coverage for plaintiff during his absence on July 13, but this failure, if it occurred, was not a substantial factor in causing plaintiff's injuries.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[875 NE2d 24, 843 NYS2d 532]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MANUEL RIVERA, Also Known as ANGEL RIVERA, Appellant.

Decided September 11, 2007

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 3, 2006. The Appellate Division (1) affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J.), which had convicted defendant, upon his pleas of guilty, of unlawful wearing of a body vest and bail jumping in the second degree and (2) affirmed a judgment of that court (Rena K. Uviller, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the third degree (four counts), and unlawful wearing of a body vest.

On appeal, defendant challenged Supreme Court's denial of his challenges for cause against two jurors and asserted a constitutional challenge to the procedure under which he was adjudicated a persistent violent felony offender. The Appellate Division concluded that defendant's challenge of the first prospective juror was properly denied; that defendant's challenge of the second prospective juror, who used the terms "try" and "believe" in answers during voir dire, was also properly denied, since the trial court, evaluating the whole examination of the juror including his appearance and demeanor, determined that he was trying to be as candid as he possibly could, but ultimately gave an unequivocal assurance of impartiality, and that defendant's constitutional challenge was unpreserved for review.

People v Rivera, 33 AD3d 303, affirmed.

HEADNOTES

Crimes — Jurors — Selection of Jury

1. The trial court did not err as a matter of law in denying defendant's for-cause challenge to a prospective juror who used the terms "try" and "believe"

in answers during voir dire where the court, evaluating the whole examination of the juror including his appearance and demeanor, determined that the juror was trying to be as candid as he possibly could, but ultimately gave an unequivocal assurance of impartiality (see *People v Arnold*, 96 NY2d 358, 362-363 [2001]; *People v Johnson*, 94 NY2d 600, 610-614 [2000]).

Crimes — Disclosure — Notice of Intention to Offer Evidence

2. In defendant's criminal prosecution for weapons possession and unlawful wearing of a body vest, any error in the People's failure to provide defendant notice under CPL 710.30 (1) (b) of their intent to introduce a police officer's identification testimony was harmless, since the evidence supporting defendant's guilt was overwhelming.

Crimes — Appeal — Preservation of Issue for Review

3. Defendant's constitutional challenge to his adjudication as a persistent violent felony offender (Penal Law § 70.08) was not preserved for review in the Court of Appeals.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Robert S. Dean* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Frank Glaser* and *Sylvia Wertheimer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed.

[1-3] The trial court did not err as a matter of law in denying defendant's for-cause challenge to prospective juror R.P. (see *People v Arnold*, 96 NY2d 358, 362-363 [2001]; *People v Johnson*, 94 NY2d 600, 610-614 [2000]). In addition, because the evidence supporting defendant's guilt is overwhelming, any error in the People's failure to provide him notice under CPL 710.30 (1) (b) of its intent to introduce the police officer's identification testimony is harmless (see generally *People v Grant*, 7 NY3d 421, 424 [2006]; *People v Crimmins*, 36 NY2d 230, 241-242 [1975]). Defendant's constitutional challenge to his adjudication as a persistent violent felony offender (see Penal Law § 70.08) is not preserved for this Court's review and his remaining contention lacks merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, in a memorandum.

CYPRIAN C. DAVIS, Appellant, v PEEK A BOO CAB CORP. et al.,
Respondents.

Submitted July 9, 2007; decided September 11, 2007

Reported below, 38 AD3d 708.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD DUBI et al., Appellants, v JERICHO FIRE DISTRICT et al.,
Respondents.

Submitted June 18, 2007; decided September 11, 2007

Reported below, 22 AD3d 631.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

HOUSEHOLD FINANCE REALTY CORPORATION OF NEW YORK, Respondent, v PETER GONZALEZ et al., Appellants, et al., Defendants.

Submitted August 20, 2007; decided September 11, 2007

Reported below, 39 AD3d 1138.

Motion for reconsideration of this Court's July 2, 2007 dismissal order denied [*see* 9 NY3d 859].

CHARLES McALLISTER, Appellant, v STATE OF NEW YORK, Respondent.

Submitted August 20, 2007; decided September 11, 2007

Motion to vacate this Court's July 18, 2007 dismissal order denied [*see* 9 NY3d 862].

In the Matter of JAMES NEVILLE, as Executor of EUGENE F. MARTIN, JR., Deceased, Respondent, v MARIE THERESE MARTIN et al., Appellants.

Submitted June 25, 2007; decided September 11, 2007

Reported below, 38 AD3d 386.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NOB HILL CONDOMINIUM, SECTION I, Appellant, v SUSAN GARRAHAN, Respondent.

Submitted June 18, 2007; decided September 11, 2007

Reported below, 38 AD3d 630.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NURAYAH J. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; FAIZA J., Respondent.

Submitted July 9, 2007; decided September 11, 2007

Reported below, 41 AD3d 477.

Motion for leave to appeal etc. denied. Motion for a stay dismissed as academic.

Chief Judge KAYE taking no part.

NYCTL 1999-1 TRUST et al., Respondents, v NY PRIDE HOLDINGS, INC., et al., Defendants, and UNION STREET MANAGEMENT GROUP, LTD., Appellant. BARODA PROPERTIES, INC., et al., Proposed Intervenors-Respondents.

Submitted June 18, 2007; decided September 11, 2007

Reported below, 34 AD3d 774.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NORA RENZULLI, Appellant, v TERRENCE J. McELRATH, as Judge of the Richmond County Family Court, Respondent.

Submitted June 25, 2007; decided September 11, 2007

Reported below, 286 AD2d 335.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of the Claim of GEORGE TAYLOR, Appellant, v
RALEIGH HOTEL et al., Respondents. WORKERS' COMPEN-
SATION BOARD, Respondent.

Submitted July 16, 2007; decided September 11, 2007

Reported below, 35 AD3d 1053.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANDRZEJ TERCJAK, Respondent, v JADWIGA TER-
CJAK, Appellant.

Submitted June 25, 2007; decided September 11, 2007

Reported below, 2007 NY Slip Op 68812(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[875 NE2d 883, 844 NYS2d 165]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE
COLLIER, Appellant.

Decided September 18, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 21, 2006. The Appellate Division affirmed a judgment of the Rensselaer County Court (Patrick J. McGrath, J.), which had convicted defendant, upon his plea of guilty, of attempted robbery in the first degree.

Defendant pleaded guilty to attempted first-degree robbery in exchange for a second violent felony offender sentence of

eight years in prison to run consecutive to a sentence in another case. County Court sentenced defendant according to the plea agreement but also ordered him to serve five years of postrelease supervision. In the Court of Appeals defendant argued that he was entitled to vacatur of his plea because County Court failed to advise him of the postrelease supervision component of his sentence at the time his plea was entered and that he was entitled to raise the issue on appeal notwithstanding his failure to preserve the issue by a post-allocation motion (*People v Louree*, 8 NY3d 541 [2007]).

People v Collier, 35 AD3d 1037, reversed.

HEADNOTE

Crimes — Plea of Guilty — Failure to Advise Defendant of Postrelease Supervision

In a criminal prosecution wherein defendant pleaded guilty to attempted first-degree robbery and County Court sentenced defendant according to the agreement but also ordered him to serve five years of postrelease supervision, and wherein defendant argued on appeal that he was entitled to vacatur of the plea based on the court's failure to advise him of the postrelease supervision component of his sentence during the plea allocution, an Appellate Division order affirming the conviction was reversed, defendant's plea was vacated and the case was remitted to County Court for further proceedings on the information (see *People v Louree*, 8 NY3d 541 [2007]).

APPEARANCES OF COUNSEL

Eugene P. Grimmick, Troy, for appellant.

Patricia A. DeAngelis, *District Attorney*, Troy (*Anne L. Von Fricken Coonrad* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, defendant's plea vacated and case remitted to County Court, Rensselaer County, for further proceedings on the information (see *People v Louree*, 8 NY3d 541 [2007]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[875 NE2d 883, 844 NYS2d 165]

LISA BISHOP et al., Appellants, v RONA MAURER, Defendant, and
GOODKIND LABATON RUDOFF & SUCHAROW, LLP, et al.,
Respondents.

Decided September 18, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 24, 2006. The Appellate Division (1) affirmed an order of the Supreme Court, New York County (Emily Jane Goodman, J.), entered October 14, 2004, which, upon reargument, had adhered to a prior order of that court (Emily Jane Goodman, J.), entered November 20, 2003, granting defendants' motion to dismiss plaintiffs' legal malpractice cause of action, and (2) dismissed the appeal from the order entered November 20, 2003, as superseded by the order entered October 14, 2004. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

Plaintiff commenced a legal malpractice action alleging that defendants failed to perceive a conflict of interest in representing him and his wife regarding estate planning and failed to inform him as to the provisions of the estate planning instruments he executed.

Bishop v Maurer, 33 AD3d 497, affirmed.

HEADNOTE**Attorney and Client — Malpractice**

In a legal malpractice action arising from the execution of estate planning instruments for decedent and his wife, the Appellate Division properly affirmed an order dismissing plaintiffs' cause of action. Plaintiffs were bound by the estate planning documents decedent signed. Further, although the conclusiveness of an agreement does not preclude a malpractice action for negligently giving to a client an incorrect explanation of the agreements' contents, plaintiffs' complaint was devoid of any nonconclusory allegation that incorrect advice was given.

APPEARANCES OF COUNSEL

Lawrence H. Silverman, New York City, for appellants.

Simpson Thacher & Bartlett LLP, New York City (*Roy L. Reardon* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with

costs, and the certified question not answered on the ground that it is unnecessary. It is true that plaintiffs here, as is normally the case, are bound by the estate planning documents decedent signed. Nevertheless, the conclusiveness of the underlying agreement does not absolutely preclude an action for professional malpractice against an attorney for negligently giving to a client an incorrect explanation of the contents of a legal document (*see Arnav Indus., Inc. Retirement Trust v Brown, Raysman, Millstein, Felder & Steiner*, 96 NY2d 300, 305 [2001]). Here, however, plaintiffs' complaint is devoid of any nonconclusory allegation that incorrect advice was given.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

[875 NE2d 884, 844 NYS2d 166]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASOOL SALAAM, Appellant.

Decided September 18, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 4, 2007. The Appellate Division affirmed a judgment of the Schenectady County Court (Richard C. Giardino, J.), which had convicted defendant, upon his plea of guilty, of assault in the second degree (two counts).

Defendant pleaded guilty to assault in the second degree (two counts) in exchange for a second felony offender sentence of concurrent prison terms of three years. County Court sentenced defendant according to the plea agreement but also ordered him to serve five years of postrelease supervision. On appeal defendant contended that he was entitled to vacatur of his plea because County Court failed to advise him of the postrelease supervision component of his sentence at the time his plea was entered and that he was entitled to raise the issue on appeal notwithstanding his failure to preserve the issue by a postallocation motion (*People v Louree*, 8 NY3d 541 [2007]).

People v Salaam, 36 AD3d 969, reversed.

HEADNOTE**Crimes — Plea of Guilty — Failure to Advise Defendant of Postrelease Supervision**

In a criminal prosecution wherein defendant pleaded guilty to assault in the second degree (two counts) and County Court sentenced defendant according to the plea agreement but also ordered him to serve five years of postrelease supervision, and wherein defendant contended on appeal that he was entitled to vacatur of the plea based on the court's failure to advise him of the postrelease component of his sentence during the plea allocution, an Appellate Division order affirming the conviction was reversed, defendant's plea was vacated and the case was remitted to County Court for further proceedings on the indictments (*see People v Louree*, 8 NY3d 541 [2007]).

APPEARANCES OF COUNSEL

Susan T. Aron, Voorheesville, for appellant.

Robert M. Carney, District Attorney, Schenectady (*Alfred D. Chapleau* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, defendant's plea vacated and case remitted to County Court, Schenectady County, for further proceedings on the indictments (*see People v Louree*, 8 NY3d 541 [2007]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

ELIZABETH ALDEN, Appellant, v ONONDAGA COUNTY SHERIFF'S DEPARTMENT, Respondent.

Submitted July 30, 2007; decided September 18, 2007

Motion for reconsideration of this Court's June 12, 2007 dismissal order denied [*see* 8 NY3d 1017].

Judge PIGOTT taking no part.

In the Matter of the Claim of MICHAEL ALLEN, Respondent, v ENTERPRISE RENT-A-CAR et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 13, 2007; decided September 18, 2007

Reported below, 38 AD3d 970.

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 802].

MITCHELL BENESOWITZ, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY, Plan Administrator of HONEYWELL LONG TERM DISABILITY INCOME PLAN, et al., Respondents.

Submitted August 6, 2007; decided September 18, 2007

Motion for reargument denied [see 8 NY3d 661].

MITCHELL BENESOWITZ, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY, Plan Administrator of HONEYWELL LONG TERM DISABILITY INCOME PLAN, et al., Respondents.

Submitted August 6, 2007; decided September 18, 2007

Motion by the American Council of Life Insurers, et al. for leave to file a brief amici curiae on the motion for reargument herein granted and the brief is accepted as filed.

CELLUTECH, INC., et al., Respondents, v WATERTOWN INDUSTRIAL CENTER LOCAL DEVELOPMENT CORPORATION, Appellant, et al., Defendant.

Submitted September 4, 2007; decided September 18, 2007

Reported below, 42 AD3d 934.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the stipulation for judgment absolute filed does not meet the requisites of CPLR 5601 (c).

In the Matter of RICHARD CHAMPION, Appellant, v ROBERT DENISON, as Chair of the New York State Board of Parole, Respondent.

Submitted July 11, 2007; decided September 18, 2007

Reported below, 40 AD3d 1181.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

PETER J. CORINES, Appellant, v SENTRY LIFE INSURANCE CO. et al., Respondents.

Submitted July 2, 2007; decided September 18, 2007

Motion, insofar as it seeks leave to appeal as against United States Life Insurance Company and Continental Casualty Company, denied; motion, insofar as it seeks leave to appeal as against Sentry Life Insurance Company, dismissed as untimely. The prior application for leave to appeal to the Court of Appeals, made at the Appellate Division, insofar as against Sentry Life Insurance Company, was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [rev 3d ed 2005]).

SUSAN C. DARRIN, Appellant, v DAVID DARRIN, Respondent.

Submitted July 16, 2007; decided September 18, 2007

Reported below, 40 AD3d 1391.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DATA TREE, LLC, Appellant, v EDWARD P. ROMAIN, Respondent.

Submitted September 10, 2007; decided September 18, 2007

Reported below, 36 AD3d 804.

Motion by American Business Media et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

DAVE SANDEL, INC., Respondent, v SPECIALIZED INDUSTRIAL SERVICES CORP., Appellant.

Submitted July 9, 2007; decided September 18, 2007

Reported below, 35 AD3d 790.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HOSPITAL FOR JOINT DISEASES et al., Respondents, v TRAVELERS
PROPERTY CASUALTY INSURANCE COMPANY et al., Appellants.

Submitted September 10, 2007; decided September 18, 2007

Reported below, 34 AD3d 532.

Motion by New York Insurance Association, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

MONROE YALE MANN, Respondent, v BERNARD ABEL et al., Appellants, et al., Defendants.

Submitted August 6, 2007; decided September 18, 2007

Reported below, 37 AD3d 778.

Motion to dismiss the appeal herein denied.

In the Matter of MELVIN J., a Person Alleged to be a Juvenile
Delinquent, Appellant.

Submitted July 9, 2007; decided September 18, 2007

Reported below, 35 AD3d 609.

Motion for leave to appeal dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (8 NY3d 957 [2007]) from the same Appellate Division order from which he currently seeks leave to appeal. Motion for poor person relief dismissed as academic.

ERNO NUSSENZWEIG, Appellant, v PHILIP-LORCA DiCORCIA et al.,
Respondents.

Submitted September 10, 2007; decided September 18, 2007

Reported below, 38 AD3d 339.

Motion by the New York Times Company et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Chief Judge KAYE taking no part.

In the Matter of EMMANUEL O. ONUAGULUCHI, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Petitioner.

Submitted July 23, 2007; decided September 18, 2007

Reported below, 36 AD3d 823.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

ZICHRINI OSTER et al., Appellants, v STATE OF NEW YORK et al., Respondents.

Submitted September 4, 2007; decided September 18, 2007

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie (*see* NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONNELL DAVIS, Appellant.

Submitted July 23, 2007; decided September 18, 2007

Reported below, 9 AD3d 468.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID RIVERA, Appellant.

Submitted September 10, 2007; decided September 18, 2007

Reported below, 38 AD3d 292.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. A.E.F., on Behalf
of M.J.L.-F., Respondent, v K.T.L., Appellant.

In the Matter of K.T.L., Appellant, v A.E.F., Respondent.

Submitted September 4, 2007; decided September 18, 2007

Reported below, 40 AD3d 894.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHAKA MOXLEY,
Appellant, v ANTHONY ZON, as Superintendent of Wende
Correctional Facility, et al., Respondents.

Submitted August 6, 2007; decided September 18, 2007

Reported below, 34 AD3d 1185.

Motion for reargument of motion for leave to appeal denied.
Motion for poor person relief dismissed as academic [*see* 8 NY3d
811].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JUSTO RICH-
ARDS, Appellant, v CALVIN WEST, Respondent.

In the Matter of JUSTO RICHARDS, Appellant, v CALVIN WEST,
Respondent.

In the Matter of ROBERT WARD et al., Petitioners, and JUSTO
RICHARDS, Appellant, v ELIOT SPITZER, Respondent.

Submitted June 18, 2007; decided September 18, 2007

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the orders appealed from do not finally
determine the proceedings within the meaning of the Constitu-
tion. Motion for leave to appeal dismissed upon the ground that
the orders sought to be appealed from do not finally determine
the proceedings within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

In the Matter of CARMINE POLITO et al., Appellants, v JOHN P. WALSH, as Supreme Court Justice, et al., Respondents.

Submitted July 16, 2007; decided September 18, 2007

Reported below, 32 AD3d 953.

Motion for reargument denied [*see* 8 NY3d 683].

NICHOLAS RAFFELLINI, Respondent, v STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, Appellant.

Submitted September 10, 2007; decided September 18, 2007

Reported below, 36 AD3d 92.

Motion by New York Insurance Association, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of JERROLD SCHWARTZ, Appellant, v ROBERT DENNISON, as Chairman of the New York State Board of Parole, Respondent.

Submitted September 4, 2007; decided September 18, 2007

Reported below, 40 AD3d 218.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MORTON TABAK et al. Respondents, v MARTHA STEELE, Appellant, et al., Respondents.

Submitted September 4, 2007; decided September 18, 2007

Reported below, 38 AD3d 244.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

VSF COALITION, INC., et al., Appellants, v NICHOLAS SCOPPETTA et al., Respondents.

Submitted June 18, 2007; decided September 18, 2007

Reported below, 36 AD3d 690.

Motion, insofar as it seeks leave to appeal as against the Uniformed Firefighters Association, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied.

In the Matter of STEPHEN J. WILLIAMS (Admitted as STEPHEN JOHN WILLIAMS), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted July 23, 2007; decided September 18, 2007

Reported below, 33 AD3d 38.

Motion for reargument denied [*see* 8 NY3d 1007].

SHEILA ZIPPER et al., Respondents, v HAROLD DON COURT CONDOMINIUM et al., Respondents, and REBECCA ROSENBAUM, Also Known as REBECCA LUKOWSKY, Appellant.

Submitted August 27, 2007; decided September 18, 2007

Reported below, 39 AD3d 325.

On the Court's own motion, appeal, insofar as taken from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed, without costs, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(September 1, 2007 through September 30, 2007)

Avgush v Town of Yorktown	2d Dept: 35 AD3d 331	9/11/07
Ellington, Town of, v Lessett	Chautauqua County Ct, June 27, 2007	9/26/07

APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2007 through September 30, 2007)

Kosicki v Spring Garden Assn., Inc.	4th Dept: 42 AD3d 909	9/21/07
LaForte v Tiedemann	4th Dept: 41 AD3d 1191	9/6/07

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2007 through September 30, 2007)

People v Albert	2d Dept: 40 AD3d 1115 (Rockland)	denied 9/12/07 (Read, J.)
People v Alexander	4th Dept: 41 AD3d 1200 (Erie)	denied 9/7/07 (Jones, J.)
People v Allan	2d Dept: 41 AD3d 727 (Suffolk)	denied 9/7/07 (Jones, J.)
People v Anderson (Kevin)	1st Dept: 40 AD3d 512 (NY)	denied 9/7/07 (Pigott, J.)
People v Anderson (Richard)	4th Dept: 41 AD3d 1221 (Allegany)	denied 9/7/07 (Jones, J.)
People v Armstrong	App Div, 2d Dept: 2007 NY Slip Op 69107(U) (Queens)	denied reconsideration 9/24/07 (Smith, J.)
People v Ayala	2d Dept: 40 AD3d 1116 (Putnam)	denied 9/26/07 (Grafteo, J.)
People v Azaz	2d Dept: 41 AD3d 610 (Kings)	granted 9/26/07 (Ciparick, J.)
People v Bahadur	1st Dept: 41 AD3d 239 (NY)	denied 9/7/07 (Pigott, J.)
People v Baker	2d Dept: 40 AD3d 1007 (Kings)	denied 9/7/07 (Jones, J.)
People v Barnes (Alfred)	2d Dept: 41 AD3d 613 (Nassau)	denied 9/7/07 (Smith, J.)
People v Barnes (Jessie)	4th Dept: 41 AD3d 1309 (Seneca)	denied 9/20/07 (Ciparick, J.)
People v Barnwell	2d Dept: 40 AD3d 774 (Kings)	denied 9/7/07 (Jones, J.)
People v Bart	4th Dept: 41 AD3d 1200 (Erie)	denied 9/7/07 (Jones, J.)
People v Beard (Melissa)	4th Dept: 41 AD3d 1251 (Oneida)	denied 9/7/07 (Smith, J.)
People v Beard (Melissa)	4th Dept: 41 AD3d 1251 (Oneida)	denied 9/7/07 (Smith, J.)
People v Bellamy	2d Dept: 39 AD3d 658 (Queens)	denied 9/7/07 (Jones, J.)

MEMORANDA

921

People v Benjamin	App Div, 1st Dept: 2007 NY Slip Op 74276(U) (NY)	denied reconsideration 9/17/07 (Ciparick, J.)
People v Bieniasz	App Term, 1st Dept: 15 Misc 3d 140(A) (NY)	denied 9/20/07 (Read, J.)
People v Bonelli	3d Dept: 41 AD3d 972 (Ulster)	denied 9/7/07 (Jones, J.)
People v Branch	App Term, 2d Dept: 16 Misc 3d 128(A) (Queens)	denied 9/24/07 (Ciparick, J.)
People v Brescia	2d Dept: 41 AD3d 613 (Dutchess)	denied 9/26/07 (Grafteo, J.)
People v Bridgewater	App Div, 1st Dept: 2007 NY Slip Op 73885(U) (Bronx)	denied 9/26/07 (Grafteo, J.)
People v Broughton	2d Dept: 40 AD3d 1007 (Westchester)	denied 9/12/07 (Read, J.)
People v Brown (Anthony)	4th Dept: 41 AD3d 1234 (Erie)	denied 9/7/07 (Jones, J.)
People v Brown (Kevin)	2d Dept: 39 AD3d 659 (Kings)	denied 9/12/07 (Read, J.)
People v Brown (Kevin)	2d Dept: 39 AD3d 660 (Kings)	denied 9/12/07 (Read, J.)
People v Brown (Wesley)	4th Dept: 39 AD3d 1207 (Monroe)	denied 9/7/07 (Jones, J.)
People v Bunker	2d Dept: 40 AD3d 656 (Westchester)	denied 9/7/07 (Jones, J.)
People v Burgess	1st Dept: 40 AD3d 322 (Bronx)	denied 9/12/07 (Pigott, J.)
People v Butch	4th Dept: 41 AD3d 1235 (Erie)	denied 9/7/07 (Jones, J.)
People v Cambridge	1st Dept: 42 AD3d 350 (NY)	denied 9/7/07 (Pigott, J.)
People v Camerena	3d Dept: 42 AD3d 814 (St. Lawrence)	denied 9/20/07 (Smith, J.)
People v Campbell	App Term, 2d Dept: 16 Misc 3d 128(A) (Nassau)	denied 9/26/07 (Grafteo, J.)
People v Carter (Edwin)	4th Dept: 41 AD3d 1250 (Monroe)	denied 9/7/07 (Jones, J.)
People v Carter (Edwin)	4th Dept: 41 AD3d 1250 (Monroe)	denied 9/7/07 (Jones, J.)
People v Carter (Edwin)	4th Dept: 41 AD3d 1251 (Monroe)	denied 9/7/07 (Jones, J.)
People v Carvajal	App Div, 1st Dept: 2007 NY Slip Op 70266(U) (NY)	denied 9/7/07 (Pigott, J.)
People v Cestano	1st Dept: 40 AD3d 238 (NY)	denied 9/18/07 (Pigott, J.)
People v Chilcote	4th Dept: 42 AD3d 961 (Niagara)	denied 9/26/07 (Grafteo, J.)
People v Coffin	App Div, 4th Dept, 6/18/07 (Oneida)	dismissed 9/12/07 (Read, J.)

People v Colon	2d Dept: 42 AD3d 549 (Kings)	denied 9/26/07 (Grafteo, J.)
People v Coss	3d Dept: 41 AD3d 1032 (Delaware)	denied 9/17/07 (Read, J.)
People v Cotto	4th Dept: 41 AD3d 1172 (Oneida)	denied 9/24/07 (Ciparick, J.)
People v Courtney	App Term, 1st Dept: 15 Misc 3d 140(A) (NY)	denied 9/20/07 (Read, J.)
People v Cummings	4th Dept: 41 AD3d 1182 (Niagara)	denied 9/12/07 (Read, J.)
People v Daloisio	App Term, 1st Dept: 15 Misc 3d 140(A) (NY)	denied 9/20/07 (Read, J.)
People v Davenport	4th Dept: 35 AD3d 1277 (Erie)	denied reconsideration 9/20/07 (Smith, J.)
People v Davis	4th Dept: 41 AD3d 1288 (Steuben)	denied 9/7/07 (Jones, J.)
People v Dayo	2d Dept: 42 AD3d 470 (Kings)	denied 9/21/07 (Pigott, J.)
People v DeDeo	App Div, 3d Dept: 2007 NY Slip Op 75395(U) (Columbia)	dismissed 9/12/07 (Ciparick, J.)
People v Delaney	3d Dept: 42 AD3d 820 (Albany)	denied 9/26/07 (Grafteo, J.)
People v Dewindt	2d Dept: 38 AD3d 681 (Kings)	denied 9/7/07 (Jones, J.)
People v Diggs	2d Dept: 38 AD3d 565 (Dutchess)	denied 9/7/07 (Jones, J.)
People v Dixon	2d Dept: 41 AD3d 861 (Rockland)	denied 9/21/07 (Pigott, J.)
People v Douglas	3d Dept: 42 AD3d 756 (Broome)	denied 9/21/07 (Pigott, J.)
People v Dukuray	1st Dept: 41 AD3d 141 (Bronx)	denied 9/7/07 (Pigott, J.)
People v Dushain	App Div, 1st Dept: 2007 NY Slip Op 73448(U) (NY)	denied 9/24/07 (Pigott, J.)
People v Fesefeldt	App Term, 1st Dept: 15 Misc 3d 140(A) (NY)	denied 9/20/07 (Read, J.)
People v Figueroa	2d Dept: 42 AD3d 576 (Suffolk)	denied 9/21/07 (Pigott, J.)
People v Fisher	4th Dept: 41 AD3d 1144 (Erie)	denied 9/7/07 (Jones, J.)
People v Florencio	1st Dept: 41 AD3d 113 (Bronx)	denied 9/26/07 (Ciparick, J.)
People v Frazier	2d Dept: 35 AD3d 759 (Queens)	renewed application granted 9/21/07 (Smith, J.)
People v Freycinet	2d Dept: 41 AD3d 731 (Queens)	granted 9/24/07 (Ciparick, J.)

MEMORANDA

923

People v Frith	App Div, 1st Dept: 2007 NY Slip Op 69175(U) (NY)	denied reconsideration 9/24/07 (Smith, J.)
People v Grady	3d Dept: 40 AD3d 1368 (Albany)	denied 9/13/07 (Smith, J.)
People v Green	1st Dept: 41 AD3d 162 (NY)	denied 9/7/07 (Smith, J.)
People v Griffin	4th Dept: 41 AD3d 1285 (Monroe)	denied 9/12/07 (Read, J.)
People v Hawkins	4th Dept: 41 AD3d 1314 (Monroe)	denied 9/7/07 (Smith, J.)
People v Hayes (Robert)	4th Dept: 39 AD3d 1173 (Oneida)	denied 9/20/07 (Smith, J.)
People v Hayes (Robert)	4th Dept: 39 AD3d 1175 (Oneida)	denied 9/20/07 (Smith, J.)
People v Healey-Ombler	App Div, 2d Dept: 2007 NY Slip Op 74840(U) (Kings)	dismissed 9/14/07 (Grafteo, J.)
People v Hines	2d Dept: 41 AD3d 734 (Orange)	denied 9/26/07 (Grafteo, J.)
People v Holmes (John)	4th Dept: 41 AD3d 1306 (Niagara)	denied 9/7/07 (Jones, J.)
People v Holmes (Louis)	App Div, 2d Dept: 2007 NY Slip Op 76106(U) (Kings)	dismissed 9/24/07 (Pigott, J.)
People v Jacobs	3d Dept: 37 AD3d 866 (Ulster)	denied 9/7/07 (Jones, J.)
People v Jay	2d Dept: 41 AD3d 615 (Nassau)	denied 9/20/07 (Smith, J.)
People v Jeanty	4th Dept: 41 AD3d 1223 (Herkimer)	denied 9/7/07 (Jones, J.)
People v Jernigan	1st Dept: 41 AD3d 331 (NY)	denied 9/26/07 (Ciparick, J.)
People v Jian Ming Huang	App Div, 1st Dept: 2007 NY Slip Op 69013(U) (NY)	denied 9/7/07 (Jones, J.)
People v Johnson (Bernard)	1st Dept: 41 AD3d 114 (NY)	denied 9/26/07 (Ciparick, J.)
People v Johnson (David)	2d Dept: 40 AD3d 1011 (Kings)	denied 9/7/07 (Jones, J.)
People v Johnson (Kristopher)	3d Dept: 42 AD3d 753 (Broome)	denied 9/26/07 (Grafteo, J.)
People v Jones (Edwin)	2d Dept: 41 AD3d 509 (Suffolk)	denied 9/12/07 (Read, J.)
People v Jones (Eric)	1st Dept: 41 AD3d 242 (NY)	denied 9/24/07 (Ciparick, J.)
People v Kidkarndee	1st Dept: 41 AD3d 247 (NY)	denied 9/7/07 (Pigott, J.)
People v Leslie	2d Dept: 41 AD3d 510 (Suffolk)	denied 9/20/07 (Ciparick, J.)
People v Lewis	1st Dept: 41 AD3d 139 (NY)	denied 9/4/07 (Kaye, Ch.J.)

People v Lockwood	App Div, 1st Dept: 2007 NY Slip Op 71540(U) (Bronx)	denied 9/26/07 (Grafteo, J.)
People v Lozada	3d Dept: 41 AD3d 1042 (Sullivan)	denied 9/10/07 (Kaye, Ch.J.)
People v Lyons	2d Dept: 41 AD3d 864 (Westchester)	denied 9/20/07 (Smith, J.)
People v Mann	3d Dept: 41 AD3d 977 (Albany)	denied 9/7/07 (Jones, J.)
People v Martin	2d Dept: 41 AD3d 616 (Westchester)	denied 9/17/07 (Read, J.)
People v Martinez	1st Dept: 41 AD3d 314 (NY)	denied 9/7/07 (Pigott, J.)
People v Mattison	4th Dept: 41 AD3d 1224 (Herkimer)	denied 9/12/07 (Read, J.)
People v Maxfield (Melissa)	4th Dept: 41 AD3d 1251 (Oneida)	denied 9/7/07 (Smith, J.)
People v Maxfield (Melissa)	4th Dept: 41 AD3d 1251 (Oneida)	denied 9/7/07 (Smith, J.)
People v McNeil	1st Dept: 41 AD3d 284 (NY)	denied 9/7/07 (Jones, J.)
People v McNulty	4th Dept: 42 AD3d 962 (Monroe)	denied 9/26/07 (Ciparick, J.)
People v Mercedes	2d Dept: 41 AD3d 864 (Nassau)	denied 9/26/07 (Grafteo, J.)
People v Mestres	2d Dept: 41 AD3d 618 (Kings)	denied 9/17/07 (Pigott, J.)
People v Miller	App Div, 1st Dept: 2007 NY Slip Op 70814(U) (Bronx)	denied 9/24/07 (Ciparick, J.)
People v Mitchell	3d Dept: 41 AD3d 1045 (Ulster)	denied 9/28/07 (Pigott, J.)
People v Moore	2d Dept: 39 AD3d 672 (Kings)	denied 9/7/07 (Jones, J.)
People v Morson	2d Dept: 42 AD3d 505 (Queens)	denied 9/28/07 (Pigott, J.)
People v Morton	App Div, 1st Dept: 2007 NY Slip Op 68396(U) (Bronx)	denied 9/8/07 (Pigott, J.)
People v Munford	App Div, 2d Dept: 2007 NY Slip Op 71446(U) (Kings)	denied reconsideration 9/12/07 (Ciparick, J.)
People v Negron	2d Dept: 41 AD3d 865 (Queens)	denied 9/24/07 (Smith, J.)
People v Nelson (Francis)	2d Dept: 40 AD3d 1126 (Kings)	denied 9/17/07 (Read, J.)
People v Nelson (Yolanda)	4th Dept: 41 AD3d 1316 (Monroe)	denied 9/20/07 (Read, J.)
People v Niver	3d Dept: 41 AD3d 961 (Schuyler)	denied 9/17/07 (Read, J.)
People v Norman (Clarence)	2d Dept: 40 AD3d 1128 (Kings)	denied 9/25/07 (Ciparick, J.)

MEMORANDA

925

People v Norman (Clarence)	2d Dept: 40 AD3d 1130 (Kings)	denied 9/25/07 (Ciparick, J.)
People v Nunez	App Div, 1st Dept: 2007 NY Slip Op 73885(U) (Bronx)	denied 9/26/07 (Grafteo, J.)
People v Oleman	2d Dept: 41 AD3d 738 (Richmond)	denied 9/7/07 (Jones, J.)
People v Ortega	1st Dept: 41 AD3d 110 (Bronx)	denied 9/12/07 (Read, J.)
People v Ortiz	1st Dept: 39 AD3d 423 (NY)	denied 9/7/07 (Jones, J.)
People v Osorio	1st Dept: 39 AD3d 400 (Bronx)	denied 9/7/07 (Jones, J.)
People v Ossorio	1st Dept: 39 AD3d 400 (Bronx)	denied 9/7/07 (Jones, J.)
People v Palmer	1st Dept: 40 AD3d 505 (NY)	denied 9/4/07 (Kaye, Ch.J.)
People v Patterson	1st Dept: 41 AD3d 169 (NY)	denied 9/26/07 (Ciparick, J.)
People v Perkins	App Div, 3d Dept, 6/29/07 (Rensselaer)	denied 9/26/07 (Grafteo, J.)
People v Pesante-Davila	4th Dept: 42 AD3d 940 (Ontario)	denied 9/26/07 (Ciparick, J.)
People v Ponder	4th Dept: 42 AD3d 880 (Monroe)	denied 9/17/07 (Read, J.)
People v Punter	1st Dept: 41 AD3d 320 (Bronx)	denied 9/21/07 (Pigott, J.)
People v Raffaele	2d Dept: 41 AD3d 869 (Westchester)	denied 9/7/07 (Pigott, J.)
People v Ragland	2d Dept: 36 AD3d 943 (Rockland)	denied 9/7/07 (Jones, J.)
People v Remp	App Div, 4th Dept, 8/13/07 (Herkimer)	dismissed 9/17/07 (Ciparick, J.)
People v Riddick	3d Dept: 40 AD3d 1259 (Albany)	denied 9/7/07 (Jones, J.)
People v Riley	1st Dept: 41 AD3d 320 (Bronx)	denied 9/21/07 (Pigott, J.)
People v Rizzi	1st Dept: 41 AD3d 345 (NY)	denied 9/7/07 (Jones, J.)
People v Robinson (Aiye)	2d Dept: 39 AD3d 772 (Kings)	denied 9/21/07 (Pigott, J.)
People v Robinson (Claude)	1st Dept: 41 AD3d 317 (Bronx)	denied 9/24/07 (Ciparick, J.)
People v Robinson (Stephen)	App Div, 1st Dept: 2007 NY Slip Op 69799(U) (Bronx)	dismissed 9/20/07 (Smith, J.)
People v Rodriguez	2d Dept: 41 AD3d 741 (Queens)	denied 9/21/07 (Pigott, J.)
People v Rosario	4th Dept: 41 AD3d 1307 (Livingston)	denied 9/7/07 (Jones, J.)

People v Rose (Eric)	2d Dept: 41 AD3d 742 (Suffolk)	denied 9/12/07 (Read, J.)
People v Rose (Tanya)	3d Dept: 41 AD3d 1033 (Greene)	denied 9/7/07 (Pigott, J.)
People v Ross (Larry)	App Div, 1st Dept: 2007 NY Slip Op 73899(U) (Bronx)	denied 9/26/07 (Grafteo, J.)
People v Ross (Troy)	2d Dept: 41 AD3d 870 (Westchester)	denied 9/7/07 (Smith, J.)
People v Rumrill	3d Dept: 40 AD3d 1273 (Rensselaer)	denied 9/4/07 (Kaye, Ch.J.)
People v Salnave	2d Dept: 41 AD3d 872 (Queens)	denied 9/24/07 (Smith, J.)
People v Santos (Kelvin)	2d Dept: 42 AD3d 578 (Kings)	denied 9/26/07 (Grafteo, J.)
People v Santos (Samuel)	4th Dept: 41 AD3d 1307 (Livingston)	denied 9/07/07 (Jones, J.)
People v Santos (Steven)	1st Dept: 41 AD3d 324 (NY)	denied 9/26/07 (Ciparick, J.)
People v Sawyer	3d Dept: 41 AD3d 1089 (Essex)	denied 9/7/07 (Jones, J.)
People v SB	3d Dept: 40 AD3d 1259 (Albany)	denied 9/7/07 (Jones, J.)
People v Schouenborg	2d Dept: 42 AD3d 473 (Suffolk)	denied 9/7/07 (Pigott, J.)
People v Seymour	4th Dept: 42 AD3d 952 (Onondaga)	denied 9/26/07 (Ciparick, J.)
People v Shakur	App Div, 2d Dept, 2007 NY Slip Op 76106(U) (Kings)	dismissed 9/24/07 (Pigott, J.)
People v Sherry	4th Dept: 41 AD3d 1235 (Erie)	denied 9/7/07 (Jones, J.)
People v Simmons (Richard)	4th Dept: 42 AD3d 961 (Niagara)	denied 9/20/07 (Smith, J.)
People v Simmons (Richard)	4th Dept: 42 AD3d 961 (Niagara)	denied 9/20/07 (Smith, J.)
People v Simmons (Richard)	4th Dept: 42 AD3d 961 (Niagara)	denied 9/20/07 (Smith, J.)
People v Singh	2d Dept: 40 AD3d 1015 (Nassau)	denied 9/17/07 (Read, J.)
People v Smith	4th Dept: 37 AD3d 1141 (Erie)	denied reconsideration 9/7/07 (Smith, J.)
People v Solovey	4th Dept: 41 AD3d 1182 (Genesee)	denied 9/7/07 (Jones, J.)
People v Stapleton	2d Dept: 41 AD3d 744 (Queens)	denied 9/17/07 (Read, J.)
People v Sullivan	3d Dept: 41 AD3d 967 (Broome)	denied 9/12/07 (Read, J.)
People v Sylvester	3d Dept: 40 AD3d 1261 (Washington)	denied 9/7/07 (Jones, J.)

MEMORANDA

927

People v Taliafero	1st Dept: 40 AD3d 472 (NY)	denied 9/7/07 (Jones, J.)
People v Taliefrero	1st Dept: 40 AD3d 472 (NY)	denied 9/7/07 (Jones, J.)
People v Tam	2d Dept: 40 AD3d 892 (Queens)	denied 9/12/07 (Read, J.)
People v Tantas	1st Dept: 40 AD3d 478 (Bronx)	denied 9/4/07 (Kaye, Ch.J.)
People v Taylor (Ernest)	2d Dept: 40 AD3d 782 (Kings)	denied 9/10/07 (Kaye, Ch.J.)
People v Taylor (Phillip)	App Div, 1st Dept: 2007 NY Slip Op 71828(U) (Bronx)	denied 9/7/07 (Pigott, J.)
People v Terry	1st Dept: 38 AD3d 297 (Bronx)	denied 9/12/07 (Pigott, J.)
People v Thompson (Bernard)	App Div, 3d Dept, 5/8/07 (Rensselaer)	denied 9/4/07 (Kaye, Ch.J.)
People v Thompson (Rahmel)	2d Dept: 40 AD3d 1134 (Queens)	denied 9/26/07 (Ciparick, J.)
People v Thousand	4th Dept: 41 AD3d 1272 (Monroe)	denied 9/7/07 (Smith, J.)
People v Torres	1st Dept: 41 AD3d 292 (NY)	denied 9/4/07 (Kaye, Ch.J.)
People v Trotto	App Term, 1st Dept: 15 Misc 3d 140(A) (NY)	denied 9/20/07 (Read, J.)
People v Trumaine	1st Dept: 41 AD3d 261 (NY)	denied 9/7/07 (Jones, J.)
People v Turane	1st Dept: 41 AD3d 261 (NY)	denied 9/7/07 (Jones, J.)
People v Walker	2d Dept: 41 AD3d 516 (Suffolk)	denied 9/7/07 (Jones, J.)
People v Ware	2d Dept: 36 AD3d 838 (Kings)	renewed application granted 9/25/07 (Jones, J.)
People v Washington	1st Dept: 40 AD3d 228 (NY)	denied 9/7/07 (Jones, J.)
People v Waterman	4th Dept: 39 AD3d 1259 (Wayne)	denied 9/26/07 (Ciparick, J.)
People v Weber	3d Dept: 40 AD3d 1267 (Rensselaer)	denied 9/7/07 (Jones, J.)
People v White	1st Dept: 40 AD3d 478 (NY)	denied 9/12/07 (Read, J.)
People v Williams (Bryan)	3d Dept: 40 AD3d 1364 (Rensselaer)	denied 9/7/07 (Smith, J.)
People v Williams (Hosie)	4th Dept: 38 AD3d 1232 (Erie)	denied reconsideration 9/7/07 (Jones, J.)
People v Wilson	4th Dept: 38 AD3d 1348 (Onondaga)	denied 9/7/07 (Jones, J.)
People v Winterfield	2d Dept: 41 AD3d 518 (Suffolk)	denied 9/10/07 (Kaye, Ch.J.)

People v Wood	2d Dept: 40 AD3d 663 (Kings)	denied 9/7/07 (Jones, J.)
People v Wright	4th Dept: 41 AD3d 1221 (Monroe)	denied 9/7/07 (Smith, J.)

[876 NE2d 500, 844 NYS2d 773]

CERTAIN UNDERWRITERS AT LLOYD’S, LONDON, et al., Plaintiffs, v
FOSTER WHEELER CORPORATION, Respondent, and AFFILI-
ATED FM INSURANCE COMPANY et al., Appellants, et al.,
Defendants.

Argued September 6, 2007; decided October 11, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 28, 2006. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Barbara R. Kapnick, J.), which had denied defendant Foster Wheeler Corporation’s motion for partial summary judgment declaring that New Jersey substantive law governed the issues in the action and had granted defendant insurers’ motion for partial summary judgment declaring that New York substantive law governed, (2) denied the defendant insurers’ motion, and (3) granted defendant Foster Wheeler Corporation’s motion to the extent of declaring that the liability insurance policies issued by defendant insurers providing primary and lower-level excess coverage for the same years were governed by New Jersey substantive law. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Defendant nonsettling insurers sought an apportionment of responsibility for the defense and indemnity costs of nationwide asbestos-related personal injury claims against defendant manufacturer under policies they issued while the manufacturer’s principal place of business was in New Jersey.

The Appellate Division concluded that New Jersey substantive law was applicable, under a grouping of contacts analysis, to determine the coverage obligation of each nonsettling insurer in the absence of any choice-of-law provisions in the policies;

that application of New Jersey law was warranted even if New York constituted the place of contracting, negotiation and the insured's performance; that in determining the law governing liability insurance policies covering multistate risks a court should look to the state of the insured's principal place of business, the insured's domicile, as the primary factor, and that the state of the insured's principal place of business had a greater concern with issues of policy construction and application bearing on the amount of coverage than did the states where contracting, negotiation, or payment of the premium occurred.

Certain Underwriters at Lloyd's, London v Foster Wheeler Corp., 36 AD3d 17, affirmed.

HEADNOTE

Conflict of Laws — Law Governing Contract Actions — Law Governing Liability Insurance Policies Covering Multistate Risks

In a declaratory judgment action by nonsettling insurers seeking an apportionment of responsibility for the defense and indemnity costs of nationwide asbestos-related personal injury claims against defendant manufacturer, under policies they issued to the defendant while its principal place of business was in New Jersey, an order of the Appellate Division, which had reversed an order of Supreme Court and granted summary judgment to defendant manufacturer, was affirmed for the reasons stated at the Appellate Division, which concluded that New Jersey substantive law was applicable, under a grouping of contacts analysis, to determine the coverage obligation of each nonsettling insurer in the absence of any choice-of-law provisions in the policies; that application of New Jersey law was warranted even if New York constituted the place of contracting, negotiation and the insured's performance; that in determining the law governing liability insurance policies covering multistate risks a court must consider primarily the state of the insured's principal place of business, the insured's domicile, as the primary factor, and that the state of the insured's principal place of business had a greater concern with issues of policy construction and application bearing on the amount of coverage than did the states where contracting, negotiation, or payment of the premium occurred.

APPEARANCES OF COUNSEL

Crowell & Moring LLP, Washington, DC (*Clifton S. Elgarten*, *Jonathan H. Pittman* and *Kathryn A. Underhill*, of the District of Columbia bar, admitted pro hac vice, of counsel), and *Crowell & Moring LLP*, New York City (*Frank M. Esposito* of counsel), for appellants.

Covington & Burling LLP, Washington, DC (*Robert A. Long, Jr.*, of the District of Columbia bar, admitted pro hac vice, and *William P. Skinner*, *Keith A. Noreika* and *Ann O'Connell* of counsel), and *Covington & Burling LLP*, New York City (*Michael C. Nicholson* of counsel), for respondent.

Kirkpatrick & Lockhart Preston Gates Ellis LLP, New York City (*David S. Versfelt* of counsel), and *Kirkpatrick & Lockhart Preston Gates Ellis LLP*, Pittsburgh, Pennsylvania (*Donald E. Seymour* of counsel), for Honeywell International Inc., amicus curiae.

Vedeer, Price, Kaufman & Kammholz, P.C., New York City (*John H. Eickemeyer* and *Marie Tieri* of counsel), and *Wiley Rein LLP*, Washington, DC (*Laura A. Foggan* and *John C. Yang* of counsel), for Complex Insurance Claims Litigation Association, amicus curiae.

OPINION OF THE COURT

Order affirmed, with costs, and certified question answered in the affirmative for the reasons stated by Justice David Friedman at the Appellate Division (36 AD3d 17 [2006]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES. Taking no part: Judge READ.

[876 NE2d 901, 845 NYS2d 215]

MICHELE LAUNDERS, as Administratrix of the Estate of BABY GIRL LAUNDERS, Also Known as LISA, Deceased, Respondent, et al., Plaintiff, v JOEL STEINBERG, Appellant, et al., Defendants.

Argued September 5, 2007; decided October 11, 2007

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 16, 2007. The Appellate Division, with two Justices dissenting in part, affirmed a judgment of the Supreme Court, New York County (Louis B. York, J.), which, after an inquest, had awarded plaintiff, as administratrix of the goods, chattels and credits of baby girl Launders, also known as Lisa, compensatory and punitive damages.

Launders v Steinberg, 39 AD3d 57, modified.

HEADNOTES

Judgments — Collateral Estoppel — Death of Child by Father's Assault

1. In an action brought by the administratrix of the estate of a child who was killed by her adoptive father, Supreme Court's award of partial summary

judgment on the prior abuse causes of action, upon invoking collateral estoppel based on defendant's manslaughter conviction, was vacated and a new trial ordered on liability. The jury in defendant's criminal trial was not required to determine whether the child was subjected to repeated physical abuse by defendant during the months prior to the acts resulting in her death. Although evidence of prior acts of abuse was presented at the underlying criminal trial, the issue was not necessarily decided therein, a requirement for purposes of applying the doctrine of collateral estoppel.

Damages — Inadequate and Excessive Damages — Death of Child by Father's Assault

2. In an action brought by the administratrix of the estate of a child who was killed by her adoptive father, questions of excessiveness of the compensatory damages and punitive damages awards were beyond review by the Court of Appeals in the absence of due process concerns. The trial court may revisit the punitive damages question upon ultimate disposition of prior abuse causes of action and shall consider defendant's set-off claim.

APPEARANCES OF COUNSEL

Joel B. Steinberg, appellant pro se.

Law Offices of Wayne J. Schaefer, LLC, Hauppauge (*Wayne J. Schaefer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by remitting to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

In March 1989, after a jury trial, defendant Steinberg was convicted of manslaughter in the first degree for the November 1987 killing of his adopted six-year-old daughter Lisa (*see People v Steinberg*, 170 AD2d 50 [1st Dept 1991], *affd* 79 NY2d 673 [1992]).

In August 1989, plaintiff commenced this action as administratrix of Lisa's estate against Steinberg and various other defendants. The fifth and sixth causes of action alleged acts of prior abuse; the seventh cause of action alleged that defendant, having actual notice that Lisa sustained a life-threatening injury on November 1, 1987, recklessly and dangerously failed to take reasonably prudent action to secure medical treatment for her. Supreme Court, invoking collateral estoppel based on defendant's manslaughter conviction, awarded partial summary judgment against defendant on these three causes of action, and awarded plaintiff \$5 million for Lisa's pain and suffering during the 8 to 10 hours preceding her death, \$5 million for the pain and suffering resulting from past abuse and \$5 million in puni-

tive damages. The Appellate Division affirmed, with two Justices dissenting.

[1] In order to invoke the doctrine of collateral estoppel, “[t]here must be an identity of issue which has necessarily been decided in the prior action and is decisive of the present action, and there must have been a full and fair opportunity to contest the decision now said to be controlling” (*Buechel v Bain*, 97 NY2d 295, 303-304 [2001], *cert denied* 535 US 1096 [2002]). Here, the jury in defendant’s criminal trial was not required to determine whether Lisa was subjected to repeated physical abuse by defendant during the months prior to the acts resulting in her death. Although evidence of prior acts of abuse was presented at defendant’s criminal trial, the issue was not “necessarily decided” therein. Thus, Supreme Court’s award of summary judgment on plaintiff’s fifth and sixth causes of action must be vacated and a new trial held on liability on these causes of action.

[2] The question of excessiveness of the compensatory damages award is beyond this Court’s review, as is the question of excessiveness of the punitive damages award, in the absence of due process concerns. Supreme Court may, however, revisit the punitive damages question upon the ultimate disposition of the fifth and sixth causes of action. Also, although apportionment was properly denied, on remand, Supreme Court shall consider defendant’s \$985,000 set-off claim pursuant to General Obligations Law § 15-108. Defendant’s remaining arguments are without merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

In the Matter of ADULT HOME AT ERIE STATION, INC., Respondent, v ASSESSOR AND BOARD OF ASSESSMENT REVIEW OF CITY OF MIDDLETOWN et al., Appellants.

Submitted September 24, 2007; decided October 11, 2007

Reported below, 36 AD3d 699.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of JENNIFER AMOROSI, Appellant, v SOUTH COLONIE INDEPENDENT CENTRAL SCHOOL DISTRICT et al., Respondents.

Submitted October 9, 2007; decided October 11, 2007

Reported below, 34 AD3d 1073.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the appeal herein granted. Three copies of the brief must be served and an original and 24 copies filed within seven days.

MANUEL ARONS, Respondent, v ROBERT JUTKOWITZ et al., Appellants, et al., Defendant.

Submitted October 9, 2007; decided October 11, 2007

Reported below, 37 AD3d 94.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of DATA TREE, LLC, Appellant, v EDWARD P. RO-MAINE, Respondent.

Submitted October 9, 2007; decided October 11, 2007

Reported below, 36 AD3d 804.

Motion by Advance Publications, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

JOHN DERAFFELE, Appellant, v 210-220-230 OWNERS CORP. et al., Respondents.

Submitted July 16, 2007; decided October 11, 2007

Reported below, 33 AD3d 752.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 8 NY3d 814 (2007)].

GALLINGER/GMAC REAL ESTATE, Respondent, v FRANCIS W. ROSCOE, II, et al., Appellants.

THE GINLEY FAMILY REAL ESTATE TRUST, by MICHAEL P. GINLEY and Another, as Cotrustees, Respondent, v FRANCIS W. ROSCOE, II, et al., Appellants.

HMC MANAGEMENT CORP., Respondent, v FRANCIS W. ROSCOE, II, et al., Appellants.

Submitted July 16, 2007; decided October 11, 2007

Reported below, 41 AD3d 1312.

Motion, insofar as it seeks leave to appeal in The Ginley Family Real Estate Trust v Roscoe action, dismissed upon the ground that the order sought to be appealed from does not finally determine that action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of SINCLAIR HABERMAN et al., Appellants, v ZONING BOARD OF APPEALS OF CITY OF LONG BEACH et al., Respondents.

Submitted October 1, 2007; decided October 11, 2007

Reported below, 35 AD3d 465.

Motion by New York State Builders Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

ANNETTE J. KISH, as Administrator De Bonis Non of the Estate of JAMES J. JERGE, Deceased, Respondent, v DAVID H. GRAHAM, M.D., et al., Appellants.

Submitted October 9, 2007; decided October 11, 2007

Reported below, 40 AD3d 118.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of CHRISTOPHER MAPP, Respondent, v GREGORY BURNHAM, as Chief Technology Officer of Port Authority of New York and New Jersey, et al., Appellants.

Submitted July 9, 2007; decided October 11, 2007

Reported below, 23 AD3d 37.

Motion for reargument denied [*see* 8 NY3d 999 (2007)].

JAMES F. NOTARO, JR., Appellant, v POWER AUTHORITY OF THE STATE OF NEW YORK, Respondent, et al., Defendants.

Submitted July 16, 2007; decided October 11, 2007

Reported below, 41 AD3d 1318.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

135 WEST 36TH LLC et al., Respondents, v WORLD CITY AMERICA INC. et al., Defendants, and CHARLES GALLAGHER et al., Appellants.

Submitted June 18, 2007; decided October 11, 2007

Reported below, 34 AD3d 317.

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 979 (2007)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEJANDRO CORREA, Appellant.

Submitted July 2, 2007; decided October 11, 2007

Reported below, 39 AD3d 348.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN JENKINS, Appellant.

Submitted October 1, 2007; decided October 11, 2007

Reported below, 44 AD3d 1.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS MITCHELL, Appellant.

Submitted September 17, 2007; decided October 11, 2007

Reported below, 39 AD3d 357.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NEHEMIAH NASH, Appellant.

Submitted October 9, 2007; decided October 11, 2007

Motion for reargument denied [*see* 9 NY3d 894 (2007)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LALONI C. PATTERSON, Appellant.

Submitted September 24, 2007; decided October 11, 2007

Reported below, 34 AD3d 1349.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR RINCON, Appellant.

Submitted September 17, 2007; decided October 11, 2007

Reported below, 40 AD3d 539.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

210-220-230 OWNERS CORP., Respondent, v JOHN DERAFFELE,
Appellant.

Submitted July 16, 2007; decided October 11, 2007

Reported below, 33 AD3d 788.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 8 NY3d 815 (2007)].

MARIE C. VAVAL, Appellant, v NYRAC, INC., et al., Respondents.

Submitted July 23, 2007; decided October 11, 2007

Reported below, 2007 NY Slip Op 63481(U).

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 1020 (2007)].

VIGILANT INSURANCE COMPANY et al., Appellants, v THE BEAR
STEARNS COMPANIES, INC., Respondent.

Submitted October 1, 2007; decided October 11, 2007

Reported below, 34 AD3d 300.

Motion by Securities and Exchange Commission for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served, 24 copies filed and the CPLR 8022 motion fee paid within seven days.

TANYA WEBB, Respondent, v NEW YORK METHODIST HOSPITAL et
al., Appellants.

Submitted October 9, 2007; decided October 11, 2007

Reported below, 35 AD3d 457.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

[876 NE2d 507, 844 NYS2d 779]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN MINGO, Appellant.

Decided October 16, 2007

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 27, 2007. The Appellate Division affirmed an amended sentence of the Supreme Court, Kings County (Alan Marrus, J.), imposed following defendant's conviction upon his plea of guilty of attempted criminal sale of a controlled substance in the third degree. Supreme Court had sentenced defendant to six months of house arrest and a term of five years' probation.

People v Mingo, 37 AD3d 854, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Excessive Sentence

In a criminal prosecution wherein defendant appealed from an amended sentence of six months' house arrest and five years' probation, imposed following a conviction upon his guilty plea of attempted criminal sale of a controlled substance in the third degree, an Appellate Division order, which had affirmed the amended sentence, was affirmed. The Appellate Division, having affirmed without opinion, may have done so on the basis that the sentence imposed was not excessive, an issue beyond the Court of Appeals' review.

APPEARANCES OF COUNSEL

Appellate Advocates, New York City (*Lynn W.L. Fahey* of counsel), for appellant.

Michael A. Cardozo, *Corporation Counsel*, New York City (*Fay Ng* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. The Appellate Division, having affirmed without opinion, may have done so on the basis that the sentence imposed was not excessive, an issue beyond this Court's review.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

PAWEL CZERNICKI, Appellant, v MAREK LAWNICZAK, Respondent.

Submitted July 30, 2007; decided October 16, 2007

Reported below, 41 AD3d 418, 419.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of JAMES G. DOYLE et al., Appellants, v SCHUYLERVILLE CENTRAL SCHOOL DISTRICT et al., Respondents.

Submitted August 13, 2007; decided October 16, 2007

Reported below, 35 AD3d 1058.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 9 NY3d 804 (2007)].

FINANCIAL INDUSTRY REGULATORY AUTHORITY, INC., Formerly Known as NATIONAL ASSOCIATION OF SECURITIES DEALERS, INC., Respondent, v JOHN J. FIERO et al., Appellants.

Submitted August 20, 2007; decided October 16, 2007

Reported below, 33 AD3d 547.

Motion to expand the record on appeal herein denied.

In the Matter of BERNARD FULLER, Appellant, v CHARLES SOLOMON, as Justice of the Supreme Court of the State of New York, Respondent.

Submitted July 30, 2007; decided October 16, 2007

Reported below, 41 AD3d 256, 35 AD3d 241.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

In the Matter of FORECLOSURE OF 2001 TAX LIENS BY PROCEEDING IN REM PURSUANT TO ARTICLE 11 OF REAL PROPERTY TAX LAW BY COUNTY OF JEFFERSON, Respondent; ROBERT WEICHERT, Appellant.

Submitted August 6, 2007; decided October 16, 2007

Reported below, 38 AD3d 1364.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of CLEMENT JONES, Appellant, v RICHARD A. KEENAN, as Monroe County Judge, et al., Respondents.

Submitted August 6, 2007; decided October 16, 2007

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

YAAKOV KANOVSKY, Appellant, v MONTEFIORE MEDICAL CENTER et al., Respondents.

Submitted August 13, 2007; decided October 16, 2007

Reported below, 40 AD3d 938.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LEO A. MARINO, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONAL SERVICES, Respondent.

Submitted July 30, 2007; decided October 16, 2007

Reported below, 41 AD3d 1004.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

MARLENE PATRELLA et al., Appellants, v ATLANTIC CHIROPRACTIC GROUP et al., Respondents.

Submitted August 6, 2007; decided October 16, 2007

Reported below, 41 AD3d 806.

Motion for leave to appeal denied with \$100 costs and neces-

sary reproduction disbursements. Cross motion for the imposition of sanctions denied.

JOSEPH PEDRI, Appellant, v JEANNE PEDRI, Respondent.

Submitted August 20, 2007; decided October 16, 2007

Reported below, 2007 NY Slip Op 72805(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY LESCH, Appellant.

Submitted September 4, 2007; decided October 16, 2007

Reported below, 38 AD3d 1129.

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 816 (2007)]. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA LINER, Appellant.

Submitted August 13, 2007; decided October 16, 2007

Reported below, 33 AD3d 479.

Motion for reargument denied [*see* 9 NY3d 856 (2007)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN CHIARELLO, Appellant, v JAMES L. BERBARY, as Superintendent of Collins Correctional Facility, Respondent.

Submitted September 4, 2007; decided October 16, 2007

Reported below, 34 AD3d 1277.

Motion for reargument of motion for leave to appeal denied [*see* 8 NY3d 858 (2007)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY JONES,
Appellant, v BRIAN FISCHER, Respondent.

Submitted August 20, 2007; decided October 16, 2007

Reported below, 2007 NY Slip Op 68924(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

POLICE BENEVOLENT ASSOCIATION OF THE NEW YORK STATE
TROOPERS, INC., Appellant, et al., Plaintiffs, v NEW YORK
STATE DIVISION OF STATE POLICE et al., Respondents.

Submitted August 6, 2007; decided October 16, 2007

Reported below, 40 AD3d 1350.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied with \$100 costs and necessary reproduction costs.

In the Matter of TASHARKA SARGENT, Appellant, v GLENN S.
GOORD et al., Respondents.

Submitted September 10, 2007; decided October 16, 2007

Reported below, 34 AD3d 333.

Motion for reargument of motion for leave to appeal denied [see 8 NY3d 804 (2007)].

In the Matter of SOMA PARTNERS, LLC, Respondent, v NORTH-
WEST BIOTHERAPEUTICS, INC., Appellant.

Submitted August 6, 2007; decided October 16, 2007

Reported below, 41 AD3d 257.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SANTOS SUAREZ, Appellant, v JOHN BYRNE et al., Respondents.

Submitted July 16, 2007; decided October 16, 2007

Reported below, 40 AD3d 546.

Motion for poor person relief granted.

In the Matter of the Application of NYAPATI R. RAO, M.D., M.S., as Chairman of the Department of Psychiatry and Behavioral Sciences at Nassau University Medical Center, Respondent, for an Order Authorizing the Involuntary Treatment of CATHERINE F., a Patient at Nassau University Medical Center, Appellant.

Submitted October 9, 2007; decided October 18, 2007

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

In the Matter of DAVID J. CIRAOLO, Appellant. WHITEY PRODUCE Co., INC., et al., Respondents.

Submitted August 20, 2007; decided October 18, 2007

Reported below, 37 AD3d 461.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DATA TREE, LLC, Appellant, v EDWARD P. RO-MAINE, Respondent.

Submitted October 15, 2007; decided October 18, 2007

Reported below, 36 AD3d 804.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

ROBERT EDEN, Appellant, v ST. LUKE'S-ROOSEVELT HOSPITAL
CENTER et al., Respondents.

Submitted August 20, 2007; decided October 18, 2007

Reported below, 39 AD3d 215.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

RACHEL EHRENFELD, Appellant, v KHALID SALIM BIN MAHFOUZ,
Respondent.

Submitted October 15, 2007; decided October 18, 2007

Motion by Advance Publications, Inc. et al. for leave to appear amici curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge SMITH taking no part.

45-02 FOOD CORP., Respondent-Appellant, v 45-02 43RD REALTY,
LLC, Appellant-Respondent.

Submitted July 16, 2007; decided October 18, 2007

Reported below, 37 AD3d 522.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MICHAEL GOLDSTEIN et al., Respondents, v VENERA HELD, Ap-
pellant.

Submitted July 23, 2007; decided October 18, 2007

Reported below, 37 AD3d 657.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was

untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [rev 3d ed 2005]).

ITC LIMITED et al., Appellants, v PUNCHGINI, INC., et al., Respondents.

Submitted October 15, 2007; decided October 18, 2007

Motion by American Intellectual Property Law Association for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed.

ITC LIMITED et al., Appellants, v PUNCHGINI, INC., et al., Respondents.

Submitted October 15, 2007; decided October 18, 2007

Motion by International Trademark Association for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of JAVIER R., an Infant. ROBERT R., Appellant; MELINDA R., Respondent, et al., Respondent.

Submitted October 15, 2007; decided October 18, 2007

Reported below, 43 AD3d 1.

Motion for assignment of counsel granted and Randall S. Carmel, Esq., 53 Jackson Avenue, Syosset, New York 11793 assigned as counsel to the appellant on the appeal herein.

In the Matter of CURTIS McRAE, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Respondent.

Submitted July 30, 2007; decided October 18, 2007

Reported below, 39 AD3d 861.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Judge JONES taking no part.

CHRISTOPHER A. MEASOM et al., Respondents, v GREENWICH AND
PERRY STREET HOUSING CORPORATION, Appellant.

Submitted August 13, 2007; decided October 18, 2007

Reported below, 42 AD3d 366.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered in an appeal from another court (NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

MARK MISK, Appellant, v JOYCE G. MOSS et al., Defendants, and
ANGELA O'BRIEN, Respondent.

Submitted August 6, 2007; decided October 18, 2007

Reported below, 41 AD3d 672.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see* Karger, Powers of the New York Court of Appeals § 5:3, at 109 [rev 3d ed 2005]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NAG-
MELDEEN AZAZ, Appellant.

Submitted October 15, 2007; decided October 18, 2007

Reported below, 41 AD3d 610.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR
FRAZIER, Appellant.

Submitted October 15, 2007; decided October 18, 2007

Reported below, 35 AD3d 759.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BURTON JEFFREY HUNTER, Appellant.

Submitted September 24, 2007; decided October 18, 2007

Reported below, 41 AD3d 885.

Motion to vacate this Court's August 31, 2007 dismissal order granted [*see* 9 NY3d 871].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE DANIEL JENKINS, Appellant.

Submitted October 9, 2007; decided October 18, 2007

Reported below, 40 AD3d 1308.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY WARE, Appellant.

Submitted October 15, 2007; decided October 18, 2007

Reported below, 36 AD3d 838.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

MYRNA WALKER, Respondent, v ROBERT WALKER, Appellant.

Submitted August 20, 2007; decided October 18, 2007

Reported below, 42 AD3d 928.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of FREDERICK WILEY, Appellant, v
CITY OF WATERTOWN FIRE DEPARTMENT, Respondent. WORK-
ERS' COMPENSATION BOARD, Respondent.

Submitted October 9, 2007; decided October 18, 2007

Reported below, 39 AD3d 975.

Appeal, insofar as taken from the Appellate Division order denying reconsideration or, in the alternative, leave to appeal to the Court of Appeals, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[877 NE2d 294, 846 NYS2d 76]

TOM MIRO et al., Appellants, v PLAZA CONSTRUCTION CORP. et al., Respondents, et al., Defendants. (And a Third-Party Action.)

Decided October 23, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 29, 2007. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Louis B. York, J.), which had granted plaintiffs' motion for partial summary judgment as to liability on a Labor Law § 240 (1) cause of action, (2) denied the motion, and (3) upon searching the record, granted defendants summary judgment dismissing the Labor Law § 240 (1) cause of action. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Plaintiff, while installing fire alarms, allegedly slipped and fell from a ladder that was partially covered with fireproofing material.

The Appellate Division majority concluded that the evidence established that plaintiff recognized the undesirability of the fireproofing material on the ladder; that the evidence established that plaintiff knew that he could have requested his employer to provide him with a clean ladder and chose not to make this request; and that plaintiff's decision not to request a new ladder, not a violation of Labor Law § 240 (1), was the sole proximate cause of the accident.

Miro v Plaza Constr. Corp., 38 AD3d 454, modified.

HEADNOTE

Labor — Safe Place to Work

In an action to recover damages for injuries plaintiff sustained while installing fire alarms when he allegedly slipped and fell from a ladder that was partially covered with fireproofing material, where there was evidence that plaintiff chose not to request a clean ladder, defendants were not entitled to summary judgment dismissing the Labor Law § 240 (1) claim. Assuming that the ladder was unsafe, it was not clear from the record how easily a replacement ladder could have been procured.

APPEARANCES OF COUNSEL

Paul F. McAloon P.C., New York City (*Paul F. McAloon* of counsel), and *Harry I. Katz, P.C.*, for appellants.

Barry McTiernan & Moore, New York City (*Laurel A. Wedinger* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, without costs, by denying summary judgment to defendants as to the Labor Law § 240 (1) claim and, as so modified, affirmed, and certified question answered in the negative. Assuming that the ladder was unsafe, it is not clear from the record how easily a replacement ladder could have been procured.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[877 NE2d 649, 846 NYS2d 599]

GML, INC., et al., Appellants, v CINQUE & CINQUE, P.C., et al.,
Respondents.

Decided October 23, 2007

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

of that Court, entered December 7, 2006. The Appellate Division (1) affirmed a judgment of the Supreme Court, New York County (Barbara R. Kapnick, J.), which had dismissed the complaint and brought up for review a prior order of that court (Barbara R. Kapnick, J.) granting defendants' motion for summary judgment, and (2) dismissed the appeal from the order as subsumed in the appeal from the judgment. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, New York County, as affirmed by the decision and order of this Court, properly made?"

GML, Inc. v Cinque & Cinque, P.C., 35 AD3d 195, affirmed.

HEADNOTE

Limitation of Actions — What Statute Governs

In a legal malpractice action commenced by Tennessee plaintiffs against the New York defendants, the Appellate Division properly affirmed a judgment applying CPLR 202 and dismissing the complaint as time-barred under Tennessee's one-year statute of limitations. Tennessee's tolling statute was not applied. It was not necessary to toll the statute of limitations since the defendants were amenable to suit in New York for the entire period of Tennessee's statute of limitations. It was irrelevant whether defendants were subject to suit in Tennessee and unnecessary to determine whether defendants were subject to personal jurisdiction in Tennessee. A conclusion to the contrary would cause the statute of limitations to be tolled indefinitely, a result not intended under CPLR 202.

APPEARANCES OF COUNSEL

Samuel E. Kramer, New York City, for appellants.

Cinque & Cinque, P.C., New York City (*James P. Cinque* of counsel), respondents pro se.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered on the ground that it is unnecessary.

Tennessee plaintiffs commenced this legal malpractice action against New York defendants, in which they assert that the Tennessee statute of limitations applies (*see* CPLR 202). Invoking Tennessee law, plaintiffs further assert that their claim should be tolled because of defendants' absence from Tennessee. Defendants moved for summary judgment arguing that the matter was untimely. Supreme Court granted defendants' motion, which the Appellate Division unanimously affirmed, opining that "[t]he tolling provision in the Tennessee statute was

not available to plaintiffs, . . . even where, as plaintiffs claim herein, defendants have not developed sufficient contacts with the foreign state for its courts to be capable of asserting personal jurisdiction over them” (35 AD3d 195 [2006], citing *Insurance Co. of N. Am. v ABB Power Generation*, 91 NY2d 180 [1997]). Plaintiffs contend that since defendants were not subject to in personam jurisdiction in Tennessee, plaintiffs should be able to utilize Tennessee’s tolling provision.

In *ABB Power*, the issue was whether the Second Circuit correctly held in *Stafford v International Harvester Co.* (668 F2d 142, 153 [1981]) “that a cause of action cannot accrue for purposes of [CPLR 202] in a state which could not exercise jurisdiction over the cause of action.” We held that the plain and literal meaning of a cause of action accruing without the state means when the cause of action comes into existence, not that a defendant is subject to suit in that other state (*see ABB Power* at 186). We further held that “CPLR 202 requires that a court, when presented with a cause of action accruing outside New York, should apply the limitation period of the foreign jurisdiction if it bars the claim” (*ABB Power* at 187). Furthermore, when “borrowing the [foreign jurisdiction’s] Statute of Limitations, its tolling statute is also borrowed” (*Childs v Brandon*, 60 NY2d 927, 929 [1983]), as the purpose of a tolling statute is to allow a plaintiff additional time to serve a defendant where defendant’s absence from the jurisdiction has made service a practical impossibility.

This action was commenced in New York and, as such, it was not necessary to toll the statute of limitations since defendants—residents of New York—were amenable to suit in New York for the entire period of Tennessee’s statute of limitations. It is irrelevant whether defendants are also subject to suit in Tennessee and unnecessary to determine whether defendants were subject to personal jurisdiction in Tennessee. A conclusion to the contrary would cause the statute of limitations to be tolled indefinitely against these defendants. We do not believe that the Legislature intended this result in enacting CPLR 202.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of RIKKI D. ADAMS, Appellant, v ROCHESTER FIRE
DEPARTMENT, Respondent.

Submitted September 17, 2007; decided October 23, 2007

On the Court's own motion, appeal, insofar as taken from the Appellate Division order denying, upon renewal, appellant's motion for poor person relief, dismissed, without costs, upon the ground that such order does not finally determine an action or proceeding within the meaning of the Constitution; appeal, insofar as taken from the Supreme Court order dismissing appellant's application to compel compliance with a subpoena, transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie (*see* NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal from the above-described Supreme Court order dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

ELIZABETH ALDEN, Appellant, v ST. JOSEPH'S HOSPITAL HEALTH
CENTER, Respondent.

Submitted October 1, 2007; decided October 23, 2007

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of the Estate of HYMAN ALPERT, Deceased. JACK
ALPERT, as Executor of WILLIAM ALPERT, Deceased Execu-
tor and Trustee of HYMAN ALPERT, Deceased, et al.,
Respondents; GAIL ALPERT KRAMER et al., Appellants.

Submitted August 13, 2007; decided October 23, 2007

Reported below, 37 AD3d 187.

Motion, insofar as it seeks leave to appeal as against Joseph and Charles Alpert, dismissed as untimely; motion, insofar as it seeks leave to appeal as against Jack L. Alpert, Lois Katz and Faya Cohen, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

HECTOR CAMPOS, Appellant, v CITY OF NEW YORK, Respondent.

Submitted October 15, 2007; decided October 23, 2007

Reported below, 32 AD3d 287.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Estate of THOMAS A. DANE, Deceased. MARGUERITE L. DANE-FISHER, Petitioner; THOMAS M. DANE, Appellant. LYNNE M. LONSDALE, Respondent.

Submitted July 23, 2007; decided October 23, 2007

Reported below, 41 AD3d 1323, 32 AD3d 1233.

Motion, insofar as it seeks leave to appeal from the June 8, 2007 order of the Appellate Division, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the September 22, 2006 order of the Appellate Division, dismissed for failure to demonstrate timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.22 [b] [2]). Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

In the Matter of LEMUEL A. DAVIS, Appellant, v COUNTY OF WESTCHESTER et al., Respondents.

Submitted October 15, 2007; decided October 23, 2007

Reported below, 42 AD3d 791.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

LAURIE DiFRANCESCO et al., Appellants, v COUNTY OF ROCKLAND, Respondent.

Submitted September 10, 2007; decided October 23, 2007

Reported below, 41 AD3d 530.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

HELEN FERRY, Appellant, v JAMES E. FERRY et al., Respondents,
et al., Defendant.

Submitted August 20, 2007; decided October 23, 2007

Reported below, 34 AD3d 908.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DOMINICK GIAQUINTO, Appellant, v COMMISSIONER OF NEW YORK STATE DEPARTMENT OF HEALTH, Respondent, et al., Respondent.

Submitted August 27, 2007; decided October 23, 2007

Reported below, 39 AD3d 922.

Motion by the Empire Justice Center for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DOMINICK GIAQUINTO, Appellant, v COMMISSIONER OF NEW YORK STATE DEPARTMENT OF HEALTH, Respondent, et al., Respondent.

Submitted August 27, 2007; decided October 23, 2007

Reported below, 39 AD3d 922.

Motion by the National Center for Law and Economic Justice, Inc. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

DAVID CHARLES JONES, JR., Appellant, v JESSICA A. BILL et al., Respondents.

Submitted July 25, 2007; decided October 23, 2007

Reported below, 34 AD3d 741.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the dismissal of plaintiff's amended complaint against DCFS Trust granted; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

DEBBIE KAMINER, Appellant, v AARON WEXLER et al., Respondents.

Submitted July 2, 2007; decided October 23, 2007

Reported below, 40 AD3d 405.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed the appeal from Supreme Court's order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of DAVID KIRMAYER, Appellant, v STATE OF NEW YORK CIVIL SERVICE COMMISSION et al., Respondents.

Submitted October 15, 2007; decided October 23, 2007

Reported below, 42 AD3d 848.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

CORY MCKIBBIN, Appellant, v SUSAN JENKIN, as Preliminary Executor of the Estate of LINDA MCKIBBIN, Deceased, Respondent.

Submitted July 23, 2007; decided October 23, 2007

Reported below, 41 AD3d 795.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NATASHA RR., a Child Alleged to be Neglected.
COLUMBIA COUNTY DEPARTMENT OF SOCIAL SERVICES, Appel-
lant; MALISSA SS., Respondent.

Submitted September 10, 2007; decided October 23, 2007

Reported below, 42 AD3d 762.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of WILLIAM R. PHILLIPS, Appellant, v ROBERT
DENNISON, as Chairman of the New York State Board of Pa-
role, Respondent.

Submitted June 4, 2007; decided October 23, 2007

Reported below, 41 AD3d 17.

Motion for leave to appeal dismissed upon the ground that
the issues presented have become moot.

In the Matter of WILLIAM R. PHILLIPS, Appellant, v ROBERT
DENNISON, as Chairman of the New York State Board of Pa-
role, Respondent.

Submitted June 11, 2007; decided October 23, 2007

Reported below, 41 AD3d 17.

Motion by Santiago Ramirez for leave to file a brief amicus
curiae on the motion for leave to appeal herein granted and the
brief is accepted as filed.

DAVID S. PULTZ et al., Appellants, v CATHERINE ECONOMAKIS et
al., Respondents.

Submitted August 20, 2007; decided October 23, 2007

Reported below, 40 AD3d 24.

Motion by the Office of the Manhattan Borough President for
leave to file an affirmation amicus curiae on the motion for
leave to appeal herein granted and the affirmation is accepted
as filed.

DAVID S. PULTZ et al., Appellants, v CATHERINE ECONOMAKIS et al., Respondents.

Submitted September 4, 2007; decided October 23, 2007

Reported below, 40 AD3d 24.

Motion by the City-wide Task Force on Housing Court et al. for leave to file an affirmation amici curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

In the Matter of STEEL LOS III/GOYA FOODS, INC., Respondent, v BOARD OF ASSESSORS OF COUNTY OF NASSAU et al., Appellants, and BETHPAGE UNION FREE SCHOOL DISTRICT, Intervenor-Respondent. (Matter No. 1.)

BETHPAGE UNION FREE SCHOOL DISTRICT et al., Respondents, v NASSAU COUNTY et al., Appellants, and GOYA FOODS, INC., Respondent. (Matter No. 2.)

Submitted October 1, 2007; decided October 23, 2007

Reported below, 35 AD3d 482.

Motion by Port Washington Union Free School District for leave to appear amicus curiae on the appeal herein denied.

In the Matter of ABRAHAM STERN, Respondent, v REBECCA STERN, Appellant.

Submitted August 13, 2007; decided October 23, 2007

Reported below, 40 AD3d 1108.

Motion by the New York Legal Assistance Group for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

CARROLL B. STOIANOFF, Appellant, v CONSOLIDATED EDISON CO. OF NEW YORK, INC., Respondent.

Submitted August 6, 2007; decided October 23, 2007

Reported below, 16 Misc 3d 128(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this

motion for leave to appeal from the order of the Appellate Term (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of DAVID TORRANCE, Respondent-Appellant, v
JOSEPH A. STOUT et al., Appellants-Respondents.

Submitted July 30, 2007; decided October 23, 2007

Reported below, 38 AD3d 910.

Motion for leave to appeal granted. Cross motion for leave to appeal dismissed as untimely.

In the Matter of RICHARD A. ZALK (Admitted as RICHARD ALAN
ZALK), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY
COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respon-
dent.

Submitted October 15, 2007; decided October 23, 2007

Reported below, 45 AD3d 42.

Motion by the Association of the Bar of the City of New York for leave to file a memorandum amicus curiae on the motion for leave to appeal herein granted and the memorandum is accepted as filed.

In the Matter of RICHARD A. ZALK (Admitted as RICHARD ALAN
ZALK), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY
COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respon-
dent.

Submitted October 1, 2007; decided October 23, 2007

Reported below, 45 AD3d 42.

Motion for leave to appeal granted. Motion for a stay granted.
